

**Saybrook Township
Zoning Resolution
May 2026 Amendment**

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Article 1- Title Interpretation & Enactment

Section 100- Title

This resolution shall be known and may be cited to as the "Zoning Resolution of the Township of Saybrook."

Section 110- Provisions of Resolution Declared to be Minimum Requirements

In their interpretation and application, the provisions of this resolution shall be held to be minimum requirements, adopted for the promotion of the public health, safety, and the general welfare. Whenever the requirements of this resolution conflict with the requirements of any other lawfully adopted rules, regulations, or resolutions, the most restrictive, or that imposing the higher standards shall govern.

Section 120- Separability Clause

Should the courts declare any section or provision of this resolution to be unconstitutional or invalid, such decision shall not affect the validity of the resolution as a whole, or any part thereof other than the part of declared to be unconstitutional or invalid.

Section 130- Repeal of Conflicting Resolution- Effective

All resolutions or parts of resolutions in conflict with this zoning resolution or inconsistent with the provisions of this resolution are hereby repealed to the extent necessary to give this resolution full force and effect. This resolution shall become effective from and after the date of its approval and adoption, as provided by law.

Article 2- Definitions

Section 200- Interpretation of Terms or Words

For the purpose of this resolution, certain terms or words used herein shall be interpreted as follows:

1. The word "person" includes a firm, association, organization, partnership, trust, company, or corporation as well as an individual.
2. The present tense includes the future tense, the singular number includes the plural, and the plural number includes the singular.
3. The word "shall" is a mandatory requirement, and word "may" is a permissive requirement, and the word "should" is a preferred requirement.
4. The words "used" or "occupied" include the words "intended, designed, or arranged to be used or occupied".
5. The word "lot" includes the words "plot" or "parcel".

Section 210- Definitions

ACCESSORY USE OR STRUCTURE

A use or structure on the same lot with, and of a nature customarily incidental and subordinate to, the principal use or structure.

ADULT ONLY ENTERTAINMENT ESTABLISHMENT

An adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult motion picture theater, adult theater, nude or seminude model studio, or sexual encounter establishment. An establishment in which a medical practitioner, psychologist, psychiatrist, or similar professional person licensed by the state engages in medically approved and recognized therapy, including, but not limited to, massage therapy, as regulated pursuant to section 4731.15 of the Revised Code, is not an "adult entertainment establishment."

ADULT-USE MARIJUANA

See Marijuana.

ADULT-USE MARIJUANA FACILITY

A facility specifically established for the commercial cultivation, processing, or retail dispensing of adult-use marijuana, in accordance with Ohio Revised Code Chapter 3780.07.

AGRICULTURE

The use of land for farming, dairying, pasturage, agriculture, horticulture, floriculture, viticulture, and animal and poultry husbandry and the necessary accessory uses for packing, treating, or storing the produce, provided, however that:

1. The operation of any such accessory uses shall be secondary to that of normal agricultural activities; and
2. The above uses shall not include the feeding or sheltering of animals or poultry in penned enclosures within 100 feet of any residential zoning district. Agriculture does not include the feeding of garbage to animals or the operation or maintenance of a commercial stockyard or feed yard.

AIRPORT

Any runway, land area or other facility designed or used either publicly or privately by any person for the landing and taking-off of aircraft, including all necessary taxiways, aircraft storage and tie-down areas, hangars and other necessary buildings, and open spaces.

ALLEY

See Thoroughfare.

ALTERATIONS. STRUCTURAL

Any change in the supporting members of a building such as bearing walls, columns, beams, or girders.

AUTOMOTIVE REPAIR

The repair, rebuilding or reconditioning of motor vehicles or parts thereof, including collision service, painting, and steam cleaning of vehicles.

AUTOMOTIVE. MANUFACTURED HOME. RECREATIONAL VEHICLES. AND FARM IMPLEMENT SALES

The sale or rental of new and used motor vehicles, manufactured homes, recreational vehicles, or farm implements, but not including repair work except incidental warranty repair of the same, to be displayed and sold on the premises.

AUTOMOTIVE WRECKING

The dismantling or wrecking of used motor vehicles, manufactured homes, recreational vehicles, or the storage, sale or dumping of dismantled, partially dismantled, obsolete or wrecked vehicles or their parts.

AUTOMOBILE. DISABLED

See Disabled Vehicles

AUTOMOBILE GRAVEYARD

Means any establishment or place of business which is maintained, used, or operated for storing, keeping, buying, or selling wrecked, scrapped, ruined, or dismantled motor vehicles or motor vehicle parts.

BASEMENT

A story all or partly underground but having at least one-half of its height below the average level of the adjoining ground.

BUILDING

Any structure designed or intended for the support, enclosure, shelter, or protection of persons, animals, chattels, or property.

BUILDING. ACCESSORY

A building detached from but located on the same lot as the principal building, the use of which is incidental and accessory to that of the main building or use.

BUILDING HEIGHT

The vertical distance measured from the average elevation of the proposed finished grade at the front of the building to the highest points of the roof for flat roofs, to the deck line of mansard roofs, and the mean height between eaves and ridge for gable, hip, and gambrel roofs.

BUILDING LINE

See Setback Line

BUILDING PRINCIPAL

A building in which is conducted the main or principal use of the lot on which said building is situated.

BUSINESS. GENERAL

Commercial uses which generally require locations on or near major thoroughfares and/or their intersections, and which tend, in addition to serving day to day needs of the community, also supply the more durable and permanent needs of the whole community. General business uses include, but need not be limited to, such activities as supermarkets; stores that sell hardware, apparel, footwear, appliances, and furniture; department stores; and discount stores.

CELLAR

That portion of the building wholly below, or with less than half of its ceiling height above the average finished grade of the ground adjoining the building.

CEMETERY

Land used or intended to be used for the burial of the human or animal dead and dedicated for cemetery purposes, including crematories, mausoleums, and mortuaries if operated in connection with and within the boundaries of such cemetery.

CHANNEL

A natural or artificial watercourse of perceptible extent, with bed and banks to confine and conduct continuously or periodically flowing water.

CLINIC:

A place used for the care, diagnosis, and treatment of sick, ailing, infirm, or injured persons, and those who are in need of medical and surgical attention, but who are not provided with board or room or kept overnight on the premises.

CLUB:

A building or portion thereof or premises owned or operated by a person for social, literary, political, educational, or recreational purposes primarily for the exclusive use of members and their guests.

COMMERCIAL ENTERTAINMENT FACILITIES

Any profit-making activity which is generally related to the entertainment field, such as motion picture theaters, carnivals, nightclubs, cocktail lounges, and similar entertainment activities.

COMPREHENSIVE DEVELOPMENT PLAN

A plan, or any portion thereof, adopted by the County Planning Commission showing the general location and extent of present and proposed physical facilities including housing, industrial and commercial uses, major thoroughfare, parks, schools, and other community facilities. This plan establishes the goals, objectives, and policies of the Township.

CONDITIONAL USE

A non-transferable use permitted within a district other than a principally permitted use, requiring a conditional use permit and approval of the Board of Zoning Appeals.

Conditional uses permitted in each district are listed in the Official Schedule of Conditional Uses (See Article 5).

CONDITIONAL USE PERMIT

A permit issued by the Zoning Inspector upon approval by the Board of Zoning Appeals to allow a use other than a principally permitted use to be established within the district.

CORNER LOT

See Lot Types.

CUL-DE-SAC

See Thoroughfare.

DEAD-END STREET

See Thoroughfare.

DENSITY

A unit of measurement; the number of dwelling units per acre of land.

1. Gross Density - the number of dwelling units per acre of the total land to be developed.
2. Net Density - the number of dwelling units per acre of land when the acreage involved includes only the land devoted to residential uses.

DISABLED VEHICLE

Any type of motor vehicle that meets any one of the following criteria:

1. The vehicle does not have a current license.
2. The vehicle is mechanically inoperable.
3. The vehicle is extensively damaged (i.e., missing wheels, motor, tires, or transmission).
4. The vehicle is in a dilapidated or broken-down state.

DWELLING

Any building or structure (except a recreational vehicle as defined by Ohio Revised Code 4501.01) which is wholly or partly used or intended to be used for living or sleeping by one or more human occupants.

DWELLING UNIT

Space within a dwelling, comprising living, dining, sleeping room or rooms, storage closets, as well as space and equipment for cooking, bathing, and toilet facilities, all used by only one family and its household employees.

DWELLING. SINGLE FAMILY

A dwelling consisting of a single dwelling unit only, separated from other dwelling units by open space.

DWELLING. TWO-FAMILY

A dwelling consisting of two dwelling units which may be either attached side by side or one above the other, and each unit having a separate or combined entrance or entrances.

DWELLING. MULTI-FAMILY

A dwelling consisting of three or more dwelling units including condominiums with varying arrangements of entrances and party walls. Multi-family housing may include public housing and industrialized units.

DWELLING. INDUSTRIALIZED UNIT

An assembly of materials or products comprising all or part of a total structure which, when constructed, and when installed, constitutes a dwelling unit, except for necessary preparations for its placement, and including a modular or sectional unit but not a manufactured home as defined by Ohio Revised Code 4501.01.

DWELLING. ROOMING HOUSE (BOARDING HOUSE. LODGING HOUSE. DORMITORY)

A dwelling or part thereof, other than a hotel, motel, or restaurant where meals and/or lodging are provided for compensation, for three or more unrelated persons where no cooking or dining facilities are provided in the individual rooms.

EASEMENT

Authorization by a property owner for the use by another, and for a specified purpose, of any designated part of his property.

ELECTRIC VEHICLE CHARGING STATION

When accessory to a permitted or approved primary use of the property, vehicle charging stations are facilities or areas at which electric powered or hybrid powered motor vehicles can obtain electrical current to recharge batteries.

ELECTRIC BYCICLE CHARGING STATION

When accessory to a permitted or approved primary use of the property, electric bicycle charging stations are facilities or areas at which electric powered bicycles, scooters, or other electric micromobility implements can obtain electrical current to recharge batteries.

ESSENTIAL SERVICES

The erection, construction, alteration, or maintenance, by public utilities or other government agencies, of underground gas, electrical, steam or water transmission, or distribution systems, collection, communication, supply or disposal systems or sites, including poles, wires, mains, drains, sewers, pipes, traffic signals, hydrants, or other similar equipment and accessories in connection therewith which are reasonably necessary for the furnishing of adequate services by such public utilities or other governmental agencies or for the public health or safety or general welfare, but not including buildings.

FAMILY

One or more persons occupying a single dwelling unit, provided that unless all members are related by blood, adoption, or marriage, no such dwelling shall contain over four persons, but any number of foster children will be permitted.

FENCE

A barrier at least six feet in height, constructed of non-transparent material, and maintained so as to obscure the junk from the ordinary view of persons passing upon township roads covered by Sections 4737.05 to 4737.93 inclusive of the Ohio Revised Code.

FLOODWAY

That portion of the flood plain, including the channel, which is required to convey the regional flood waters. Floods of less frequent recurrence are usually contained completely within the floodway.

FLOOR AREA OF A RESIDENTIAL BUILDING

The sum of the gross horizontal area of the several floors of a residential building, excluding basement floor areas not devoted to residential use, but including the area of roofed porches and roofed terraces. All dimensions shall be measured between the interior faces of walls.

FLOOR AREA OF A NON-RESIDENTIAL BUILDING (JO BE USED IN CALCULATING PARKING REQUIREMENTS)

The floor area of the specified use excluding stairs, washrooms, elevator shafts, maintenance shafts and rooms, storage spaces, display windows, and fitting rooms, and similar areas.

FLOOR AREA. USABLE

Measurement of usable floor area shall be the sum of the horizontal areas of the several floors of the building, measured from the interior faces of the exterior walls.

FOOD PROCESSING

The preparation, storage, or processing of food products. Examples of these activities include bakeries, dairies, canneries, and other similar businesses.

GARAGES. PRIVATE

A detached or attached accessory building or portion of a principal building for the parking or temporary storage of automobiles, recreational vehicles, and/or boats of the occupants of the premises and wherein:

1. Not more than one space is rented for parking to people not resident on the premises.
2. No more than one commercial vehicle per dwelling unit is parked or stored.
3. The commercial vehicle permitted does not exceed two tons capacity.

GARAGE. PUBLIC

A principal or accessory building other than a private garage, used for parking or temporary storage of passenger automobiles, and in which no service shall be provided or remuneration.

GARAGE, SERVICE STATION

Buildings and premises where gasoline, oil, grease, batteries, tires, and motor vehicle accessories may be supplied and dispensed at retail, and where in addition, the following services may be rendered, and sales made:

1. Sales and service of spark plugs, batteries, and distributors parts.
2. Tire servicing and repair, but not recapping or regrooving.
3. Replacement of mufflers and tail pipes, water hose, fan belts, brake fluid, light bulbs, fuses, floor mats, seat covers, windshield wipers and blades, grease retainers, wheel bearings, mirrors, and the like.
4. Radiator cleaning and flushing.
5. Washing, polishing, and sale of washing and polishing materials.
6. Greasing and lubrication.
7. Providing and repairing fuel pumps, oil pumps, and lines.
8. Minor servicing and repair of carburetors.
9. Adjusting and repairing brakes.

10. Minor motor adjustment not involving removal of the head or crankcase- or racing the motor.
11. Sales of cold drinks, packaged food, tobacco, and similar convenience goods for service station customers, as accessory and incidental to principal operations.
12. Provision of road maps and other informational material to customers, provision of restroom facilities.
13. Warranty maintenance and safety inspections.

A filling station is not a repair garage nor a body shop.

HOME OCCUPATION

HOTEL

A transient hotel, extended stay hotel, or residential hotel containing more than five (5) guestrooms or dwelling units that are specifically constructed, maintained, advertised, and operated to provide sleeping accommodations or temporary residence for pay to guests. "Hotel" does not include agricultural labor camps, apartment buildings, lodging houses, rooming houses, or hospital or college dormitories.

TRANSIENT HOTEL

A structure with more than five sleeping rooms that provides sleeping accommodations for pay to transient guests for periods of thirty (30) days or less. This category includes hotels, motels, motor hotels, lodges, motor lodges, bed and breakfasts, and inns.

EXTENDED STAY HOTEL

A structure with more than five dwelling units that provides temporary residence for pay and meets all of the following requirements, pursuant ORC §3731.01:

1. The dwelling units in the structure are specifically constructed, kept, used, maintained, advertised, and held out to the public to be a place where temporary residence is offered for pay to persons;
2. Contains dwelling units approved by the building official with features meeting both residential group R-2 occupancy standards (for non-transient residence) and residential group R-1 occupancy standards (for transient residential occupancy);
3. Has a valid certificate of occupancy identifying specific rooms approved as dwelling units;
4. Is approved by the state fire marshal for extended stay temporary residence purposes.

RESIDENTIAL HOTEL

A structure with more than five dwelling units that contains both non-transient dwelling unit features and transient residential occupancy features meeting residential group R-1 standards, and provides non-transient dwelling units for pay with a minimum stay of more than thirty (30) days.

JUNK

Old or scrap copper, brass, rope, rags, trash, waste, batteries, paper, rubber, junked, dismantled, or wrecked automobiles or parts thereof, iron, steel, and other old or scrap ferrous or non-ferrous materials.

JUNK BUILDINGS. JUNK SHOPS. JUNK YARDS

Any land, property, structure, building, or combination of the same, on which junk is stored or processed.

KENNEL

Any lot or premises on which three (3) or more dogs more than four (4) months of age are housed, groomed, bred, boarded, trained, or sold.

LOADING SPACE. OFF-STREET

Space logically and conveniently located . for bulk pickups and deliveries, scaled to delivery vehicles expected to be used, and accessible to such vehicles when required off-street parking spaces are filled.

LOCATION MAP

See Vicinity Map

LOT

For the purposes of this resolution, a lot is a parcel of land of sufficient size to meet minimum zoning requirements for use, coverage, and area, and to provide such yards and other open spaces as are herein required. Such lot shall have frontage on an improved public street, or on an approved private street, and may consist of:

1. A single lot of record.
2. A portion of a lot of record.
3. A combination of complete lots of record, of complete lots of record and portions of lots of record, or of portions of lots of record.

LOT COVERAGE

The ratio of enclosed ground floor area of all buildings on a lot to the horizontally projected area of the lot, expressed as a percentage.

LOT FRONTAGE

The front of a lot shall be construed to be the portion nearest the street. For the purpose of determining yard requirements on corner lots and through lots, all sides of a lot adjacent to streets shall be considered frontage, and yards shall be provided as indicated under "Yards" in this Section.

LOT MEASUREMENTS

A lot shall be measured as follows:

1. Depth: The distance between the mid-points of straight lines connecting the foremost points of the side lot lines in front and the rearmost points of the side lot lines in the rear.
2. Width: The distance between straight lines connecting front and rear lot lines at each side of the lot, measured at the building setback line.

LOT OF RECORD

A lot which is part of a subdivision recorded in the office of the County Recorder, or a lot or parcel described by metes and bounds, the description of which has been so recorded.

LOT TYPES

Terminology used in this resolution with reference to corner lots, interior lots and through lots is as follows:

1. Corner Lot: A lot located at the intersection of two or more streets. A lot abutting on a curved street or streets shall be considered a corner lot if straight lines drawn from the foremost points of the side lot lines to the foremost point of the lot meet at an interior angle of less than one hundred thirty-five (135) degrees.
2. Interior Lot: A lot with only one frontage on a street.
3. Through Lot: A lot other than a corner lot with frontage on more than one street. Through lots abutting two streets may be referred to as double frontage lots.
4. Reversed Frontage Lot: A lot on which frontage is at right angles to the general pattern in the area. A reversed frontage lot may also be a corner lot.

NOTE: See Figures 1 & 2 at the end of Article 2.

MAJOR THOROUGHFARE PLAN

The portion of the comprehensive plan adopted by the County Planning Commission indicating the general location recommended for arterial, collector, and local thoroughfares within the appropriate jurisdiction.

MAINTENANCE AND STORAGE FACILITIES

Land, buildings, and structures devoted primarily to the maintenance and storage of construction equipment and material.

MANUFACTURING. HEAVY

Manufacturing, processing, assembling, storing, testing, and similar industrial uses which are generally major operations and extensive in character; require large sites, open storage, and service areas; extensive service and facilities, ready access to regional transportation; and normally generate some nuisances such as smoke, noise, vibration, dust, glare, air pollution, and water pollution, but not beyond the district boundary.

MANUFACTURING. LIGHT

Manufacturing, or other industrial uses which are usually controlled operations; clean, quiet, and free of objectionable or hazardous elements such as smoke, noise, odor, or dust, operating and storing within enclosed structures; and generating little industrial traffic and no nuisances.

MANUFACTURING. EXTRACTIVE

Any mining, quarrying, excavating processing, storing, separating, cleaning, or marketing of any mineral natural resource.

MANUFACTURED HOME

Pursuant Ohio Revised Code §3781.06 (C) (4), a "Manufactured home" means a building unit or assembly of closed construction that is fabricated in an off-site facility and constructed in conformance with the federal construction and safety standards established by the secretary of housing and urban development pursuant to the "Manufactured Housing Construction and Safety Standards Act of 1974," 88 Stat. 700, 42 U.S.C.A. 5401, 5403, and that has a permanent label or tag affixed to it, as specified in 42 U.S.C.A. 5415, certifying compliance with all applicable federal construction and safety standards.

MARIJUANA

Pursuant Ohio Revised Code §3719.01 (M), "Marijuana" or "marihuana" means all parts of a plant of the genus cannabis, whether growing or not; the seeds of a plant of that type; the resin extracted from a part of a plant of that type; and every compound, manufacture, salt, derivative, mixture, or preparation of a plant of that type or of its seeds or resin.

"Marihuana" does not include the mature stalks of the plant, fiber produced from the stalks, oils or cake made from the seeds of the plant, or any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks, except the resin

extracted from the mature stalks, fiber, oil or cake, or the sterilized seed of the plant that is incapable of germination. "Marihuana" does not include "hemp" or a "hemp product" as those terms are defined in section [928.01](#) of the Revised Code.

MEDICAL MARIJUANA

Marijuana that is cultivated, processed, dispensed, tested, possessed, or used for a medical purpose.

NON-CONFORMING USE

A use of land or a structure lawfully existing at the effective date of this chapter or amendments thereto which does not conform to the use requirements set forth in this code for the district in which it is located of a building.

NON-CONFORMING SIGN

A pre-existing legal sign, which does not conform to the standards set forth in this code.

NURSERY, NURSING HOME

A home or facility for the care and treatment of babies, children, pensioners, or elderly people.

NURSERY. PLANT MATERIALS

Land, building, structure, or combination thereof for the storage, cultivation, transplanting of live trees, shrubs, or plants offered for retail sale on the premises including products used for gardening or landscaping.

OCCUPANCY PERMIT

A certificate of occupancy, obtained by the owner or agent of a building being altered, enlarged, constructed, or reconstructed, from the zoning inspector before the intended occupant resumes use of moves into the designated structure. If the structure has had occupants while being altered or enlarged, only the new sections will be involved in the occupancy permit.

OPEN SPACE

An area substantially open to the sky which may be on the same lot as a building. The area may include, along with the natural environmental features, water areas, swimming pools, and tennis courts, any other recreational facilities that the Zoning Commission deems permissive. Streets, parking areas, structures for habitation, and the like shall not be included.

PARKING SPACE. OFF-STREET

For the purpose of this resolution, an off-street parking space shall consist of an area adequate for parking an automobile with room for opening doors on both sides, together with properly related access to a public street or alley and maneuvering room located totally outside of any street or alley right-of-way.

PERFORMANCE BOND OR SURETY BOND

An agreement by a subdivider or developer with the Board of Township Trustees for the amount of the estimated construction cost guaranteeing the completion of physical improvements according to plans and specifications within the time prescribed by the subdivider's agreement.

PERSONAL SERVICES

Any enterprise conducted for gain which primarily offers services to the general public such as barber shops, beauty parlors, massage therapists, and similar activities.

PROFESSIONAL ACTIVITIES

The use of offices and related spaces for such professional services as are provided by medical practitioners, lawyers, architects, and engineers, and similar professions.

PUBLIC SERVICE FACILITY

The erection, construction, alteration, operation, or maintenance of buildings, power plants, or substations, water treatment plants or pumping stations, sewage disposal or pumping plants and other similar public service structures by a public utility, by a railroad, whether publicly or privately owned, gas, or by another government agency, including the furnishing of electrical, gas, rail transport, communication, public water, and sewage services.

PUBLIC USES

Public parks, schools, administrative and cultural buildings, and structures, not including public land or buildings devoted solely to the storage and maintenance of equipment and materials, and public service facilities.

PUBLIC WAY

An alley, avenue, boulevard, bridge channel, ditch, easement, expressway, freeway, highway, land, parkway, right-of-way, road, sidewalk, street, subway, tunnel viaduct, walk, bicycle path; or other ways in which the general public or a public entity have a right, or which are dedicated, whether improved or not.

QUASIPUBLIC USE

Churches, Sunday schools, parochial schools, colleges, hospitals, and other facilities of an educational, religious, charitable, philanthropic, or non-profit nature.

RECREATION

The refreshment of body and mind through forms of play, amusement, or relaxation. The recreational experience may be active, such as boating, fishing, and swimming, or may be passive, such as enjoying the natural beauty of the shoreline or its wildlife.

RECREATION CAMP

An area of land on which two or more recreational vehicles, tents or other similar temporary recreational structures are regularly accommodated with or without charge, including any building, structure, or fixture of equipment that is used or intended to be used in connection with providing such accommodations.

1. Recreation, Commercial: Any establishment whose main purpose is to provide the general public with an amusing or entertaining activity and where tickets are sold or fees are collected for the activity. Includes, but not limited to, skating rinks, water slides, miniature golf courses, arcades, bowling alleys, and billiard halls, but not movie theaters.
2. Recreation, Commercial Outdoor: Commercial recreation premises consisting of woodlands, water courses, and fields used for active recreational activities that do not require modifying the existing setting, including but not limited to, paintball, laser tag, and orienteering.

RECREATION FACILITIES

Public or private facilities may be classified as either "extensive" or "intensive" depending upon the scope of services offered and the extent of use. Extensive facilities require and utilize considerable areas of land and include, but need not be limited to hunting, fishing, and riding clubs and parks. Intensive facilities require less land (used more intensively) and include, but need not be limited to, miniature golf courses, amusement parks, stadiums, and bowling alleys.

RECREATIONAL VEHICLE

A vehicular, portable structure built on or carried on a chassis, designed to be used as a temporary dwelling for travel and recreational purposes, having a body width not exceeding eight and one-half (8.5') feet and a length not exceeding forty (40) feet (maximum of 400 sq. ft of living area). Representative of this type of unit is:

1. Travel trailer

2. Tent or pop-up trailer
3. Motor home
4. Fifth-wheel trailer
5. Pick-up camper
6. Van camper

Converted school and commercial passenger buses are sometimes used as recreational vehicles but do not carry the seal of the Recreational Vehicle organization.

RENEWABLE ENERGY RESOURCE

Renewable energy resource may refer to, but is not limited to: solar photovoltaic or solar thermal energy, wind energy, hydroelectric energy, geothermal energy, fuel derived from solid wastes by non-combustion means, biomass energy, and biologically derived methane gas.

RENEWABLE ENERGY EQUIPMENT

Any ground- or roof-mounted equipment erected for the express purpose of harvesting, storage, and distribution of renewable energy resources. Renewable energy equipment types may include, but are not limited to: ground- or roof-mounted solar panels, wind turbines, hydroelectric dams, small hydroelectric facilities, geothermal energy facilities, and solid waste fractionation or decomposition facilities.

RESEARCH ACTIVITIES

Research, development, and testing related to such fields as chemical, pharmaceutical, medical, electrical, transportation, and engineering. All research, testing, and development shall be carried out within entirely enclosed buildings, and no noise, smoke, glare, vibration, or odor shall be detected outside of said building.

RIGHT-OF-WAY

A strip of land taken or dedicated for use as a public way. In addition to the roadway, it normally incorporates the curbs, lawn strips, sidewalks, lighting, and drainage facilities, and may include special features (required by the topography or treatment) such as grade separation, landscaped areas, viaducts, and bridges.

SIGN

Any visual communication display, object, device, graphic, structure or part, situated indoors or outdoors, or attached to, painted on, or displayed from a building or structure in order to direct or attract attention to, or announce or promote, an object, product, place, activity, person, ideology, institution, organization, business, or the like, by means of letters, words, models, banners, flags, pennants, insignia, devices, designs, colors,

symbols, fixtures, images, illuminations, or representation used as, or which is in the nature of, an announcement, direction, advertisement or other message.

SITE-BUILT HOMES

The dwelling unit constructed on the lot in accordance with the BOCA Basic Building Code and inspected/approved by the Ashtabula County Department of Building Regulations.

SOLAR ENERGY STORAGE FACILITY

Equipment consisting of containers, heat exchanges, piping, and other transfer mechanisms (including fluids, gases, or solids), controls and related structural support for transporting and storing collected energy (from solar energy systems), including structural elements designed for use in passive solar energy systems.

STORY

That part of a building between the surface of a floor and the ceiling immediately above.

STRUCTURE

Anything constructed or erected, the use of which requires location on the ground, or attachment to something having a fixed location on the ground. Among other things, structures include buildings, manufactured homes, walls, fences, and billboards.

SUPPLY YARDS

A commercial establishment storing and offering for sale building supplies, steel supplies, coal, heavy equipment, feed and grain, and similar goods.

SWIMMING POOL

A structure, whether above or below grade level, designed to hold water more than 30 inches deep to be used for recreational purposes.

1. Private: Exclusively used without paying an additional charge for admission by the residents and guests of a single household, a multi-family development, or a community, the members and guests of a club, or the patrons of a motel or hotel; an accessory use.
2. Community: Operated with a charge for admission; a primary use.

THOROUGHFARE. STREET. OR ROAD

The full width between property lines bounding every public way of whatever nature, with a part thereof to be used for vehicular traffic and designated as follows:

1. Alley: A minor street used primarily for vehicular service access to the back or side of properties abutting another street.

2. Arterial Street: A general term denoting a highway primarily for through traffic, carrying heavy loads and large volume of traffic, usually on a continuous route.
3. Collector Street: A thoroughfare, whether within a residential, industrial, commercial, or other type of development, which primarily carries traffic from local streets to arterial streets, including the principal entrance and circulation routes within residential subdivisions.
4. Cul-de-Sac: A local street of relatively short length with one end open to traffic and the other end terminating in a vehicular turnaround.
5. Dead-end Street: A street temporarily having only one (1) outlet for vehicular traffic and intended to be extended or continued in the future.
6. Local Street: A street primarily for providing access to residential or other abutting property.
7. Loop Street: A type of local street, each end of which terminates at an intersection with the same arterial or collector street, and whose principal radius points of the one hundred and eighty (180) degree system of turns are not more than one thousand (1000) feet from said arterial or collector street, nor normally more than six hundred (600) feet from each other.
8. Marginal Access Street: A local or collector street, parallel and adjacent to an arterial or collector street, providing access to abutting properties and protection from arterial or collector streets. (Also called Frontage Street)

THROUGH LOT

See Lot Types.

TIME SHARING

A land-use concept which involves the transfer of ownership by deed of an undivided fee interest (share) in property to an individual or group of individuals for the use, occupancy, or possession of which circulates among owners according to a fixed or floating time basis.

TRANSPORTATION. DIRECTOR OF

The Director of the Ohio Department of Transportation.

USE

The specific purpose for which land or a building is designated, arranged, intended, or for which it is or may be occupied or maintained.

VARIANCE

A variance is a modification of the strict terms of the relevant regulations where such specific purpose peculiar to the property and not the result of the action of the applicant, a literal enforcement of the regulations would result in unnecessary and undue hardship.

VETERINARY ANIMAL HOSPITAL OR CLINIC

A place used for the care, grooming, diagnosis, and treatment of sick, ailing, infirm, or injured animals, and those who need medical or surgical attention, and may include overnight accommodations on the premises for the treatment, observation and/or recuperation. It may also include boarding that is incidental to the primary activity.

VICINITY MAP

A drawing located on the plat which sets forth by dimensions or other means, the relationship of the proposed subdivision or use to other nearby developments or landmarks and community facilities and services within the general area in order to better locate and orient the area in question.

WALKWAY

A public way, for pedestrian use only, whether along the side of a road or not.

WIND TURBINE

A wind energy conversion device that produces electricity; typically three blades rotating about a horizontal axis and positioned up-wind of the supporting tower.

YARD

An open-space area between the exterior side lot line and the required exterior side building setback line, extending between the front building setback line and the rear building setback line.

1. Yard, Front: A yard extending between side lot lines across the front of a lot and from the front lot line to the front of the principal building.
2. Yard, Rear: A yard extending between the side lot lines across the rear of a lot and from the rear lot line to the rear of the principal building.
3. Yard, Side: A yard extending from the principal building to the side lot line on both sides of the principal building between the lines establishing the front and rear yards.

Note: See Figures 1 & 2, Article 2, Pages 2-24 & 2-25.

ZONING PERMIT

A document issued by the Zoning Inspector authorizing the use of lots, structures, uses of land and structures, and the characteristics of the uses.

DRAFT

Article 3- Administration

Section 300 - Zoning Inspector

Section 300.01 - Office of Zoning Inspector Created

1. A Zoning Inspector, designated by the Saybrook Township Board of Trustees, shall administer and enforce this resolution, as prescribed by ORC §519.16.
2. The Zoning Inspector may be provided with the assistance of such other people as the Board of Township Trustees may direct.
3. The Township Zoning Inspector, before entering upon these duties, shall give bond as specified in ORC §519.161, and the bond shall be conditioned upon the faithful performance of such Zoning Inspector's official duties.

Section 300.02 - Duties of Zoning Inspector

For the purpose of this resolution, the Zoning Inspector shall have the following duties:

1. *Enforce the Zoning Resolution.* The Zoning Administrator/Inspector shall take all necessary steps to administer, interpret and enforce this Zoning Resolution and take all necessary steps to remedy conditions found in violation by ordering, in writing:
 - a. The discontinuance of illegal uses of land, buildings or structures;
 - b. Removal of illegal buildings or structures or of illegal additions, alterations or structural changes;
 - c. Discontinuance of any illegal work being done; or
 - d. Take any other action authorized by this Zoning Resolution to ensure compliance with or prevent violation of its provisions.
2. *Issue Zoning Permits.* The Zoning Inspector shall review all applications for Zoning Compliance and issue Zoning Permits in accordance with Section 1100 when the provisions of this Zoning Resolution have been met, or refuse to issue the same in the event of non-compliance.
3. *Collection of Fees.* To collect the designated fees as set forth in the current fee schedule for certificates of zoning compliance, application for amendment or changes to the Zoning Resolution, appeals, variances, and conditional use permits.
4. *Making and Keeping Records.* To make and to keep all records necessary and appropriate to the office, including record of the issuance and denial of all certificates of zoning compliance and of receipt of complaints of violation of this Zoning Resolution and action taken on the same.
5. *Inspection of Structures or Land.* To inspect any structure or land to determine whether any violations of this Zoning Resolution have been committed or exist and whether or not structures are in compliance with previously issued permits, including but not limited to permits of Zoning Compliance.
6. *Advise Zoning Commission.* To keep the Zoning Commission advised on all matters

pertaining to zoning amendments and records pertaining thereto and provide the Zoning Commission any requested reports which may provide background evaluations regarding any application sent before the Zoning Commission. To keep the Saybrook Township Zoning Commission advised of all matters pertaining to the code enforcement of this Zoning Resolution and to transmit all applications and records pertaining thereto.

7. *Advise Board of Zoning Appeals.* To keep the Board of Zoning Appeals advised of all matters pertaining to conditional use permits, appeals or variances and to transmit all applications and records pertaining thereto and provide the Board of Zoning Appeals any requested reports which may provide background evaluations regarding any application sent before the Board of Zoning Appeals.
8. *Monthly Reports.* The Zoning Inspector shall make monthly reports to the Saybrook Township Board of Trustees pertaining to the enforcement of this Zoning Resolution. The report shall document all actions taken during that period of time. Copies of the report shall be given to the Saybrook Township Board of Trustees, Zoning Commission, the Board of Zoning Appeals, and township administrative staff.
9. *All Other Duties.* The Zoning Inspector shall conduct any and all other duties to which they are assigned.

Section 310- Zoning Commission

Section 310.01 - Zoning Commission Created

1. In accordance with ORC §519.04 the Saybrook Township Zoning Commission is hereby created, which shall consist of five (5) members appointed by the Board of Township Trustees.
2. The terms of the members shall be of such length and so arranged that the term of one (1) member shall expire each year.
3. Each member shall be a resident of the unincorporated area of the Township.
4. Members of the Board may be removed from the office by the Board of Township Trustees for cause upon written charges and after a public hearing.
5. Vacancies shall be filled by appointment by the Board of Township Trustees for the unexpired term of the member affected.

Section 310.02- Proceedings of Zoning Commission

1. The Commission shall adopt rules necessary to the conduct of its affairs in keeping with the provisions of this resolution and in accordance with the Ohio Revised Code.
2. Meetings shall be held at the call of the chairperson and at such other times as the Commission may determine. A yearly organizational meeting shall be held, even in the event of no cases.
3. All meetings of the Zoning Commission shall be open to the public.
4. The Commission shall keep minutes of its proceedings including:
 - a. The vote of each member upon each question;
 - b. Indication of absence or failure to vote; and

- c. Records of its examinations and other official actions, all of which shall be a public record and be immediately filed in the office of the Zoning Inspector.

Section 310.03 - Powers and Duties of Zoning Commission

For the purpose of this resolution the Commission shall have the following duties:

1. Initiate amendments to the Zoning Resolution by motion and/or in accordance with the procedures outlined in ORC 519.12 and Article 12 of the Zoning Resolution;
2. Hold public hearings regarding any and all applications submitted to the Zoning Inspector that are required by this code to be heard by the Zoning Commission for recommendation or approval before being heard by the Township Trustees; and
3. Hold the public hearings required by the ORC 519.12 with regard to any amendments to the Zoning Resolution initiated by the Township Trustees or by one (1) or more of the owners of property located within the unincorporated area of the township.
4. Keep record of changes to the Official Zoning Map or Zoning Resolution, and file all zoning decisions with the Ashtabula County Recorder.

Section 320- Board of Zoning Appeals

Section 320.01 - Board of Zoning Appeals Created

1. A Board of Zoning Appeals is hereby created, which shall consist of five (5) members to be appointed by the Board of Township Trustees.
2. The terms of the members shall be of such length and so arranged that the term of one (1) member shall expire each year.
3. Each member shall be a resident of the unincorporated areas of the Township.
4. Members of the Board may be removed from the office by the Board of Township Trustees for cause upon written charges and after a public hearing.
5. Vacancies shall be filled by appointment by the Board of Township Trustees for the unexpired term of the member affected.

Section 320.02 - Proceedings of the Board of Zoning Appeals

1. The Board shall adopt rules necessary to the conduct of its affairs in keeping with the provisions of this resolution.

2. Meetings shall be held on the call of the chairperson and at such other times as the Board may determine.
3. The chairperson, or in his absence the acting chairperson, may administer oaths and compel the attendance of witnesses.
4. All meetings shall be open to the public.
5. The Commission shall keep minutes of its proceedings including:
 - a. The vote of each member upon each question
 - b. Indication of absence or failure to vote.
 - c. Records of its examinations and other official actions all of which shall be a public record and be immediately filed in the office of the Commission.

Section 320.03 - Powers and Duties of the Board of Zoning Appeals

The BZA shall have the following powers and duties:

1. *Administrative Review.* To hear and decide appeals where it is alleged there is error in any order, requirement, decision, or determination made by the Zoning Inspector in the enforcement of this Zoning Resolution.
2. *Conditional Use.* To authorize only such conditional uses as the BZA is authorized to permit in accordance with this Zoning Resolution.
3. *Variances.* To hear and decide in specific cases such variance from the terms of this Zoning Resolution as will not be contrary to the public interest where, owing to special conditions on the land, a literal enforcement of the provisions of this Zoning Resolution would create a practical difficulty or hardship to the applicant. In granting such variance, the BZA shall prescribe appropriate conditions and safeguards to maintain the intent and spirit of the zoning district in conformity with this Zoning Resolution.

Section 320.04 - Duties of Zoning Inspector, Board of Zoning Appeals, Legislative Authority & Courts on Matters of Appeal

1. All questions of interpretation and enforcement shall be first presented to the Zoning Inspector, and that such questions shall be presented to the Board only on appeal from the decision of the Zoning Inspector, and that recourse from the decisions of the Board shall be to the courts as provided by law.
2. The duties of the Board of Township Trustees in connection with this resolution shall not include hearing and deciding questions of interpretation and enforcement that may arise.
3. The procedure for deciding such questions shall be as stated in this section and this resolution.
4. The Board of Township Trustees shall have only the duties of considering and adopting or rejecting proposed amendments or the repeal of this resolution as provided by law, and of establishing a schedule of fees and charges as stated in

Section **SECTION NUMBER NEEDED** of this resolution.

5. Nothing in this resolution shall be interpreted to prevent any official of the Township from appealing a decision of the Board to the courts as provided in Chapters 2505 and 2506 of the Ohio Revised Code.
 - a. Any such appeal shall be made within ten (10) days of the Board's written decision.

Section 320.05 - Procedure for Authorizing a Conditional Use

1. *Nature of Conditional Uses.* Specifically listed conditional uses are provided within each of the zoning districts in the use schedules of Article 5 of this Resolution. Such uses, although often desirable, will more intensely affect the surrounding area in which they are located than the permitted uses of such zoning districts.
2. *Written Applications.* One (1) copy of the conditional use application shall be filed with the Zoning Inspector.
3. *Description of Property and Intended Use.* The application shall include the following statements:
 - a. A legal description of the property;
 - b. The proposed use of the property;
 - c. A statement of the necessity or desirability of the proposed use to the neighborhood or community;
 - d. A statement of the relationship of the proposed use to adjacent property and land use;
 - e. Such other information regarding the property, proposed use, or surrounding area as may be pertinent to the application or required for appropriate action by the BZA; and
 - f. A list of owners of property within, contiguous to, directly across the street from, and within one thousand (1,000) feet of such area proposed to be considered for a conditional use. Such list to be in accordance with the Ashtabula County Auditor's current tax list, and shall include all owners' addresses.
4. *Site Plan.* One (1) copy of a site plan, drawn to scale, clearly showing the following, shall accompany the application:
 - a. The boundaries and dimensions of the lot;
 - b. The size and location of existing and proposed structures;
 - c. The proposed use of all parts of the lot and structures, including access ways, walks, off-street parking and loading spaces, and landscaping;
 - d. The relationship of the proposed development to the development standards; and
 - e. The current use of the land and the location of structures on adjacent properties.

5. *Additional Review.* Review by the county or regional planning commission or any other technical agencies, or a person qualified in land use planning, or legal counsel as designated by Saybrook Township BZA, may be required.

Section 320.06 - Actions of the Board of Zoning Appeals – Conditional Uses

The BZA shall fix a reasonable time for a public hearing of the application, give at least ten (10) days' notice in writing to the parties in interest, give notice of such public hearing by publication in one (1) or more newspapers of general circulation in the township, or on the township website, at least ten (10) days before date of such hearing, and shall hold a public hearing and act on a conditional use in one of the following ways:

1. *Approval.* The BZA may approve an application for a conditional use if the following conditions are met:
 - a. The proposed use is a conditional use of the zoning district, and the applicable development standards established in this Zoning Resolution are met;
 - b. The proposed development is in accord with appropriate plans for the area;
 - c. The proposed development will be in keeping with the existing land use character and physical development potential of the area; and
 - d. There is a necessity or desirability of the proposed use to the neighborhood or community in granting any conditional use application, the BZA may prescribe appropriate conditions and safeguards in conformity with this Resolution. Violation of such conditions and safeguards, when made a part of the terms under which the request for a conditional use is granted, shall be deemed a violation of this Resolution.
2. *Approval with Modification.* The BZA may approve with modification an application for a conditional use, if the applicable development standards are met, but site plan modification is required to be in accordance with appropriate plans for the area and to mitigate undesirable effects on adjacent properties. Such modification may include:
 - a. Limitation on the extent or intensity of the development;
 - b. Requirement for additional screening by fencing or landscaping;
 - c. A change in the method or plan for lighting;
 - d. A required alteration in the plan for access management; or
 - e. Other conditions of development as may be required.
3. *Disapproval.* The BZA shall only disapprove an application for a conditional use for any of the following reasons:
 - a. The proposed use is not a conditional use of the zoning district, or the applicable development standards are not and cannot be met.

- b. The proposed development is not in accord with appropriate plans of the area.
 - c. The proposed development will have undesirable effects on the surrounding area and is not in keeping with the existing land use character and physical development potential of the area.
4. *Expiration.* If an approved Conditional Use discontinues for two (2) years, the Conditional Use Permit shall expire.

Section 320.07 - Criteria for the Approval of a Conditional Use Permit

In addition to the specific requirements for conditionally permitted uses as specified in supplemental and use-specific standards, the Board shall review the particular facts and circumstances of each proposed use in terms of the following standards and shall find adequate evidence showing that such use at the proposed location:

1. Is in fact a conditional use as established under the provisions of Article 5 and appears on the Official Schedule of District Regulations for the zoning district involved;
2. Will be harmonious with and in accordance with the general objectives, or with any specific objective of the Township's comprehensive plan and/or zoning resolution;
3. Will be designed, constructed, operated, and maintained so as to be harmonious and appropriate in appearance with the existing or intended character of the general vicinity and that such use will not change the essential character of the same area;
4. Will not be hazardous or disturbing to existing or future neighboring uses;
5. Will be served adequately by essential public facilities and services as highways, streets, police and fire protection, drainage structures, refuse disposal, water and sewer, and schools; or that the persons or agencies responsible for the establishment of the proposed use shall be able to provide adequately any such services;
6. Will not create excessive additional requirements at public cost for public facilities and services and will not be detrimental to the economic welfare of the community;
7. Will not involve uses, activities, processes, materials, equipment, and conditions of operation that will be detrimental to any persons, property, or the general welfare by reason of excessive production of traffic, noise, smoke, fumes, glare, or odors;
8. Will have vehicular approaches to the property which shall be so designed as not to create an interference with traffic on surrounding public thoroughfares;
9. Will not result in the destruction, loss, or damage of a natural, scenic, or historic feature of major importance.

Section 320.08 Procedure & Requirements for Variances

1. *Nature of Variances.* Extraordinary circumstances may exist on any property which makes a strict enforcement of the applicable development standards of the Zoning Resolution unreasonable. Therefore, the procedure for variance from development standards is provided to allow the township the flexibility necessary to adapt to changed or unusual conditions which create a practical difficulty to the

applicant with regard to their ability to meet the development standards of this Zoning Resolution.

2. *Written Application.* One (1) copy of a variance application accompanied with a copy of the denied application for a certificate of zoning compliance shall be filed with the Zoning Inspector not more than twenty (20) days from the date such denial of the certificate of zoning is issued.
3. *Description of Property and Nature of Variance.* The application shall include the following statements:
 - a. The nature of the variance, i.e., include the specific provisions of the Zoning Resolution upon which the variance is requested;
 - b. A legal description of the property;
 - c. A statement of the special circumstances or conditions applying to the land or structure and not applying generally throughout the zoning district;
 - d. A statement showing that the granting of the application is necessary to the preservation and enjoyment of substantial property rights;
 - e. A list of owners of property within, contiguous to, directly across the street from, and within one thousand (1,000) feet of such area proposed to be considered for variance. Such list to be in accordance with the Ashtabula County Auditor's current tax list, and shall include all owners' addresses; and
 - f. Such other information regarding the application for variance as may be required by the BZA.
4. *Site Plan.* The application shall include one (1) copy of a site plan drawn to an appropriate scale showing the following:
 - a. The boundaries and dimensions of the lot;
 - b. The nature of the special conditions or circumstances giving rise to the application for approval;
 - c. The size and location of existing and proposed structures;
 - d. The proposed use of all parts of the lot and structures, including access ways, walks, off-street parking and loading spaces, and landscaping;
 - e. The relationship of the requested variance to the development standards; and
 - f. The use of land and location of structures on adjacent properties.
5. *Additional Review.* Review by the county or regional planning commission or any other technical agencies, a person qualified in land use planning, or legal counsel as designated by BZA, may be required.
6. *Stay of Proceedings.* Filing an appeal halts all related proceedings unless the Zoning Inspector certifies to the Board of Zoning Appeals that, based on the application, a stay would pose imminent danger to life or property. In such cases, proceedings shall not be stayed other than by a restraining order/injunction which

may be granted by the Board of Zoning Appeals or by a court of record on application, on notice to the Zoning Inspector from whom the appeal is taken on due cause shown.

Section 320.09 - Actions of the Board of Zoning Appeals - Variance

The BZA shall fix a reasonable time for a public hearing of the application, and shall give at least ten (10) days' notice in writing to the parties in interest. Notice of such hearing shall be given in one or more newspapers of the general circulation of the Township, or on the Township website in the same time frame. The notice shall set forth the time and place of the public hearing, and the nature of the proposed appeal or variance.

1. *Approval/Disapproval of Variance.* Within thirty (30) days after the public hearing, the BZA shall make a determination on a request for variance based upon the consideration of the following factors:
 - a. That the property would yield a reasonable return or whether there could be any beneficial use of the property without the variance;
 - b. Whether the variance is substantial;
 - c. Whether the essential character of the neighborhood would be substantially altered or whether the adjoining properties would suffer a substantial detriment as a result of the variance;
 - d. Whether the variance would adversely affect the delivery of governmental services (i.e., water, sewage, garbage);
 - e. Whether the property owner purchased the property with knowledge of the zoning restrictions;
 - f. Whether the property owner's predicament can feasibly be obviated through some method other than a variance;
 - g. Whether granting the variance requested will confer on the applicant any special privilege that is denied by this resolution to other lands, structures, or buildings in the same district; and
 - h. Whether the spirit and intent behind the zoning requirements would be observed and substantial justice done by granting the variance.
2. *Supplementary Conditions and Safeguards.*
 - a. The Board of Zoning Appeals shall not grant an appeal or variance to allow a use not permissible under the terms of this resolution in the district involved, or any use expressly or by implication prohibited by the terms of this resolution in said district.
 - b. In granting any appeal or variance, the Board of Zoning Appeals may prescribe appropriate conditions and safeguards, when made a part of the terms under which the appeals or variance is granted, shall be deemed a violation of this resolution and punishable under the provisions of Article 11 of this resolution.

Article 4- Establishment of Official Zoning Map & Districts

401	Intent.		boundaries.
402	Districts established.	406	Conformity with district
403	Establishment of regulations.	404	regulations ; dimensions and
	Official Zoning Maps.		area of yards and lots.
405	Determination of district		

Section 401 Intent.

The following official zoning map and zoning districts are hereby established for the Township of Saybrook, Ohio. For the interpretation of this resolution the zoning map and districts have been formulated to realize the general purposes as set forth in the preamble of this resolution.

Section 402 Districts Established.

- (a) The Township is divided into the following districts, all of which are designated on the zoning map by symbols and boundaries:

District Type	Abbreviation	Purpose
Residential Districts		
Residential Agriculture	RA	Low-density single family and two-family dwellings with lot sizes sufficient for individual water and sewer facilities.
Residential Suburban	RS	Strictly single-family residential
Residential Resort	RR	Lakefront-oriented residential.
Residential Multi Family	RM	Medium-high density multi-family dwellings.
Commercial & Mixed-Use Districts		
Commercial Business District	C-1	General commercial
Mixed-Use Activity Center	AC	Residential and commercial mixed-use district
Industrial Districts		
Industrial District	I	Manufacturing and Industrial Uses
Industrial Park District	IP	Established Industrial Parks
Other Districts		
Special Purpose District	SP	Parks, recreation, government and public facilities
Planned Unit Development	PUD	Planned Unit developments

- (b) The above classification of districts shall not be construed as an enumeration of most restrictive to less restrictive districts.
- (c) The purpose of the Schedule of Uses- Article 6- is to list different land uses and specify what districts within the community allow those uses. Any uses not listed in the Schedule of Uses are prohibited.

Section 403 Establishment of Regulations.

- (a) **Base Zoning Districts.** Each of the base zoning districts listed in Section 402 above includes a list of the land uses allowed for that base district, subject to the applicable development standards and the requirements for development approval. On the Official Zoning Map, a standard zoning district shall be labeled using the abbreviation shown in Section 402.
- (b) **Overlay Zoning Districts.**
 - (1) Overlay zoning districts supplement, but do not replace, the base zoning district regulations in the areas where the overlay zoning districts are applied.
 - (2) An overlay zoning district may add restrictions on the use of property in the underlying base zoning district or may remove restrictions on the use of property in the underlying zoning district, or both.
 - (3) In the event of an inconsistency between the overlay zoning district regulations and the base zoning district regulations, the overlay zoning district regulations shall apply.
 - (4) The Official Zoning Map designates where overlay zoning districts apply.

Section 404 Official Zoning Map.

The location and boundaries of the districts established are indicated on a map entitled "Official Zoning Map," which map has been approved and recommended by the Zoning Commission and shall be identified by the signature of the Chairperson of the Board of Township Trustees, attested by the Township Clerk, and bearing the seal of the Township. The Official Zoning Map, as presently constituted, or as amended, shall be a part of this Zoning Code and shall be located in the office of the Zoning Administrator.

Section 405 Determination of District Boundaries

Where uncertainty exists with respect to the boundaries of any of the zoning districts as shown on the Official Zoning Map, the following rules shall apply:

1. Boundaries indicated as approximately following the centerlines of streets shall be construed to follow such centerlines.
2. Where district boundaries are so, indicated that they approximately follow the lot lines, such lot lines shall be construed to be said boundaries;
3. Where the district boundary line is shown by dimension or relationship as being located a specific distance from and/or parallel to a street line, said distance shall control;
4. Boundaries indicated as following a railroad line shall be construed to be midway between the main track.
5. Where the boundary of a district follows a stream, lake, or other body of water, said boundary line shall be deemed to be at the limit of the jurisdiction of the Township unless otherwise indicated.
6. Boundaries indicated as parallel to or extensions of features indicated in subsections (a)(1) through (a)(5) hereof shall be so construed. Distances not specifically indicated on the Official Zoning Map shall be determined by the scale of the Map.
7. (7) Where physical features existing on the ground are at variance with those shown on the Official Zoning Map or in other circumstances not covered by subsections (a)(1) through (a)(5) hereof, the Planning Commission shall interpret the district boundaries.
8. Vacation of Public Ways. Whenever any street or public way is vacated by official action of Council, the zoning district adjoining each side of the street or public way shall be automatically extended to the center of such vacation and all area included in the vacation shall thereafter be subject to all regulations of the extended districts.

Article 5- Establishment and Purpose of Districts

Section 500 General Use Regulations.

- (a) Use schedule Summary. Schedule XXX-XXX below set forth the uses allowed in each district by type. The abbreviations used in the Schedules indicate the following:

1. Uses Permitted by Right. A “P” in a cell indicates that the use is allowed by-right as a principal use in the respective district.

1. **Conditional Uses.** A “C” in a cell indicates that the use is regulated as a conditional use. The use is permitted in the respective district only after an applicant receives Conditional Use approval pursuant to Article XXX.

2. **Accessory Uses.** An “A” in a cell indicates that the use is a permitted accessory use, provided it is clearly incidental and subordinate to a permitted principal or conditional use listed in Section XXX.

3. **Uses with Supplementary Regulations.** A use listed in Schedule XXX and denoted by an “*” in a cell, such as P*, C* or A*, indicates that the use must also comply with the additional requirements cross-referenced in the right-hand column of the Schedule.

4. **Use Not Permitted.**

A. The letters “NP” in a District column indicate that the use is not allowed in that zoning district.

B. Any use not specifically listed in Schedule XXX is a prohibited use and shall only be permitted upon amendment of this Code as provided in Article XXX or upon a finding by the Planning Commission that such use is substantially similar to a specified permitted or conditionally permitted use listed in Schedule XXX, pursuant to Article XXX Similar Use Determination.

- (b) **Compliance with Standards.** Although a use may be indicated as a permitted use in a particular district, it shall not be approved on a lot unless it can be located thereon in full compliance with all of the standards and other regulations of this Code applicable to the specific use and lot in question, including but not limited to any supplemental use-specific standards cross-referenced in Schedule XXX.

- (c) **Organization of Use Table.** In the Use Table, land uses are classified into general use categories and specific uses based on common physical or functional characteristics, such as type of dwelling unit, amount of activity generated by the use, and site conditions. Whenever a standard or reference is made to a general use category

throughout this code, it shall include the specific uses in that category.

Section 502 Residential Districts.

Section 502.01 Residential Districts Intent

Residential districts and their regulations are established, among others, to meet the following purposes:

- (a) To permit residential development of a more rural nature in areas not expected to have public facilities in the near future.
- (b) To permit the establishment of moderate density housing developments in areas with adequate water and sewer service.
- (c) To reflect the existing substantially developed patterns in certain areas of the township and facilitate investment that is within the community interest without the unreasonable necessity of requiring variances;
- (d) To satisfy individual housing preferences and foster a variety of residential living options with respect to lot size and density, while protecting the character of the township.

The individual residential districts are intended to fulfill the following purposes:

- (a) The Residential Agriculture District (RA) is intended to accommodate very low-density residential development on large parcels in areas where public water and sewer service is not available or planned, while preserving opportunities for agricultural and rural land uses.
- (b) The Residential Suburban District (RS) provides for conventional single-family neighborhoods at densities appropriate for areas with or planned for public utilities.
- (c) The Residential Resort District (RR) recognizes the unique character of lakefront areas and establishes standards that protect water quality while allowing residential development oriented toward recreational lake access.
- (d) The Residential Multi-Family District (RM) accommodates a range of housing types including townhouses, condominiums, and apartment buildings at densities that require full public water and sewer service.

These districts implement the Township's policies for directing growth to appropriate locations, protecting environmentally sensitive areas, ensuring adequate public facilities, and maintaining compatibility between different residential intensities and adjacent land uses.

Section 502.02 Residential Schedule of Permitted Uses.

Use	District			
A. Residential Uses	RA	RS	RR	RM
Single Family Dwelling	P	P	P	NP
Two Family Dwelling	P	NP	P	NP
Multi-Family Dwelling	NP	NP	NP	P
Manufactured Housing	P	P	P	NP
B. Commercial Uses				
Personal Services	C*	C*	C*	NP
C. Industrial Uses				
	NP	NP	NP	NP
D. Recreational Uses				
Tennis Courts	C*	C*	C*	P
Swimming Pools	P	P	P	P
E. Institutional Uses				
Churches	P	P	P	NP
Schools	P	P	P	P
Hospitals	P	P	P	NP
Libraries	P	P	P	P
Government Buildings	P	P	P	P

Section 502.03 Residential Minimum Lot Requirements.

Standard	District			
	RA	RS	RR	RM
<i>(1) Lot Size (SF)</i>				
A. On-Site Sewage	40000	40000	40000	
B. Shared Sewage	7,500	4,500	3,000	15,000
<i>(2) Lot Width</i>	100*	75*	50*	120
<i>(3) Maximum Lot Coverage %</i>	20	20	30	50
<i>(4) Floor Area Minimum (SF)</i>	1650	1650	1200	1000

Section 502.04 Principal Building Setback and Height Standards.

Standard	District			
	RA	RS	RR	RM
<i>(1) Minimum Setbacks for Principal Structures</i>				
A. Front Yard	40	40	30	40

B. Side Yards				
One Side	10	10	5	15
Total	20	20	10	30
C. Rear Yard	10	10	5	15
(2) Maximum Height (ft)	35	35	30	50
Stories	3	3	2.5	5

Section 502.05 Accessory Building Setback and Height Standards.

Standard	District			
	RA	RS	RR	RM
(1) Maximum Height for Accessory Structures	35	35	30	20
(2) Setbacks for Accessory Structures				
A. Side Yard	10	10	5	15
B. Rear Yard	10	10	5	15

Section 502.05 Residential Special Conditions and Restrictions.

A. Home Occupations

1. Purpose and Intent

- a. Home occupations provide opportunities for residents to operate businesses from their homes while maintaining the primarily rural residential character of Saybrook Township. These regulations are intended to:

1. Allow residents to engage in economic activity compatible with rural living;
2. Ensure home occupations remain secondary or subordinate to residential use;
3. Prevent impacts that would alter neighborhood character;
4. Protect agricultural operations and rural viewsheds;
5. Maintain environmental quality and prohibit noxious or hazardous uses; and
6. Provide clear development standards for Township residents, Home Occupation owners, and Township Staff.

2. General Standards

All home occupations, regardless of category, shall comply with the following standards

- a. Principal Residence: The home occupation must be conducted by a resident of the dwelling who maintains it as their primary residence.
- b. Secondary Use: The home occupation shall be clearly secondary to the residential use of the property. The property must maintain a residential appearance from public roads and adjacent properties.

- c. On-Site Employees: Non-resident employees are permitted only as specified for each category. Family members residing on the property are not counted as employees.
 - d. Outdoor Storage: No outdoor storage of materials, equipment, or inventory associated with the home occupation shall be visible from public roads or adjacent properties, except for agricultural-related operations.
 - e. Prohibited Activities: The following are prohibited for all home occupations:
 - 1. Activities generating excessive noise, vibration, dust, odor, or glare;
 - 2. Use or storage of hazardous materials beyond normal household quantities;
 - 3. Activities requiring special permits under fire or building codes; or
 - 4. Any activity that would increase fire hazard or risk to public safety.
 - f. Agricultural Operations: Standard agricultural operations on parcels over 5 acres are exempt from home occupation licensing per ORC 519.21, except in platted subdivisions.
 - g. Permit Required: All home occupations require a home occupation permit issued by the Zoning Inspector, renewable annually.
3. Category I Home Occupations
- a. Definition and Purpose
 - 1. Category I Home Occupations are home occupations of lower intensity which generally require administrative review with lower scrutiny. Low-intensity home occupations have very limited operating hours, traffic circulation, noise, or other externalities which could potentially alter neighborhood character.
 - b. Permitted Category I Home Occupations

The following are non-exhaustive examples of Category I Home Occupations:

 - 1. Professional services (bookkeeping, tax preparation, consulting)
 - 2. Art studios and craft production
 - 3. Computer services and web design
 - 4. Writing, editing, and publishing
 - 5. Music instruction (limited students)
 - 6. Small-scale agricultural product sales
 - 7. Cottage food operations
 - 8. Professional services (architecture, engineering, surveying, legal, accounting)
 - c. Category I Qualifications
 - 1. Hours of Operation
 - a. No business-related visitors permitted between 10:00 PM and 6:00 AM
 - b. Exception: Agricultural operations may conduct activities consistent with normal farming schedules
 - 2. Traffic and Parking
 - a. Maximum of 4 business-related visitors per day
 - b. Maximum of 2 business-related visitors at any one time

- c. Business-related deliveries limited to 2 per day by vehicles under 26,000 lbs. GVWR
 - d. Off-street parking must be provided for all business-related vehicles
 - e. No commercial vehicles over 24 feet in length, except agricultural equipment
- 3. Location of Activities
 - a. Home occupation conducted primarily within the principal dwelling
 - b. Up to 25% of accessory structures (barns, outbuildings) may be used with Zoning Inspector approval
 - c. No activities in required setback areas without variance
- 4. Floor Space Limitations (any one of the following)
 - a. Maximum 25% of dwelling unit floor area, OR
 - b. Maximum 50% of basement area, OR
 - c. Maximum 500 square feet of accessory structure space
- 5. Signage
 - a. One non-illuminated sign not exceeding 4 square feet
 - b. Sign must be attached to dwelling or accessory structure, or ground-mounted
 - c. Rural character and materials required (wood, metal, natural materials)
 - d. No electronic, animated, or off-premise signs
- 6. External Appearance
 - a. No alteration to residential character of property visible from roads or adjacent properties
 - b. Equipment, materials, and inventory must be stored inside structures
 - c. No outside display of merchandise except for on-site agricultural products
- 7. Agricultural-Related Home Occupations
 - a. On-site sales of agricultural products grown, raised, or produced on the property
 - b. Processing of on-site agricultural products allowed
 - c. Value-added agricultural products (jams, honey, baked goods from farm products)
- 8. Child Care and Educational Services
 - a. Maximum 6 children (including operator's own children under age 6)
 - b. Maximum 8 children per day
 - c. Outdoor play areas must meet state licensing requirements
 - d. Drop-off/pick-up traffic limited to 16 vehicle stops per day
- 9. Music, Art, or Dance Instruction
 - a. Maximum 4 students at any one time
 - b. Maximum 8 students per day

- c. No more than 3 instructional sessions per day
 - d. Adequate parking for all students/parents
 - 10. Personal Services
 - a. Maximum 2 clients at any one time
 - b. Includes: hairdressing, pet grooming (no overnight boarding), personal training, massage therapy (State licensed only)
 - c. Separate entrance not required but preferred
 - 11. Sales Activities
 - a. Direct sales to visitors permitted only if products stored inside approved structures
 - b. Internet-based sales permitted
 - c. No retail display visible from exterior
- 4. Category II Home Occupations
 - a. Definition and Purpose
 - 1. Category II Home Occupations are home occupations which are generally higher in use intensity and potential externalities, and thus generally require greater administrative scrutiny upon seeking approval. Higher-intensity home occupations may feature expanded operating hours, traffic circulation, noise, or other externalities which could potentially alter neighborhood character.
 - b. Category II Approval Required
 - A Category II Conditional Use Permit is required when:
 - 1. Business cannot comply with all Category I qualifications
 - 2. Higher traffic volumes are anticipated
 - 3. Non-resident employees will be present
 - 4. Outdoor activities are proposed
 - 5. Use of accessory structures exceeds Category I limits
 - 6. Activities involve equipment or processes requiring special review
 - 7. Multiple home occupations proposed on same property
 - c. Category II Review Standards

The Board of Zoning Appeals shall only approve a Category II Home Occupation upon finding that the applicant meets the following criteria:

 - 1. Compatibility: The proposed use is compatible with the rural residential character of the area
 - 2. Traffic: Adequate access, parking, and traffic circulation can be provided without adverse impact to rural roads
 - 3. Environmental: No adverse impacts to water quality, agricultural lands, or sensitive environmental areas
 - 4. Neighbor Impact: The use will not create unreasonable noise, lighting, odor, or visual impacts on adjacent properties
 - 5. Safety: Adequate fire protection and emergency access exists
 - 6. Infrastructure: Existing infrastructure (roads, utilities) can accommodate the use

d. Category II Use-Specific Standards

1. Enhanced Child Care and Educational Services

For operations exceeding 6 children:

- a. Maximum 12 children at any one time
- b. Maximum 16 children per day
- c. Traffic Plan approved by Ashtabula County Engineer may be required
- d. Adequate turnaround and drop-off areas required
- e. Maximum 32 vehicle stops per day
- f. Outdoor play areas meeting state requirements
- g. Enhanced parking (minimum 4 spaces plus drop-off area)
- h. Separation of 500 feet from other Category II home-based child care facilities

2. Workshops and Light Manufacturing

For carpentry, welding, furniture making, upholstery, metalworking, and similar activities:

- a. Maximum 1 non-resident employee
- b. All activities must be conducted entirely within enclosed structures
- c. Hours of operation limited to 7:00 AM - 7:00 PM
- d. Noise levels must not exceed residential standards at property line
- e. No outdoor storage of materials or equipment
- f. Adequate ventilation and safety systems required
- g. Compliance with all fire and building codes

3. Agricultural Processing Operations

For commercial-scale processing exceeding cottage food operations:

- a. Processing of agricultural products not grown on-site
- b. Value-added manufacturing of agricultural products for wholesale
- c. Maximum 2 non-resident employees
- d. State and county health department permits required
- e. Adequate waste disposal and water supply
- f. Hours of operation: 6:00 AM - 8:00 PM
- g. Commercial vehicle access must be adequate
- h. No adverse impact on water quality in EP Overlay areas

4. Vehicle-Based Businesses

For businesses requiring commercial vehicles, equipment storage, or fleet vehicles:

- a. Maximum 2 commercial vehicles over 24 feet in length
- b. All vehicles must be parked on hard surface areas (concrete, asphalt, gravel)
- c. Vehicles stored behind principal dwelling when possible
- d. No major repairs, painting, or servicing on-site
- e. Maximum 1 non-resident employee
- f. Screening from adjacent residential properties required

5. Higher Traffic Operations

When business will generate traffic exceeding Category I limits:

- a. Maximum 10 business-related visitors per day
- b. Maximum 4 visitors at any one time
- c. Traffic Plan required showing adequate parking and circulation
- d. No adverse impact to rural road character
- e. Enhanced off-street parking required (minimum 3 spaces plus operator)

6. Outdoor Activities

When business proposes outdoor activities:

- a. Outdoor instruction (yoga, fitness training, riding lessons, etc.)
- b. Maximum 6 participants at any one time
- c. Hours limited to 8:00 AM - 7:00 PM
- d. Activities must not be visible from adjacent residential properties
- e. Adequate screening and buffering required
- f. No permanent outdoor structures without separate approval

7. Bed and Breakfast (Limited)

Small-scale lodging in owner-occupied dwelling:

- a. Maximum 4 guest rooms
- b. Owner must reside on premises
- c. Minimum 5-acre parcel
- d. Adequate parking and septic capacity
- e. State and county health permits required
- f. No special events or weddings without separate approval
- g. Rural character maintained
- h. Signage limited to 6 square feet

8. Event Venues (Agricultural)

Farm-based event venues on parcels over 5 acres:

- a. Maximum 6 events per year
- b. Maximum 300 guests per event
- c. Agricultural character must be predominant use of property
- d. Adequate parking and access required
- e. Events limited to daylight hours or ending by 11:00 PM
- f. Traffic management plan required
- g. Portable sanitation facilities required
- h. No adverse impacts to neighboring properties

5. Prohibited Home Occupations

The following uses are prohibited as home occupations in all districts due to incompatibility with rural residential character:

- a. Medical Facilities (hospitals, clinics, dental offices, urgent care centers, surgical facilities)
- b. Veterinary Services (animal hospitals, veterinary clinics - mobile services permitted under Category I)
- c. Mortuary Services (funeral homes, mortuaries, crematoriums)

- d. Automotive Services (auto body repair, vehicle painting, major mechanical repair, salvage operations)
 - e. Commercial Kennels (commercial dog breeding, boarding kennels - hobby breeding under state limits permitted and equestrian kennels permitted)
 - f. Heavy Manufacturing (industrial machinery, assembly lines, processes generating significant impacts)
 - g. Adult-Oriented Businesses (adult entertainment, sexually oriented businesses)
 - h. Cannabis Operations (cultivation, processing, or dispensing)
 - i. Truck Terminals (trucking operations, freight terminals, distribution centers)
 - j. Restaurants (full-service - catering from approved kitchen permitted)
 - k. Retail Stores (general merchandise retail)
 - l. Salvage Operations (scrap metal, recycling centers, salvage yards)
 - m. Hazardous Activities (explosives, hazardous waste, materials requiring special permits)
 - n. High-Traffic Generators (uses generating more than 24 vehicle stops per day without conditional use permit)
6. Application and Review Procedures
- a. Category I Application
 - 1. Application submitted to Zoning Inspector with:
 - a. Completed application form
 - b. Site plan showing structures, parking, and activity areas
 - c. Description of business activities
 - d. Estimated traffic and parking needs
 - e. Proof of any required state/county licenses
 - f. Fee as established by Township
 - 2. Zoning Inspector review within 30 days:
 - a. Verify compliance with all Category I standards
 - b. Conduct site inspection if necessary
 - c. Issue permit with conditions or deny with written reasons
 - d. Annual renewal required with fee
 - b. Category II Application
 - 1. Pre-application conference with Zoning Inspector recommended
 - 2. Application submitted to Zoning Inspector with:
 - a. All items required for Category I
 - b. Detailed operational plan
 - c. Traffic study if required
 - d. Evidence of adequate infrastructure
 - e. Neighbor notification list (properties within 500 feet)
 - f. Planning Commission review and recommendation
 - 3. Public hearing before Board of Zoning Appeals:
 - a. Notice to property owners within 500 feet
 - b. Hearing conducted per Article VIII procedures
 - c. Board may approve, approve with conditions, or deny

4. Conditional Use Permit valid indefinitely unless:
 - a. Conditions violated
 - b. Business discontinued for 12 consecutive months
 - c. Material change in operations proposed
- c. Modifications
 1. Minor modifications to approved home occupations may be approved by Zoning Inspector. Major modifications require new application.
7. Enforcement and Violation
 - a. Permit Required
 1. Operation of a home occupation without a required permit is a zoning violation subject to enforcement action under Article 12 of this Resolution.
 - b. Complaints
 1. The Zoning Inspector shall investigate complaints regarding home occupation impacts. If violations are found, the owner shall be given written notice and the opportunity to cure within 30 days.
 - c. Permit Revocation
 1. Home occupation permits may be revoked subsequent to public hearing for:
 - a. Operation in violation of permit conditions
 - b. False or misrepresented information on the home occupation application
 - c. Creation of a nuisance and/or hazard
 - d. Repeated violations
 2. Appeals
 - a. Permit denials or revocations may be appealed to Board of Zoning Appeals within 30 days.
8. Non-Conforming Home Occupations
 - a. Existing operations
 1. Home occupations lawfully operating as the effective date of this amended Resolution may continue as non-conforming uses under Article 8 of this Resolution.
 - b. Transition Period

Existing home occupations have 12 months from the effective amendment date to:

 1. Apply for appropriate permit (Category I or II)
 2. Demonstrate compliance or seek variance
 3. Continue operations during application review
 - c. Continuations

Legally established home occupations that cannot meet current standards may be granted Category II approval if:

 1. Operation predates this Resolution
 2. No increase in impacts proposed
 3. Reasonable compatibility demonstrated

4. Property rights are protected under Article 8
9. Relationship to Other Regulations
 - a. Additional Requirements

Home occupation approval does not waive requirements for:

 1. Building permits
 2. Health department permits
 3. State professional licenses
 4. Environmental permits
 5. Septic system approvals
 6. Agricultural exemptions or registrations
 - b. Restrictive Covenants.

Home occupation permits do not override private deed restrictions or homeowner association covenants.
 - c. Agricultural Operations

Standard agricultural operations on parcels over 5 acres remain exempt from home occupation regulations per ORC 519.21, except:

 1. In platted subdivisions with lots less than 5 acres
 2. For structures requiring building permits
 3. When operating as agritourism or event venue
 4. When processing products not grown on-site
1. Requires conditional use permit
2. Loud speakers which cause a hazard or annoyance shall not be permitted;
3. There shall be no more than one (1) sign oriented to each abutting street identifying the activity;
4. No lighting shall constitute a nuisance and shall in no way impair safe movement of traffic on any street or highway, and no lighting shall shine directly on adjacent properties;
5. No more than one person other than members of the family residing on the premises shall be engaged in a home occupation;
6. The use of a dwelling for a home occupation shall be clearly incidental and subordinate to its use for residential purposes by its occupants, and not more than twenty-five (25) percent of floor area of the dwelling unit shall be used in the conduct of the home occupation;
7. There shall be no change in the outside appearance of the building or premises, or other visible evidence of the conduct of a home occupation other than one sign, not exceeding four square feet in area, non-illuminated, and mounted flat against the wall of the principal building;
8. No traffic shall be generated by a home occupation in greater volume than would normally be expected in a residential neighborhood, and any need for parking generated by the conduct of such home occupation shall meet the off-street parking

requirements as specified in this resolution and shall not be located in a required front yard;

9. No equipment or process shall be used in a home occupation which creates noise, vibration, glare, fumes, odors, or electrical interference detectable to the normal senses off the lot. In the case of electrical interference, no equipment or process shall be used which creates visual or audible interference in any radio or television receivers off the premises or causes fluctuations in line voltage off the premises.
10. Restrictions: Limited employees, vehicle restrictions, hours of operation, signage limitations

B. Agricultural Uses in Residential Districts

Pursuant to Ohio Revised Code §519.21, this Resolution does not regulate standard agricultural uses on parcels larger than five (5) acres, except as follows:

I. General Exemption

On lots greater than 5 acres, and township land not in a platted subdivision:

1. Agricultural uses and buildings/structures incidental to agricultural use shall not be prohibited
2. No zoning certificate required for agricultural buildings or structures
3. Agricultural operations conducted in accordance with generally accepted agricultural practices
4. Biodiesel and methane production on a site which is primarily used for agriculture shall not be prohibited
5. Agritourism shall not be prohibited
6. Farm markets where more than 50% or more of their gross income is derived from produce from farms owned and operated by the market owner shall not be prohibited

II. Exceptions to Exemption

Agricultural uses remain subject to regulation:

1. In Platted Subdivisions:
 - a. Any platted subdivision approved under ORC §711.05, 711.09, or 711.10 and any area consisting of 15 or more contiguous lots approved under ORC §711.131 with lots 1 acre or less or lots from 1-5 acres.
 - b. When 35% of lots are developed, dairying and animal/poultry husbandry become nonconforming.
2. For Specific Building Requirements

3. In relation to the cultivation, processing, or dispensation of adult use cannabis

Section 502.06 Appearance and Design Standards for Single Family Homes

These standards are created to ensure the health, safety, and general welfare of the Township, by providing

Additionally, these regulations will improve the overall appearance of the housing stock and ensure more durable and safer homes for all residents.

Appearance and Design Criteria

These regulations apply to all single-family housing units including Manufactured Homes, Modular Homes, and Site Built Homes.

- (a) The minimum floor area of the single-family dwelling unit shall be at 1,200 square feet of living area measured by exterior dimension. The garage portion of the structure is not included in the living area total calculation.
- (b) The minimum width of all single-family dwelling units shall be at least 24 feet minimum exterior wall dimensions.
- (c) All dwelling units shall have roof material that is generally used in residential construction including; approved wood, clay, slate, asphalt composition shingles, fiberglass compositions shingles, corrugated aluminum, corrugated fiberglass, and other corrugated metal roof materials. The materials are applicable to all primary buildings, accessory buildings, garages, and carports.
- (d) Exterior siding of all dwelling units cannot have a high reflective finish and must be residential in appearance, including but not limited to, clapboards, simulated clapboards such as conventional vinyl or metal siding, wood shingles, shakes, or similar material.
- (e) The home must be placed on a permanent foundation that complies with Ohio Revised Code Chapter 3781 and be inspected by the Ashtabula County Department of Building Regulations.
- (f) The hitch, axles and wheels of any manufactured home must be removed from the immediate premises, out of sight in a storage area.
- (g) The lot must be landscaped to ensure compatibility with the surrounding properties.

DRAFT

Section 503 Commercial and Industrial Districts.

Section 503.01 Commercial and Industrial Districts Intent.

Commercial and Industrial Districts and their regulations are established, among others, to meet the following purposes:

- (a) Encourage the establishment of areas for general commercial uses to meet the needs of a regional market area. Provide appropriate and convenient districts, sufficient areas for business activities, and the exchange of goods and services.
- (b) To protect residential neighborhoods adjacent to business uses.
- (c) Encourage the development of manufacturing and wholesale industrial establishments which are clean, quiet and free of hazardous or objectionable elements such as noise, odor, dust smoke, or glare;
- (d) Promote the establishment of industrial parks with land suitable for industrial use because of topography, proper zoning, availability of utilities, and accessibility to transportation under the control and administration of a single entity.
- (e) To provide a mixed-use Activity District (AC) that allows the compatible integration of commercial and residential uses.
- (f) To provide a Light Industrial District that allows for low-intensity industrial and manufacturing uses.

The individual commercial and industrial districts are intended to fulfill the following purposes:

Section 503.02 Commercial and Industrial Schedule of Permitted Uses.

	C-1	AC	I	I-P	LI	Use Specific Standards
A. Residential						
Single-Family	NP	P	NP	NP	NP	
Duplex & Triplex	NP	P	NP	NP	NP	
Multi-family	NP	P	NP	NP	NP	
Dwelling Units above 1 st Floor	NP	P	NP	NP	NP	
Bed & Breakfast/Short-Term Rental	NP	C	NP	NP	NP	
Residential care/nursing home	P	C	NP	NP	NP	
B. Commercial Uses	C-1	AC	I	I-P	LI	
Retail Stores	P	P	NP	NP	NP	
Restaurants	P	P	NP	NP	NP	
Banks/Financial	P	P	NP	NP	NP	
Hotels/Motels	P	C	NP	NP	NP	
Gas Stations	P	C	NP	NP	NP	

Auto Repair	P	C	NP	NP	C	
Personal Services	P	P	NP	NP	NP	
C. Industrial Uses	C-1	AC	I	I-P	LI	Use Specific Standards
Light Manufacturing	NP	NP	P	P	P	
Heavy Manufacturing	NP	NP	C	NP	NP	
Warehousing	NP	NP	P	P	C	
Research Labs	NP	NP	P	P	C	
Data Centers	NP	NP	NP	NP	NP	Data Centers are prohibited in all zoning districts
D. Recreational Use	C-1	AC	I	I-P	LI	
Parks	NP	P	NP	NP	NP	
Golf Courses	NP	NP	NP	NP	NP	
Tennis Courts	P	P	NP	NP	NP	
Swimming Pools	P	P	NP	NP	NP	
E. Institutional Uses	C-1	AC	I	I-P	LI	
Churches	P	P	NP	NP	NP	
Schools	P	P	P	P	NP	
Hospitals	P	NP	NP	NP	NP	
Libraries	P	P	P	P	NP	
Government Buildings	P	P	P	P	NP	

Section 503.03 Commercial and Industrial Minimum Lot Requirements.

	C-1	AC	I	I-P	LI
(1) Lot Size (SF)	5,000		20,000	20,000	20,000
(2) Lot Width	50		100	100	100
(3) Maximum Lot Coverage %	50		60	50	65
(4) Floor Area Minimum (SF)	100		1,200	1,200	1,200

Section 503.04 Commercial and Industrial Principal Building Setback and Height Standards.

	C-1	AC	I	I-P	LI
(1) Minimum Setbacks for Principal Structures					
A. Front Yard	40		40	40	30
B. Side Yards					
One Side	10		10	15	15
Total	20**		30	30	30
C. Rear Yard	15		15	15	20
(2) Maximum Height (ft)	50		50	50	50
Stories	5		5	5	5

Section 503.05 Commercial and Industrial Accessory Building Setback and Height Standards.

	I-A	AC	I	I-P	LI
(1) Maximum Height for Accessory Structures	50		50	50	50
(2) Setbacks for Accessory Structures					
A. Side Yard	15		15	15	15
B. Rear Yard	15		15	15	15

**Side yard setbacks required in the Commercial districts (C-1 & AC) only where a Commercial District abuts a residential use or district

Section 503.06 Commercial and Industrial Special Conditions and Restrictions

A. Hazardous Uses (Industrial Districts)

1. Requires conditional use permit and special safety measures
2. Loud speakers which cause a hazard or annoyance shall not be permitted;
3. There shall be no more than one (1) sign oriented to each abutting street identifying the activity;
4. No lighting shall constitute a nuisance and shall in no way impair safe movement of traffic on any street or highway, and no lighting shall shine directly on adjacent properties;
5. Structures should have primary access to a collector thoroughfare;
6. All permitted installations shall be kept in a neat and orderly condition so as to prevent injury to any single property, any individual, or to the community in general;
7. All equipment and machinery shall be operated and maintained in such manner as to minimize dust, noise, and vibration. Access roads shall be maintained in dust-free condition by surfacing or other treatment as may be specified by the County Engineer.
8. Types: Acetylene gas, acid manufacturing, chemical production, gas manufacturing
9. Requirements: Enhanced safety measures, environmental impact assessment, traffic studies

B. Side and Rear Yard Requirements for Non-Residential Uses Abutting Residential Districts

- a. Nonresidential buildings or uses shall maintain a minimum setback of forty (40) feet from any lot line that borders a residential district. This distance may be reduced to fifty (50) percent of the required setback if suitable landscaping or screening, approved by the Zoning Inspector, is provided.
- b. Acceptable screening consists of either a masonry or solid fence, which must be between four (4) and six (6) feet in height. Such fencing must be kept in good condition and may not display any advertising or other signage. Alternatively,

landscaping may be provided instead of a wall or fence. In this case, the landscaping shall consist of a strip of land at least twenty (20) feet wide, planted with an evergreen hedge or a dense grouping of evergreen shrubs that are at least four (4) feet tall at the time of planting.

- c. Any type of screening installed must not interfere with traffic visibility within fifty (50) feet of an intersection.

Section 504 Other Districts.

Section 504.01 Other Districts Intent.

Special Recreation and Planned Unit Development Districts and their regulations are established, among others, to meet the following purposes:

(a) Special Recreation District (SR) is established to:

1. Provide for public and private parks, recreational facilities, and open space areas that serve the Township's residents and visitors;
2. Accommodate active and passive recreation uses including sports facilities, playgrounds, trails, and natural areas in appropriate locations;
3. Enable public and institutional uses, such as municipal buildings, educational facilities, and public service and emergency facilities
4. Ensure that recreational facilities are designed and operated in a manner compatible with surrounding residential and agricultural uses;
5. Preserve significant natural features, scenic viewsheds, and environmentally sensitive areas for public enjoyment and education;
6. Establish standards for parking, lighting, and noise to minimize impacts on adjacent properties.

(b) Planned Unit Development District (PUD) is established to:

1. Encourage innovative and creative site design that achieves superior development outcomes compared to conventional lot-by-lot subdivision;
2. Promote efficient use of land through flexible dimensional standards that preserve significant natural features, open space, and environmentally sensitive areas;
3. Accommodate a mix of compatible residential types, densities, and housing styles within a unified development plan;

4. Ensure provision of adequate common open space, recreational amenities, and pedestrian connections for residents;
5. Encourage coordination of infrastructure, utilities, and stormwater management systems to achieve greater efficiency and reduced environmental impact;
6. Facilitate development that implements the goals and policies of the Township Comprehensive Plan through a comprehensive design and review process.

Section 504.02 Other Districts Schedule of Permitted Uses.

Use	District	
A. Residential Uses	S-R	PUD
Single Family Dwelling	NP	P
Two Family Dwelling	NP	P
Multi-Family Dwelling	NP	P
Manufactured Housing	NP	P
B. Commercial Uses	S-R	PUD
Retail Stores	NP	P
Restaurants	NP	P
Banks/Financial	NP	P
Hotels/Motels	P	P
Gas Stations	NP	P
Auto Repair	NP	P
Personal Services	NP	P
C. Industrial Uses	S-R	PUD
Light Manufacturing	NP	P
Heavy Manufacturing	NP	P
Warehousing	NP	P
Research Labs	NP	P
D. Recreational Use	S-R	PUD
Parks	P	P
Golf Courses	P	P
Tennis Courts	P	P
Swimming Pools	P	P
E. Institutional Uses	S-R	PUD
Churches	P	P
Schools	P	P
Hospitals	NP	P
Libraries	P	P
Government Buildings	P	P

Section 504.03 Other Districts Minimum Lot Requirements.

S-R	
(1) Lot Size (SF)	
(2) Lot Width	
(3) Maximum Lot Coverage %	30
(4) Floor Area Minimum (SF)	700

Section 504.04 Other Districts Principal Building Setback and Height Standards.

S-R	
(1) Minimum Setbacks for Principal Structures	
A. Front Yard	40
B. Side Yards	
One Side	10
Total	20
C. Rear Yard	10
(2) Maximum Height (ft)	30
Stories	

Section 504.05 Other Districts Accessory Building Setback and Height Standards.

S-R	
(1) Maximum Height for Accessory Structures	30
(2) Setbacks for Accessory Structures	
A. Side Yard	10
B. Rear Yard	10

Article 6 - Supplementary District Regulations

Section 600- Purpose and Intent

The purpose of supplementary district regulations is to set specific conditions for various uses, classification of uses, or areas where problems are frequently encountered. Furthermore, these supplementary district regulations are intended to minimize conflicts that lead to variance requests within the Township by providing clear regulatory language for exceptional or unusual cases. The following provisions provide regulatory clarity and fair and transparent development application processes for specific use cases and inquiries.

Section 610 - Structural and Building Standards

610.01 Conversion of Dwelling to More Units

A residence may not be converted to accommodate an increased number of dwelling units unless:

1. The yard dimensions still meet the yard dimensions required by the zoning regulations for new structures in that district;
2. The lot area per family equals the lot area requirements for new structures in that district;
3. The floor area per dwelling unit is not reduced to less than that which is required for new construction in that district;
4. The conversion is in compliance with all other relevant codes and resolutions.

Section 610.02 - Dimensional Requirements in Specific Cases

- A. Purpose. The intent of this section is to provide clarification regarding certain yard, setback, height, and other dimensional requirements in specific cases, beyond what can be outlined in the standard development code.
- B. Setback Requirements for Corner Buildings
 - a. On a corner lot the principal building and its accessory structures shall be required to have the same setback distance from all street right-of-way lines as required for the front yard in the district in which such structures are located.
- C. Yard Requirements for Multi-Family Dwellings
 - a. Multi-family dwellings shall be considered as one (1) building for the purpose of determining front, side, and rear yard requirements. The entire group as a unit shall require one (1) front, one (1) rear, and two (2) side yards as specified for dwellings in the appropriate district. Each individual building shall meet all yard requirements for the appropriate district as though it were on an individual lot.
- D. Architectural Projections

- a. Open structures such as porches, canopies, balconies, platforms, carports, covered patios, and similar architectural projections shall be considered parts of the building to which attached and shall not project into the required minimum front, side, or rear yard.
- E. Exceptions to Height Regulations
 - a. The height limitations contained in the Official Schedule of District Regulations do not apply to:
 - i. Radio and television transmitting and receiving towers;
 - ii. Spires;
 - iii. Belfries;
 - iv. Cupolas;
 - v. Water tanks;
 - vi. Ventilators;
 - vii. Chimneys; or
 - viii. Other appurtenances usually required to be placed above the roof level and not intended for human occupancy, except where the height of such structures will constitute a hazard to the safe landing and take-off of aircraft at an established airport.

Section 620 Site Elements and Accessory Structures

620.01 - Fences

Purpose and Scope

The purpose of these fence provisions is to establish regulations controlling the use and type of fences, walls, and enclosures, for the assurance of safety and security, privacy, and cohesive and visually appealing community character.

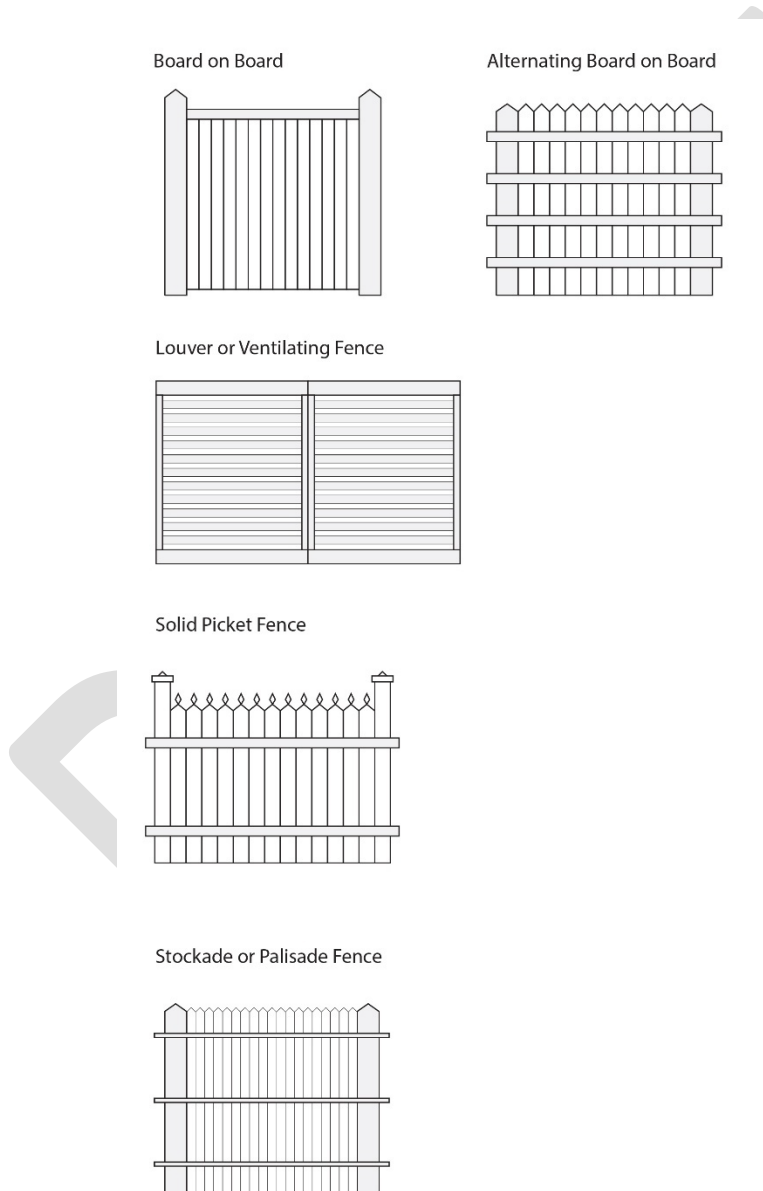
Fencing Definitions

- A. **Solid Fence.** A fence designed to inhibit public view and having more than 50% of its vertical surface area closed to light and air.
 - a. **Board on Board or Alternating Board on Board.** A fence made of vertical one-inch boards or other durable material, supported by a frame of two-inch members and 4x4 posts.
 - b. **Louver or Ventilating Fence.** A fence constructed from consecutive wooden slats or other durable, natural materials, arranged at an angle or oriented to allow airflow while deflecting light that strikes perpendicularly to its vertical plane.
 - c. **Solid Picket Fence.** A fence constructed from upright boards measuring one inch by two inches (nominal size), or from another durable, natural material,

with each board placed directly next to the other with no gaps between them. The top of the fence can be either pointed or flat.

- d. **Stockade or Palisade Fence.** A fence built from a series of large, pointed wooden stakes or other durable natural materials set upright side by side, with over half of its vertical surface area blocked from light or air.
- e. **Wall, Stone or Brick.** A solid fence constructed of stone or brick.

Figure 620.01A – Solid Fences

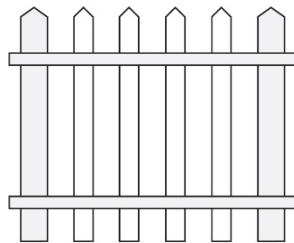


- B. **Partially Open Fence.** A fence designed to offer a vertical visual separation. This fence is used where minimal screening is appropriate to visually separate areas or screen visually impactful uses. Partially open fences include:

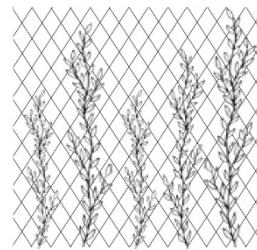
- a. **Picket Fence.** A partially open fence made of upright wooden poles or slats. This fence may be an open fence if the space between the vertical boards is greater than the width of the boards.
- b. **Arbor or Trellis.** A fence of latticework used as a screen or as a support for climbing plants.

Figure 620.01B – Partially Open Fences

Picket Fence



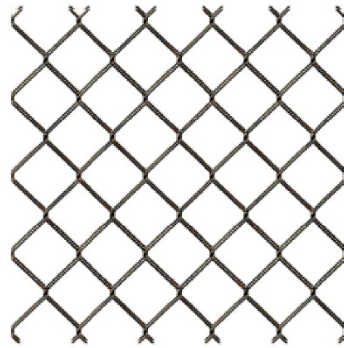
Arbor or Trellis



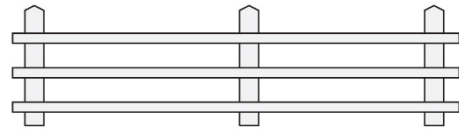
- C. **Open Fence.** A fence constructed for its functional, ornamental or decorative effect and, when viewed at right angles, having not less than 50% of its vertical surface area open to light and air. Permitted open ornamental fences are:
- a. **Chain Link Fence.** A fence usually made of metal, loops of wire interconnected in a series of joined links and including vinyl, plastic-coated or painted varieties.
 - b. **Smooth Rail, Split Rail, Milled Rail or Contemporary Rail Fence.** A rail fence made of horizontal wooden timbers or boards between upright posts may include black-painted or coated wire mesh for better containment, with openings at least 3" x 3" in a horizontal grid.
 - c. **Wrought Iron Fence.** A metal fence with decorative features or design. Wrought iron fences shall not have pointed ends exposed but may have finials with blunt ends.
 - d. **Retaining Wall.** A retaining wall is a structure constructed from wood, stone, brick, or other masonry materials, intended to support and retain higher ground adjacent to lower ground. This allows for two different elevations to exist side by side with a distinct vertical separation between them.
 - e. **Accent Fence.** A fence that is used solely for ornamental purposes and does not enclose or partially enclose an area.

Figure 620.01C – Open Fences

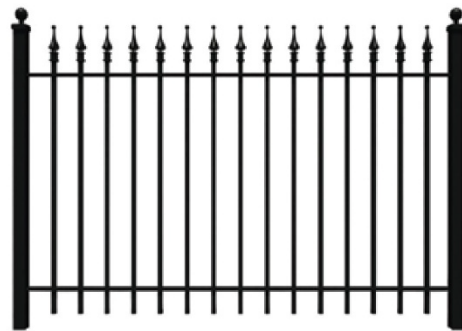
Chain Link Fence



Smooth Rail, Split Rail, Milled Rail or Contemporary Rail Fence



Wrought Iron Fence

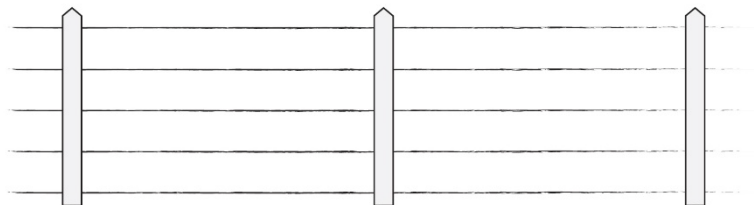


D. **Security or Industrial Fences.** A metal wire fence equipped with barbed wire, razor wire, sharp points, or other attached devices with the intent of discouraging physical contact along its length.

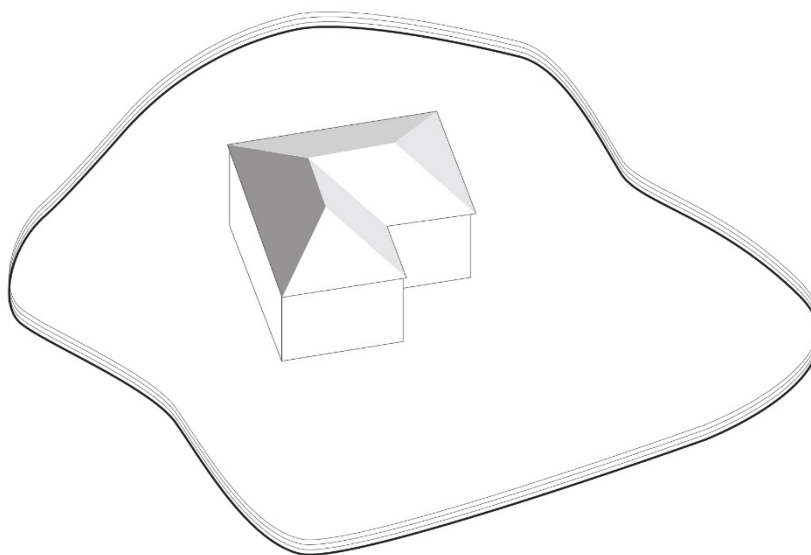
- a. **Electrified Fence.** A fence or structure equipped with a device which emits an electrical charge/impulse/shock upon contact with another object, animal, or person, with the intent of discouraging physical contact along its length with the risk of burns or other physical harm.
- b. **Radio Controlled Fence or Invisible Fence.** Use of insulated, low-voltage, underground wire to transmit a radio signal to a receiving device, typically for the purpose of confining pets or other animals to a property. This section shall not be construed as to prohibit the use of such barriers.

Figure 620.01D – Security or Industrial Fences

Electrified Fence



Radio Controlled Fence or Invisible Fence



Regulations on Use

- A. Fences, gates, walls, columns, pillars, or other similar structures shall not be constructed without a Zoning Permit and Zoning Inspector approval.
- B. No fence or enclosing wall shall exceed six (6) feet in height.
 - a. The height of a fence shall be measured from the established ground level to the highest point of the fence.
 - b. Fence height may not be artificially increased through the use of mounding.
- C. No fence or enclosing wall shall be constructed in any platted no-build zone, regulatory floodway, floodway or drainage easement, or public right-of-way.
- D. Enclosed property shall remain accessible via a gate or opening.
- E. The property owner is responsible for ensuring the maintenance and repair of any fence, gate, wall, column, pillar, or similar structure located on their premises.

- a. Furthermore, no fence, gate, wall, column, pillar, and other similar type structure shall be permitted in a state of disrepair.
- F. Permitted fencing types include:
 - a. In front and rear yards:
 - i. Open fences;
 - ii. Partially open fences; or
 - iii. Hedges.
 - b. Solid fences are only permitted in rear yards.
- G. Prohibited fencing types include:
 - a. Electrified fencing;
 - b. Fences equipped with barbed wire; or
 - c. Fences equipped with razor wire; or
 - d. Fences equipped with any other sharp or dangerous devices which are attached with the express intent to discourage contact through physical harm.
- H. No such regulation herein shall be construed as to prohibit the appropriate use of fencing in agricultural settings.

620.02 - Swimming Pools

Private Swimming Pools

Applicability

This section applies to all private swimming pools in commercial or residential districts, except portable pools that are:

- Less than 12 feet in diameter, OR
- Less than 100 square feet in area

General Requirements

Private swimming pools are permitted only as an accessory use and must meet all of the following conditions:

1. Use Restriction

The pool must be intended and used solely by occupants of the principal property and their guests.

2. Setback Requirements

The pool must be located at least 10 feet from any property line.

3. Fence and Barrier Requirements

- a. Every swimming pool requires a complete enclosure except: pools that are 4 feet or higher above ground level with retractable steps or ladder.
- b. Fence specifications:
 1. Minimum height: 4 feet
 2. Construction: Sturdy materials, maintained in good condition
 3. Design: Must effectively prevent a child from crawling through, under, or over it
 4. Must include a gate with a locking device
- c. No pool may be used or filled with water until the required fence is constructed and the area is secured with a locking device.

4. Gate Requirements

- a. Pedestrian access gates must:
 1. Open outward (away from the pool)
 2. Be self-closing
 3. Have a self-latching device
- b. Other gates must:
 - i. Have a self-latching device
- c. Special requirements for low latches: When the latch release mechanism is less than 54 inches from the bottom of the gate:
 - i. The release mechanism must be on the pool side of the gate
 - ii. The release must be at least 3 inches below the top of the gate
 - iii. No opening greater than ½ inch may exist within 18 inches of the release mechanism

5. Exemptions

- a. Spas and hot tubs with approved safety covers meeting ASTM F1346-91 standards are exempt from the barrier requirements.

Community or Club Swimming Pools

Community and club swimming pools are permitted in any commercial or residential

district, but shall comply with the following conditions and requirements:

1. The pool is intended solely for the enjoyment of the members and families and guests of members of the association or club under whose ownership or jurisdiction the pool is operated;
2. The pool and accessory structures thereto, including the areas used by the bathers, shall not be closer than fifty (50) feet to any property line;
3. The swimming pool and all of the areas used by the bathers shall be walled or fenced to prevent uncontrolled access by children from the thoroughfare or adjacent properties. Said fence or wall shall not be less than six (6) feet in height and maintained in good condition.

620.03 - Temporary Buildings

Temporary buildings, construction trailers, equipment, and materials used in conjunction with construction work only may be permitted in any district during the period construction work is in progress, but such temporary facilities shall be removed upon completion of the construction work.

- A. Purpose. Regulation of portable structures, such as temporary construction trailers, temporary use trailers, and their related equipment and materials is intended to provide a review process for temporary structures which minimizes the intrusion of such structures, especially in respect to adjacent residential land uses.
- B. Permits. Construction trailers shall not be subject to a separate zoning permit application provided:
 - a. The footprint and location of the construction trailer is noted on plans submitted and approved by the Zoning Inspector;
 - b. The construction trailer is only used in conjunction with the approved construction project; and
 - c. The construction trailer is removed from the site upon completion of construction work, or when construction has been discontinued for a period of thirty (30) days or more.
- C. Extensions. Storage of such facilities or equipment beyond the completion date of the project shall require a zoning permit authorized by the Zoning Inspector. Applicants shall provide the Zoning Inspector with:
 - a. The approved construction site location and materials;
 - b. An application narrative providing reason for extension, the relief from a hardship this extension would provide, and the adjusted expected date of completion; and
 - c. An extension application fee as outlined in the approved fee schedule.

620.04 - Campers & Recreational Vehicles

The purpose of this section is to regulate the parking, storage, and placement of recreational vehicles, campers, and similar equipment in order to protect public health and safety, prevent nuisances, and maintain the Township's well-kept residential and rural

character. These standards ensure that such vehicles are stored in a safe, orderly manner that does not create traffic hazards, obstruct visibility, or promote unlawful dumping or unsafe living conditions.

A. Parking & Storage

- a. Maximum of 1 recreational vehicle with current license in rear/side yard. A camper or recreational vehicle parked in a residential district may not exceed 30 feet in length.
- b. *Improved Surfaces.* Parking of campers or recreational vehicles in all districts in the Township must be on improved surfaces including concrete, asphalt, or pavers. Grass, sand, and gravel are not permitted surfaces.

B. Required Permits

- a. *Temporary Use Permit.* For those who are residing in a camper or recreational vehicle, for more than 14 days, a Temporary Use Permit must be issued to allow the extended occupation in a camper or recreational vehicle.
- b. *Active Registration.* Any camper or recreational vehicle parked or occupied in the Township must have an up-to-date registration and insurance.
- c. *Building and Zoning Permit.* For those who are residing in a camper or recreational vehicle while a principal structure is being improved or built, a building and zoning permit must be issued to prove an active construction or rehabilitation on the property.

C. Occupancy and Habitation Restrictions

- a. *Accessory Structure.* A camper or recreational vehicle may not be considered or used as an accessory dwelling unit of any kind.
- b. *Duration.* A camper or recreational vehicle may be occupied on a residential lot for up to 14 consecutive days and no more than 60 days in a calendar year without obtaining a permit. A camper or recreational vehicle may be inhabited for an extended period of time if all of the following conditions are met:
 - c. There is no principal structure on the residential lot, or the principal structure is no longer safe to inhabit.
 - d. The occupant has obtained a building permit and township zoning permit to indicate improvements to the lot are in progress.
 - e. The camper or recreational vehicle is registered and insured.
 - f. The occupant has obtained a temporary use permit from the township for use of the camper or recreational vehicle on the lot for a period of more than 14 consecutive days.

- g. *Utility Connections.* Permanent utility connections to a camper or recreational vehicle, including gas, water, and sewer are prohibited in all districts of the Township. The use of extension cords across public access ways including roads and sidewalks is also prohibited.
- D. **Health & Sanitation**
 - a. *Condition and Maintenance.* All campers and recreational vehicles parked or being used for temporary occupancy in all districts must be in an operable condition and well maintained so as to be free from graffiti, broken windows and/or headlights, etc.
 - b. *Disposal of Waste.* Disposal of waste and sanitary sewer discharge may only occur at an approved facility. Processes used to dispose of waste must follow regulations provided by the Ashtabula County Health Department.

620.04 - Telecommunications Towers

- A. *Purpose.* Public utilities or similar service providers are allowed to install telecommunications towers as a permitted use in any zoning district except those residential districts specified in Section 502 of this resolution.
- B. *Authority.* Local zoning authority does not cover maintenance or usage of telecommunications towers, nor does it cover changes that do not significantly increase a tower's height. Regulatory power over telecommunications towers only applies to a specific proposed tower if there is an objection notice filed against it as there is no overarching zoning authority in residential districts.
- C. In areas zoned for residential use, telecommunications towers may be regulated after an objection is received in accordance with ORC 519.211(B)(2).
 - a. Any objection must comply with ORC 519.211(B)(3).
 - b. When the Saybrook Township Board of Trustees receives a timely objection regarding a proposed tower, they will follow procedures outlined in ORC 519.211(B)(4)(a).
 - c. If there are no timely objections, telecommunication towers are permitted without local zoning restrictions under ORC 519.211(B)(4)(b). If a timely objection is filed for a tower in a residentially zoned area, the tower can only be approved as a conditional use by the Board of Zoning Appeals, provided all relevant conditions are met. Applications for conditional use must be submitted to the Board of Zoning Appeals.
- D. **Conditional Use Application Requirements.** The application for conditional use shall include:

- a. A preliminary development plan must be submitted at the time the application for the conditional use permit is submitted. The preliminary development plan shall contain the following:
 - i. The location of all the applicant's existing facilities both within the Township and within one (1) mile of the proposed site.
 - ii. The general location of planned future facilities, if known.
 - b. For each location shown on the plan, there shall be listed:
 - i. The type and size of tower at each location;
 - ii. The type of equipment located or proposed on each tower;
 - iii. The space available on the tower for additional equipment;
 - iv. The ground network, if any, served by the tower; and
 - v. A site plan showing the parcel on which any existing or proposed tower, antenna or equipment is located.
 - c. A site plan for the facility which is being applied for shall also be submitted containing:
 - i. The location, type and size of existing and proposed towers, antennas and equipment located at the site;
 - ii. The location of existing and proposed buildings and structures, access easements and parking areas;
 - iii. Detailed drawings of the screening plan and related design standards; and
 - iv. A written certification from a professional engineer registered in accordance with the laws of the State of Ohio certifying the following:
 - 1. That the tower's design is structurally sound and in compliance with all applicable federal, state, and local building laws including, without limitation, the Ohio Basic Building Code and the National Electric Code;
 - 2. That the tower complies with all current FCC regulations for non-ionizing electromagnetic radiation (NIER); and
 - 3. That the tower will, to the extent possible, accommodate co-location of additional wireless communication antennas for future use, with a statement as to the number of antennas capable of being accommodated and the ultimate height needed for the stated co-location capacity; or, alternatively, an explanation as to the reasons why the tower will not be constructed to accommodate co-location.
- E. General Requirements for all Telecommunications Towers.

- a. The applicant or tower provider shall demonstrate that the telecommunications tower must be located where it is proposed in order to service the applicant's service area and that there are no alternative sites reasonably available in any area. This shall include:
 - v. An explanation and accompanying documentation as to why a tower on this proposed site is technically necessary;
 - vi. A description of the suitability of the use of existing towers, other structures or technology not requiring the use of the proposed new tower; and
 - vii. A demonstration that a technically suitable location is not reasonably available on an existing tower, building or structure. If another tower is technically suitable, the applicant must show that a request to co-locate was made and that such request was rejected.
 - b. All towers shall meet or exceed current standards and regulations of the FAA, FCC and any other agency of the state or federal government with the authority to regulate such towers. If the applicable standards and regulations are changed, then the owners/operators of the towers shall, if required by the applicable governmental authority, bring such towers into compliance with the revised standards and regulations within six (6) months of the effective date of such standards and regulations, unless a different compliance schedule is mandated by the applicable governmental authority.
 - c. The owner/operator shall remove a tower within one hundred eighty (180) days after the tower's use is discontinued.
 - d. The owner/operator shall annually file a declaration with the Zoning Inspector which certifies that the radio frequency transmission and/or reception equipment attached to the tower is in use and is operational.
 - e. The owner/operator shall provide documentation that notice has been provided in accordance with Section 519.211 of the Ohio Revised Code.
- F. Development Standards for all Telecommunications Towers.
- a. No telecommunications tower shall be permitted in any platted subdivision approved under ORC §§711.05, 711.09, or 711.10, or in any area of fifteen (15) or more contiguous lots approved under ORC §711.131, when at least thirty-five percent (35%) of lots contain at least one (1) dwelling unit.
 - b. Maximum tower height: 150 feet.
 - c. Minimum setback from any existing residential dwelling unit: 150 feet.
 - d. Minimum lot size: two (2) acres.
 - e. The tower shall be located no closer to a street right-of-way than 15 feet behind the established building setback line.

- f. The tower shall be set back from any adjoining property line a distance equal to the tower's height as measured from its base.
 - g. The tower site shall be enclosed by an eight (8) foot fence or barrier with a continuous evergreen hedge or similar landscaping along its exterior. Security fencing shall prevent uncontrolled access. Fencing shall contain no advertising, except one identification sign not exceeding three (3) square feet. All equipment storage shall be within the screened area.
 - h. The lot shall meet the minimum frontage requirements of the applicable district.
 - i. All screening shall be maintained in good condition. The applicant shall keep the site free of weeds and trash. Outdoor vehicles or equipment shall be contained within the screened area.
 - j. The tower and screening shall be architecturally compatible with the surrounding environment and shall not include artificial lighting, beacons, or strobes unless required by the FAA or FCC. All surfaces shall be in a state of good repair, free of flaking paint and rust. Unless otherwise approved by the Board of Zoning Appeals, the tower shall be a non-corrosive monopole design.
 - k. No advertising is permitted on the tower facility, except one identification sign not exceeding one (1) square foot.
 - l. The tower shall be fully automated and unattended, visited only for periodic maintenance. All utility service shall be underground per applicable codes.
 - m. Where the tower is located on property not owned by the tower operator, the applicant shall provide documentation of property owner approval and confirmation of vehicular access to the site.
 - n. The applicant shall provide a signed statement agreeing to allow co-location of other antenna facilities to the extent possible until the tower reaches full capacity.
 - o. Tower height shall not exceed the applicant's demonstrated service need as certified by the applicant's engineer. If future height extension is anticipated for co-location, the initial foundation shall be designed accordingly, with the ultimate height specified on submitted drawings. Tower height shall not be extended until co-locators are installed, unless otherwise approved.
 - p. A tower may be attached to a permitted building or structure, provided it does not exceed twenty (20) feet above the existing structure. All roof-mounted towers shall be screened from view to the extent possible.
- G. Exception to Conditional Use Permit.

Telecommunications towers meeting the following conditions shall not be required to obtain a Conditional Use Permit, but shall be deemed to be permitted uses requiring a Zoning Permit.

- a. Siting a tower on property that falls under the direct ownership and with the consent of the Saybrook Township Board of Trustees, then a Zoning Permit may be obtained in lieu of a Conditional Use Permit.
- b. Co-location of a tower on another existing telecommunications tower or on another utility structure (i.e., water tower) where such co-location will result in a substantial change in the height of the tower (>40 feet), then a Zoning Permit may be obtained in lieu of a Conditional Use Permit.
- c. Siting a tower using a no-impact design (specifically meaning that the tower will be completely invisible to the casual observer by incorporating the tower within an existing structure such as inside a steeple), then a Zoning Permit may be obtained in lieu of a Conditional Use Permit.

620.05 - Small Wind Energy Systems

Wind farms of 5MW or more shall submit an application to the Ohio Power Siting Board (OPSB) at the Public Utilities Commission of Ohio (PUCO) and are subject to OPSB regulations. Small Wind Farms producing less than 5MW and incidental to an agricultural use are exempt per ORC §519.21.

Small Wind Farms of less than 5MW are a permitted use in all districts except Residential and Planned Residential Districts, where a conditional use permit is required. All permitted and conditional uses shall comply with the following:

A. General Standards

Standard	Requirement
Maximum Height	125 feet, measured from base to blade tip at maximum vertical rotation. Airport proximity restrictions may apply.
Setbacks	1.1× total tower height from all road rights-of-way, property lines, and inhabited structures, including the primary dwelling. Fall zone must be contained entirely on the subject parcel.
Noise	Shall not exceed manufacturer specifications or 5 dB above ambient levels at property lines. Non-compliant units shall cease operation until corrected.
Wiring	All wires and electrical equipment shall be underground or in an enclosed structure, meeting all applicable local, state, and federal codes.

Signage	Voltage warning signs shall be posted on the unit.
Building Permits	All applicable State of Ohio and County Building permits shall be obtained.

B. Abandonment and Removal

1. The owner shall notify the Zoning Inspector in writing within 30 days of permanently ceasing operation.
2. A turbine is considered abandoned after 30 consecutive days without electricity transmission.
3. Abandoned turbines shall be removed within 12 months of abandonment, or within 30 days of a zoning violation notice for turbines inoperable more than 12 months.
4. Removal shall include all apparatuses, supports, and associated hardware. All costs are borne by the property owner.

C. Zoning Permit

A Zoning Permit is required prior to construction. The application shall include:

1. Locations of all public and private airports relative to the proposed turbine site.
2. An engineering report containing:
 - a. Total unit size and height;
 - b. Foundation dimensions, concrete mounting pad, and soil/bedrock data (if applicable);
 - c. Safety features, including anti-climb devices, grounding, lightning protection, braking systems, and guy wiring;
 - d. Kilowatt generating capacity;
 - e. Maximum decibel level per manufacturer specifications;
 - f. Ambient noise levels at property lines; and
 - g. Hazardous materials containment and disposal plan.
3. A site plan depicting the unit's location relative to existing structures, rights-of-way, and property lines.
4. Documentation of setbacks and clear fall zone, including manufacturer's recommendations.
5. A maintenance schedule and dismantling plan.

620.06 - Solar Energy Systems in Residential Districts

- A. *Purpose.* The purpose of this section is to promote a sustainable quality of life and establish regulations to facilitate the use and operation of solar energy systems within residential districts in the Saybrook Township. As part of this section, it is in the public interest to encourage solar energy systems that have a positive impact on energy conservation, with limited adverse impact on the community. While the Township finds that increased use of solar energy systems are an important component of community sustainability, reasonable restrictions that protect the public health, safety, and welfare; preserve the enjoyment of private property; promote orderly land use; and maintain property values are necessary to harmonize the interests of all Township residents.
- B. *Applicability.* The Zoning Administrator shall consider the following factors, and any other relevant information, when evaluating a solar energy system application for approval or rejection.
- a. No person shall construct, erect, maintain, extend, or remove a solar energy system in any residential zoning district in the Township without compliance with the provisions of this section and applicable related requirements of the Saybrook Township Zoning Resolution, and all applicable Construction Codes.
 - b. Solar energy systems constructed prior to the effective date of this section shall not be required to meet the requirements of this code; unless any physical condition or modification renders such system un-repairable or un-useable. If any pre-existing solar energy system is destroyed or damaged to such an extent that it cannot be returned to original service, or any such damage or modification creates an unsafe condition it shall be replaced or removed in conformity with this section.
 - c. Applicants seeking to construct solar energy systems of 50 megawatts or more shall submit an application to the Ohio Power Siting Board (OPSB) at the Public Utilities Commission of Ohio (PUCO) and are subject to OPSB regulations
 - d. Expansion of an existing solar energy system (e.g., additional solar panels) shall be added in conformity with this section, unless such expansion is part of an approved solar energy system project master plan. The Zoning Administrator may waive associated fees when other expansions occur within four (4) years of original installation.
 - e. Repair of an existing solar energy system previously permitted under this section shall not require an additional application.

- f. Nothing in this regulation shall preclude standalone systems for small accessory lighting, ventilation, or battery storage systems either roof or ground-mounted. In such a case, the cumulative area of the standalone system shall not exceed two (2) square feet.
- C. *Contents of Application.* An application for a solar energy system shall be approved or rejected in compliance with the standards and criteria of this section and the application shall include at a minimum the following required items:
 - a. A narrative describing the proposed solar energy system, including the number, manufacturer, and model of the solar panels to be installed, and a description of ancillary systems.
 - b. A site plan to scale of the subject property showing the planned location of the solar panels, setback lines, proposed and existing ancillary equipment, buildings, and structures.
 - c. A description of emergency and normal shutdown procedures and location of electrical disconnection switch.
- D. *Design, Performance, and Application Standards.* The standards below shall apply to any solar energy system in residential districts installed after the effective date of this section.
 - a. *Lighting.* Solar energy systems shall be lit only if required by an applicable authority. Lighting of other parts of the solar energy systems, such as appurtenant structures, shall be limited to that required for safety and operational purposes, and shall be reasonably shielded from abutting structures.
 - b. *Construction and Electrical Codes.* To the extent applicable, solar energy systems shall comply with all construction and electrical codes as evidenced by successful inspections by the appropriate building code authority.
 - c. *Flood Hazard Areas.* Any solar energy system in a flood hazard area shall comply with applicable floodplain regulations.
 - d. *Appearance and Signage.* The factory or original equipment manufacturer identification and/or logo are permitted. Required signage and emergency services disconnect placard shall be appropriate warning signs (Danger-High Voltage or Caution-Electrical Shock Hazard or any other recognized safety precaution signage) installed at the base of the solar array.
 - e. *Roof-Mounted Applications.* Roof-mounted solar energy systems shall be permitted in all residential zoning districts provided the system complies with all other requirements of zoning and building regulations, subject to the following restrictions:

- i. Pitched roof-mounted arrays shall be parallel to the roof. The distance between the roof and the uppermost portion of the solar panels shall not exceed twelve (12) inches.
 - ii. Roof-mounted arrays shall be compliant with Ohio Building Code (OBC), National Electric Code (NEC), Ohio Fire Code (OFC), and International Fire Code (IFC) based on review and approval by the Fire Chief or their designee.
 - iii. Roof-mounted panels on a flat roof shall not project vertically more than two feet from the surface of the roof and shall be buffered as much as practical so they are not visible from public streets or adjacent properties.
- f. *Ground-Mounted Applications*. Ground-mounted solar energy systems shall only be authorized as an accessory use in residential platted subdivisions. The requirements below shall apply:
 - i. Ground-mounted solar energy systems shall be considered a Conditional Use and will be subject to the Conditional Use permit process.
 - ii. Ground-mounted solar energy systems shall meet accessory structure standards.
 - iii. Ground-mounted solar panels located on the ground or attached to a framework located on the ground shall not exceed ten (10) feet in height above the adjacent grade.
 - iv. All related mechanical equipment, other than the actual photoelectric panels, shall be fully screened from the ground-level view of adjacent properties by materials or plantings as approved by the Zoning Administrator, and must be maintained and effective through the life of the solar energy system.
 - v. The bounds of a ground-mounted solar energy system shall not exceed seventy percent (70%) of remaining lot coverage after all primary and accessory structures.
 - vi. For sites larger than one (1) acre, ground-mounted solar energy system applications shall also include the following:
 - 1. Dust and weed mitigation plan, which describes the methods of controlling overgrowth of groundcover and production of dust or other airborne nuisances produced as a result of the solar energy system.

2. Reclamation plan addressing removal of solar energy system during decommissioning and demonstrating the restoration of site to reasonably similar condition prior to development.
 3. A surface drainage plan, prepared and stamped by a state-certified Professional Engineer.
 4. Landscape plan, showing existing trees and shrubs, those to be removed, and those to be planted.
- g. Community Solar Energy Systems. Community solar energy systems serving multiple residential properties are a conditional use in residential districts.
 - h. None of the language herein shall be interpreted as to prevent the use of ground mounted solar energy systems in large, unplatted lots.
- E. *Abandonment*. The standards below shall apply to any solar energy system in residential districts installed after the effective date of this section and subsequently abandoned by the property owner.
- a. Upon abandonment or discontinuation of use, the owner shall physically remove the solar energy system within thirty (30) days from the date of abandonment or discontinuation of use. This period may be extended thirty (30) days at the request of the owner but only upon the approval of the Zoning Administrator. "Physically remove" shall include, but not be limited to:
 - i. Removal of the solar energy system and related above grade structures.
 - ii. Restoration of the location of the solar energy system to its previous and/or natural condition, except that any landscaping and/or grading may remain in the after-conditions.
 - iii. Associated roof repairs shall be made within sixty (60) days of abandonment.
- F. *Application Fee*. A zoning application and fee as established by the Township fee schedule is required to begin processing of solar energy system installation requests.

Section 630 - Site Design and Visual Performance Standards

630.01 - Screening of Service Structures

All service structures within the township shall be screened from view regardless of zoning district. Service structures include, but are not limited to: loading and unloading areas, waste receptacles and dumpsters, storage tanks, electrical transformers, above-ground utility vaults, cooling towers, rooftop mechanical equipment, and similar building or site service elements.

A. General Screening Standards**a. Coverage.**

- i. Screening shall completely enclose the service structure on all sides with materials providing complete visual opacity (as defined in section ____).
- ii. Where a service structure requires regular relocation or movement, screening on three sides is sufficient.

b. Height.

- i. Screening materials shall exceed the height of the enclosed structure by 12 inches.
- ii. Maximum required screening height shall not exceed 12 feet.
- iii. Rooftop mechanical equipment shall be screened to full height of the equipment.

c. Existing Screening Credit.**i. Where a service structure abuts:**

1. A building wall;
2. Required perimeter landscaping; or
3. Required vehicular use area landscaping,

ii. Existing features may suffice to satisfy the screening requirements.**B. Plant Material Standards****a. Where plants are used for service structure screening, the following standards apply**

- i. Species shall be evergreen varieties which maintain foliage year-round.
- ii. At planting, landscaping height shall equal or exceed two-thirds (2/3) the height of the structure being screened.
- iii. Plantings shall achieve full screening height and complete visual opacity within four years of installation.

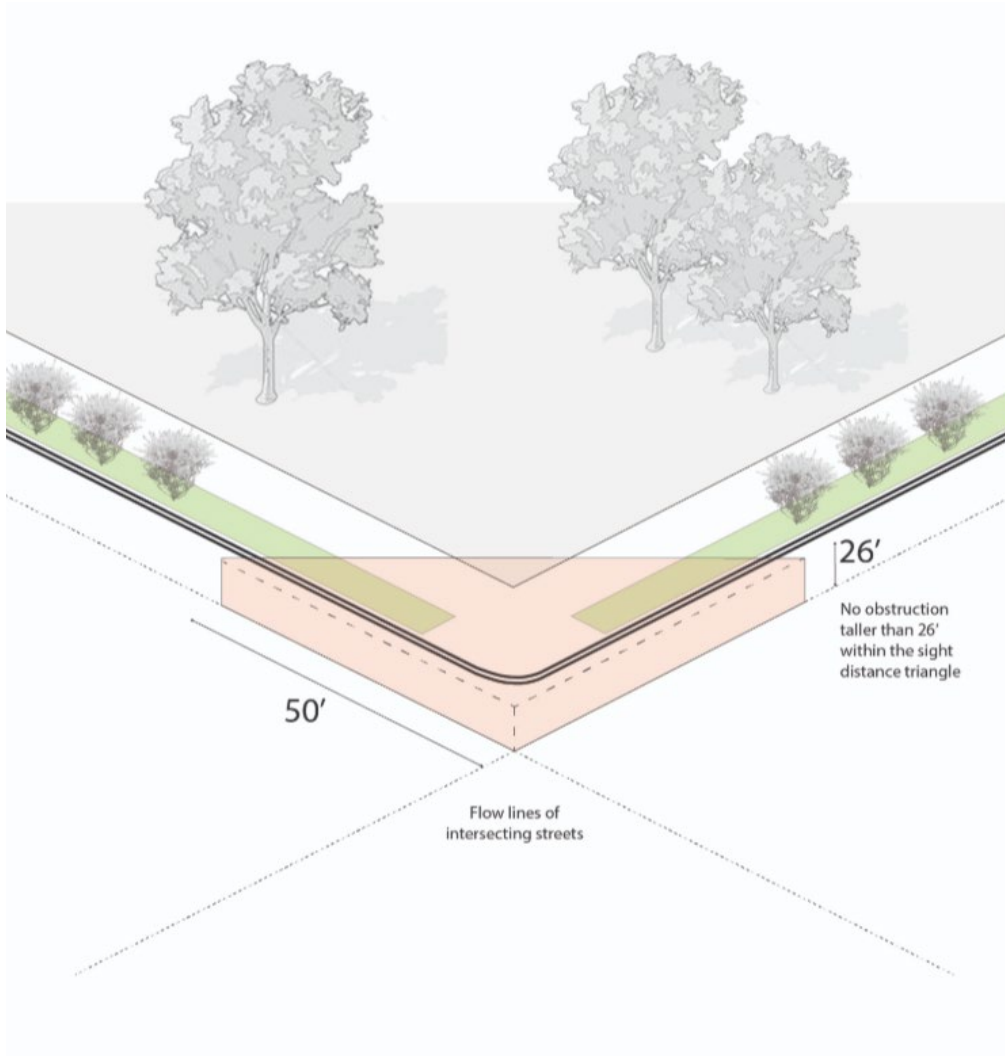
C. Protective Curbing

- a. Where screening surrounds waste containers or refuse receptacles that are mechanically lifted, emptied, or relocated on a regular basis, protective curbing shall be installed on all screened sides.
- b. Curbing shall be positioned at least 12 inches from screening materials and designed to prevent screening damage during container servicing operations.

630.02 - Visibility at Intersections

- A. On any corner lot located within any district, no object shall be erected, placed, or planted, nor shall any vegetation be allowed to grow in such a way that it significantly impedes visibility.

- B. This restriction applies to the space between two and one-half ($2\frac{1}{2}$) feet and ten (10) feet above the center line grades of the intersecting streets.
- C. The area subject to this visibility requirement is defined as the portion of the lot bounded by the right-of-way lines of the corner lot and a straight line connecting points situated fifty (50) feet along each street line from their point of intersection.
- D. These regulations are intended to maintain clear sight lines at intersections to enhance vehicular and pedestrian safety.



630.03 - Lighting

A. Purpose and Intent

The purpose and intent of these lighting standards is to:

- a. Promote safe and efficient nighttime lighting for commercial and residential uses'
- b. Minimize light trespass, glare, and sky-facing light pollution that affect neighboring properties, the rural environment, and pose ecological hazards;

- c. Preserve the rural character and nighttime environment of the Township;
- d. Ensure adequate illumination for commercial activities while protecting adjacent residential and agricultural land uses;
- e. Conserve energy and reduce unnecessary light pollution.

B. General Requirements

Table 604A: General Requirements

Standard	Requirement
Fixture type	Full-cutoff (unless exempt per Section 602.7.D)
Canopy fixtures (gas/service stations)	Fully recessed ceiling fixtures only
Maximum pole/fixture height	35 feet from average grade to top of fixture
Maximum light trespass at property line	0.5 horizontal foot-candles at residential/agricultural property lines; 2.0 horizontal foot-candles at commercial property lines
Residential area protection	No direct glare onto residential or agricultural properties, dwellings, or public roads
Shielding requirement	All fixtures shall prevent upward light and direct view of lamp/light source from adjacent properties and public rights-of-way
Glare control	No fixture shall produce direct glare visible from adjacent properties or public rights-of-way
	Fixtures visible from residential or agricultural districts shall have appropriate shields or cutoff design
	Special attention required for protecting farmsteads and rural residences from commercial lighting

C. Exemptions from Full-Cutoff Requirement

The following lighting types are exempt from the full-cutoff fixture requirement but must comply with all other applicable standards:

- a. **Architectural/Decorative Lighting:** Upward-directed architectural, landscape, or decorative lighting provided that:

- i. Fixtures are shielded or aimed so illumination is not visible above the roofline of the building or object being illuminated;
 - ii. Total wattage does not exceed 150 watts per fixture;
 - iii. Not located within 100 feet of residentially or agriculturally zoned property.
- b. **Flag/Monument Lighting:** Lighting for flags, statues, monuments, or similar features provided that:
 - i. Narrow beam fixtures are used (maximum 30-degree beam spread);
 - ii. Illumination does not extend beyond the object being lit;
 - iii. Fixtures are shielded to minimize glare.
- c. **Outdoor Recreational Facilities:** Athletic fields, ball diamonds, and similar facilities provided that:
 - i. Lighting is extinguished no later than 10:30 PM on weeknights and 11:30 PM on weekends;
 - ii. Fixtures include automatic shutoff controls or timers;
 - iii. Located more than 300 feet from residential dwellings or agricultural operations, or property owner provides written consent.
- d. **Temporary Lighting:** Construction lighting, emergency lighting for utilities or public safety, and seasonal/holiday decorative lighting (maximum 60 days per calendar year).
- e. **Required Safety Lighting:** FAA-required aviation lighting, ODOT-required traffic control lighting, or other lighting required by federal or state law.
 - i. **Agricultural Operations:** Lighting for agricultural operations including barns, equipment storage, and animal facilities is exempt from these standards.

D. Submission Requirements

Prior to approval of a development plan, applicant shall submit:

- a. **Lighting Plan** showing:
 - i. Location of all proposed fixtures with mounting heights
 - ii. Type and wattage of fixtures
 - iii. Direction of illumination
 - iv. Light trespass measurements at property lines
 - v. Distance to nearest residential dwelling or agricultural operation
- b. **Fixture Information** including:
 - i. Manufacturer specifications/cut sheets

- ii. Full-cutoff certification or exemption justification
- iii. Lamp type and lumen output
- iv. Color temperature for LED fixtures

c. **Operating Schedule:** Hours of operation and lighting control methods

E. Compliance and Maintenance

- a. Property owner shall maintain lighting in compliance with approved plans and these standards
- b. Damaged, misaligned, or non-functioning fixtures shall be repaired or replaced within 30 days
- c. Zoning Inspector may require remedial measures for non-compliant lighting creating excessive glare or light trespass
- d. Addition of lighting fixtures after original approval requires zoning certificate amendment

F. Non-Conforming Lighting

- a. Lighting installed prior to [effective date] that does not comply with these standards may continue as legal non-conforming
- b. Non-conforming lighting shall be brought into compliance upon:
 - i. Expansion of parking area by 50% or more
 - ii. Building addition exceeding 50% of existing building footprint
 - iii. Change of use requiring Site Plan Review
- c. Replacement of non-conforming fixtures: If more than 50% of fixtures are replaced within any 24-month period, all lighting shall comply with current standards

Section 640 Environmental and Performance Standards

640.01- Hazardous Activities & Materials

Flammable and Explosive Materials

Any activity involving the use or storage of flammable or explosive materials shall be protected by adequate firefighting and fire-prevention equipment and by such safety devices as are normally used in the handling of any such material. Such hazards shall be removed from adjacent activities to a distance which is compatible with the potential danger involved.

Radioactive or Electrical Disturbances

No activity shall emit dangerous radioactivity at any point, or electrical disturbance adversely affecting the operation of any equipment at any point other than that of the creator of such disturbance.

640.02 - Sensory Hazards

Noise

Objectionable noise as determined by the Zoning Inspector, which is due to volume, frequency, or beat shall be muffled or otherwise controlled. Air-raid sirens and related apparatus used solely for public purposes are exempt from this requirement.

Vibration

No vibration shall be permitted, which is discernible without instruments on any adjoining lot or property.

Glare

No direct or reflected glare shall be permitted which is visible from any property outside an industrial district or from any street.

640.03 - Environmental Hazards

Air Pollution

Air pollution shall be subject to the requirements and regulations established by the Director of the Ohio Environmental Protection Agency.

Water Pollution

Water pollution shall be subject to the requirements and regulations established by the Director of the Ohio Environmental Protection Agency.

Erosion

No erosion, by either wind or water, shall be permitted which will carry objectionable substances onto neighboring properties.

640.04 - Enforcement Provisions

The Zoning Inspector, prior to the issuance of a zoning permit, may require the submission of statements and plans indicating the manner in which dangerous and objectionable elements involved in processing and in equipment operations are to be eliminated or reduced to acceptable limits and tolerances.

640.05 - Measurement Procedures

Methods and procedures for the determination of the existence of any dangerous and objectionable elements shall conform to applicable standard measurement procedures published by the American Standards Association, Inc., New York, the Manufacturing Chemists' Association, Inc., Washington, D.C., the United States Bureau of Mines, and the Ohio Environmental Protection Agency.

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Section 650 - Use-Specific Standards

650.01 - Cannabis Uses

- A. All cannabis uses must have an Adult Use Cannabis License issued by the State of Ohio, and be in compliance with all rules and regulations, as outlined in Chapter 3780 of the Ohio Revised Code. Only those applicants in conformance with Chapter 3780 of the Ohio Revised Code, and holding a valid Adult Use Cannabis License as issued by the State of Ohio, shall have their applications for conditional use accepted.
- B. Cannabis uses shall be restricted to Adult use cannabis dispensaries.
- C. Zoning permits for cannabis uses shall be limited to the following numbers. Conditional Use Permits for cannabis uses shall be accepted on a first-come basis. An application that is incomplete, or that is not in conformance with any part of this section, shall not be accepted.
 - a. Two (2) Zoning Permits for adult use cannabis dispensaries within the unincorporated areas of Saybrook Township.
 - b. In the event where an applicant for a Conditional Use Permit for a cannabis use submits a completed application, but there are no licenses available, that application shall be placed on a waiting list for a period of five (5) years, and shall be eligible for an available permit based on position on the waiting list. The Township Administrator shall be responsible for administration of the waiting list.
- D. Cannabis uses shall be subject to the following regulations, in addition to those found within the Ohio Revised Code.
 - a. Any cannabis use shall be sited at least 500' from the nearest boundary of a property containing a school, state-licensed daycare facility, public library, or public park.
 - b. Any cannabis use shall be sited at least one mile from the nearest dispensary, pursuant R.C. §3796.10 (5)(a).
 - c. Any cannabis use shall be sited at least 100' from the front door of any residential use, measured from the corner of the property containing the cannabis use.
 - d. A parking and circulation plan shall be provided. Plan must clearly show required parking areas and account for circulation. Plan must also account for potential vehicle queueing and must address this as part of the zoning permit process.
 - e. All exterior lighting shall be downward facing and dark-sky compliant, and shall not encroach onto adjacent properties. The Township Board of Trustees may require a photometric plan as part of the approval of the Conditional Use.
 - f. All lighting outside and inside of a dispensary location must be maintained in good working order and wattage sufficient for clear security and surveillance.

- g. All cannabis uses shall negotiate an agreement with the Board of Township Trustees to outline community benefits of the cannabis use as described in Ohio Revised Code.
- E. Cannabis uses shall remain subject to all other applicable sections of this Zoning Resolution.
- F. Conditional Use Permits for cannabis uses are non-transferrable. They shall be subject to review under the following circumstances
 - a. Each January, to ensure compliance with Ohio Revised Code.
 - b. Upon valid complaint of violation of conditions outlined within the Conditional Use Permit.
 - c. Upon notice of violation or revocation of license from the State of Ohio.
- G. Conditional Use Permits for cannabis uses shall be forfeit and void after sixty (60) days from the date of approval if an operator agreement has not been established with the Township Trustees. Extension of the sixty (60) day period may be extended by mutual agreement of the Township Trustees and the applicant.
- H. A Conditional Use Permit may be revoked under the following conditions
 - a. Loss of Adult Use Cannabis License from the State of Ohio
 - b. A pattern of criminal activity as determined by criminal citations and/or criminal charges and convictions.
 - c. Violation of the conditions of the Conditional Use Permit.
 - d. Breach of the operator agreement as established with the Township Trustees.
 - e. Voluntary cessation of the cannabis use for a period of greater than sixty (60) days.
- I. In instances where a Conditional Use Permit for cannabis uses has been forfeit or revoked, the permit holder, their assigns, or dba, shall be prohibited from making application for Conditional Use Permit for cannabis uses in the unincorporated areas of Pierce Township for no less than one (1) year from the date of loss of permit.
- J. Pursuant R.C. Section 3796.29 (B)(3), No portion of this section shall be construed as to restrict the ability of a state university, academic medical center, or private research and development organization to conduct testing and laboratory research on cannabis.
- K. In instances where Ohio Revised Code and this Zoning Resolution are in disagreement, the more restrictive guideline shall prevail.

650.02 - Short-Term Rentals

- A. *Purpose.* This section regulates the operation of short-term rental properties in Saybrook Township. These provisions are necessary to ensure short-term rentals are compatible with the rural residential character of the Township and do not create

unreasonable burdens on Township services or adverse impacts on neighboring properties. It is the intent of this section to protect the health, safety, and welfare of residents while allowing property owners reasonable use of their property.

B. Definitions - for the purposes of this section:

- a. *Short Term Rental (STR)*. Any dwelling or portion thereof that is rented for temporary lodging for fewer than thirty (30) consecutive days, where the owner receives monetary compensation. Traditional bed and breakfasts licensed as home occupations, boarding houses, rooming houses, and hotels/motels are not short-term rentals for purposes of this section.
- b. *Owner*. A person who possesses legal title to the property.
- c. *Owner-Occupied*. A home in which the owner resides the property for a minimum of one hundred eighty-three (183) nights per calendar year, as documented by legal identification, vehicle registration, or taxation documents.
- d. *Local Contact Person*. A designated representative of the owner available 24 hours per day, 7 days a week, to respond to inquiries or complaints regarding the short-term rental.
- e. *Accessory Dwelling Unit (ADU)*. A secondary dwelling unit on the same lot as the primary dwelling unit, with independent living facilities including a kitchen, bathroom, and sleeping areas. An ADU may be attached or detached from the primary dwelling unit.

C. Short-term rental classifications and permit requirements.

STRs cannot be governed uniformly. There are several different types of residential STRs, each with its own unique set of circumstances and neighborhood impacts. The following table defines the type of STR, owner-occupancy requirements, and limitations on number of nights to be rented.

STR Type	Description	Max Rental Nights/Year	Permit Type	Density Limit	Separation Distance
Type 1: Partial-House	One or more rooms rented while owner occupies main dwelling	365	Zoning Permit	3 per 100 residential properties	100 feet

Type 2: Whole-House (Owner-Occupied)	Entire dwelling rented when owner not present; owner occupies 183+ nights/year	182	Zoning Permit	1 per 100 residential properties	250 feet
Type 3: Accessory Dwelling Unit	ADU on property rented while owner occupies primary dwelling	365	Zoning Permit	3 per 100 residential properties	100 feet
Type 4: Whole-House (Non-Owner-Occupied)	Entire dwelling rented; owner occupies less than 183 nights/year or business entity owned	365	Conditional Use Permit	Maximum of 50 township-wide	500 feet

D. Application Requirements. An application for an STR shall include the following:

- a. Completed application form provided by the Township;
- b. Property address, parcel number, and STR type classification;
- c. Proof of ownership;
- d. *For Types 1, 2, and 3:* Documentation of owner occupancy (driver's license, vehicle registration, or tax documents);
- e. Name and contact information for the Local Contact Person;
- f. Maximum occupancy (not to exceed two persons per bedroom plus two additional persons);
- g. Site plan showing parking spaces and ADU location (if applicable);
- h. Floor plan showing location of bedrooms, exits, and fire safety equipment;
- i. Proof of current property liability insurance of at least \$300,000;

- j. Copy of current property tax statement showing taxes are paid;
 - k. *For Type 4:* Demonstration of compliance with density limits and separation distances; and
 - l. Application fee as established by resolution of the Board of Trustees.
- E. *Operational Standards.* All short-term rentals shall comply with the following standards:
- a. *Occupancy.* Maximum occupancy shall not exceed two (2) persons per bedroom plus two (2) additional persons, or the occupancy limit established by applicable building and fire codes, whichever is less.
 - b. *Parking.* A minimum of one (1) off-street parking space per bedroom shall be provided. All parking shall be on paved or gravel surfaces; no parking on grass or unpaved areas.
 - c. *Local Contact Person.* The owner shall designate a Local Contact Person who:
 - i. Is available 24 hours per day, 7 days per week;
 - ii. Can be physically present at the property within one (1) hour when necessary; and
 - iii. Has authority to take remedial action to address complaints or violations.
 - d. *Guest Notification.* The owner shall provide guests with written information including:
 - i. Maximum occupancy;
 - ii. Parking locations and restrictions;
 - iii. Trash and recycling procedures;
 - iv. Contact information for the Local Contact Person;
 - v. Applicable noise regulations and quiet hours (10:00 p.m. to 8:00 a.m.); and
 - vi. Emergency contact information (911, poison control).
 - e. *Property Maintenance.* The property shall be maintained in compliance with applicable building, health, and safety codes. The owner shall ensure:
 - i. Working smoke detectors on each level and in each sleeping area;
 - ii. Working carbon monoxide detector(s) as required by law;
 - iii. Fire extinguisher readily accessible on each level;
 - iv. Posted emergency evacuation plan; and
 - v. Regular trash removal and property upkeep.
 - f. *Noise and Conduct.* Guests shall comply with all Township ordinances, including noise regulations. Outdoor amplified sound is prohibited between 10:00 p.m. and 8:00 a.m.

- g. *Septic Systems.* Properties with on-site sewage disposal systems shall maintain systems in proper working order and shall not exceed the designed capacity of the system.
 - h. *Annual Reporting (Types 2, 3, and 4).* At the time of permit renewal, owners shall submit a log or calendar showing rental nights for the previous year to demonstrate compliance with occupancy limits and type classification requirements.
- F. *Density and Separation Requirements*
- a. Density limits shall be calculated based on the total number of residential properties within the Township as of January 1 of each year.
 - b. Separation distances shall be measured property line to property line from the nearest other short-term rental of the same or more restrictive type.
 - c. Type 4 permits shall not be issued if doing so would exceed the township-wide limit of 10 permits or would violate the 500-foot separation requirement.
 - d. Permits issued prior to reaching density limits remain valid. Separation and density requirements apply only to new permit applications.
- G. *Grounds for Denial or Revocation.* The Zoning Inspector or Board of Zoning Appeals shall deny or revoke a permit if:
- a. The application contains false or misleading information;
 - b. The property is not in compliance with applicable zoning, building, or health codes;
 - c. Property taxes are delinquent;
 - d. The proposed STR does not meet the density or separation requirements for its type;
 - e. The owner or Local Contact Person has failed to respond to complaints or violations within the required timeframe;
 - f. There is a documented pattern of violations of this section or other Township ordinances in connection with the short-term rental operation;
 - g. Outstanding orders from the fire department, health department, or building inspector have not been corrected; or
 - h. The owner fails to maintain the required occupancy to qualify for the STR type (e.g., Type 2 owner no longer occupies property 183+ nights/year).
- H. *Complaints and Enforcement.*
- a. Any person may file a written complaint with the Zoning Inspector regarding a short-term rental.
 - b. Upon receipt of a complaint, the Zoning Inspector shall investigate and may inspect the property.

- c. If a violation is found, the owner shall be notified in writing and given ten (10) days to correct the violation, unless the violation poses an immediate threat to health or safety.
 - d. Failure to correct a violation within the specified timeframe may result in permit suspension or revocation.
- I. *Appeals.* Any person aggrieved by a decision of the Zoning Inspector under this section may appeal to the Board of Zoning Appeals within thirty (30) days of the decision in accordance with Ohio Revised Code Section 519.15.
- J. *Permit Duration and Renewal.*
 - a. All STR permits are valid for one (1) year from the date of issuance and must be renewed annually.
 - b. Permits are non-transferable and apply only to the specific property and owner listed on the permit.
 - c. Renewal applications must be submitted at least 30 days prior to expiration.
 - d. A change in STR type classification requires a new permit application following the procedures applicable to that type.
- K. *Tax Compliance.* Each short-term rental shall comply with all applicable state and local tax requirements, including Ohio lodging taxes, a five (5) per cent tax on lodging in Ashtabula County (Res. 2024-391), and a three (3) per cent tax on lodging instituted by Saybrook Township (Res. 2022-225). Proof of tax registration and payment may be required at permit renewal.
- L. *Relationship to Other Regulations.* This section supplements other applicable Township ordinances and regulations. In the event of conflict, the more restrictive provision shall apply. All short-term rentals must comply with applicable building, electrical, plumbing, fire, health, and zoning code requirements.
- M. *Penalties.*
 - a. Any person who violates this section shall receive written notice of the violation specifying the nature of the violation and the required corrective action.
 - b. Fines for violations shall be specified in the Township Fee Schedule as approved by the Board of Trustees.
 - c. Each day a violation continues shall constitute a separate offense.
 - d. Permit holders whose permits are revoked must wait twelve (12) months before reapplying.
- N. *Severability.* If any section, provision, or portion of this section is adjudged unconstitutional or invalid by a court of competent jurisdiction, the remainder of this section shall not be affected thereby.

Article 7- Non-Conformities

700 - Intent, Purpose, and Applicability

This Article recognizes that the adoption of this Zoning Resolution may create situations where existing lots, structures, and uses do not conform to current requirements. The intent of these provisions is to:

1. Acknowledge the lawful establishment of pre-existing conditions;
2. Allow reasonable continued use and maintenance of non-conforming properties;
3. Prevent the creation of new non-conformities;
4. Provide flexibility for property owners while advancing Township goals; and
5. Ensure non-conforming properties can function normally and adapt to changing needs.

It is not the intent of this Resolution to render non-conforming properties economically unviable or to prevent reasonable and appropriate alterations and maintenance procedures to nonconforming structures. Rather, these provisions balance property rights with community planning objectives.

700.01 - Applicability

This Article applies solely to legal non-conforming uses and structures. Uses, lots, and structures that were unlawful when established or that changed unlawfully:

1. Shall not continue; and
2. Must be brought into conformity with the current Zoning Resolution.

700.02 - Definition of Non-Conformities

A non-conformity is any use, lot, improvement, or structure that, as a result of amendments to this resolution or a preexisting condition, does not meet the current standards of the resolution.

- A. **Nonconforming Use** - Any land use or type of residential use that was legally established, but has become a prohibited use in the district in which it exists.
- B. **Nonconforming Lot** - Any legally established parcel that does not conform to the current area or dimensional requirements of the zoning district in which it is located.

- C. **Nonconforming Improvement or Structure** - Any legally established improvement, building, or structure that fails to meet current Zoning Resolution standards for setbacks, height, or similar dimensional standards.

710 - Non-Conforming Lots of Record

710.01 - Lots of Record

Any lot of record that was lawfully created prior to the effective date of this Resolution, but which does not meet current minimum lot area or width requirements, shall be considered a non-conforming lot of record.

710.02 - Use of Non-Conforming Lots

A. **Single Non-Conforming Lot**

- a. A non-conforming lot of record may be used for any permitted use in the district, provided:
 - i. The lot was in separate ownership from adjoining lots as of the effective date
 - ii. All other applicable regulations (setbacks, coverage, height) are met to the greatest extent possible
 - iii. Where strict compliance with setback requirements would prevent reasonable use, the Zoning Inspector may approve reduced setbacks not less than 50% of required setbacks

B. **Adjacent Non-Conforming Lots**

- a. Where a property owner holds two or more adjacent non-conforming lots of record, the lots shall be combined for development purposes to achieve greater conformity with current standards, unless:
 - i. The lots were acquired at different times, and combining would create undue hardship
 - ii. Physical conditions make combination impractical
 - iii. The Board of Zoning Appeals grants a variance
- b. No portion of said parcel shall be used or sold in a manner which diminishes compliance with lot width and area requirements established by this resolution, and no division of any parcel shall be made which creates a lot with a width or area below the requirements stated in this resolution.

C. **Dimensional Relief**

- a. Non-conforming lots may seek dimensional variances for setbacks, lot coverage, or building height through the Board of Zoning Appeals under the area variance standards in Article VIII.

Section 710.03 - Additions and Accessory Structures

On non-conforming lots, additions to principal structures and new accessory structures are permitted, provided:

1. No new non-conformities are created
2. Existing non-conformities are not increased
3. All structures comply with setback requirements, or receive approval for modified setbacks from the Zoning Inspector or Board of Zoning Appeals

Section 720 - Non-Conforming Structures

Section 720.01 - Definition

A non-conforming structure is a building or structure that lawfully existed prior to the effective date of this Resolution but fails to comply with current setback, height, lot coverage, or other dimensional standards.

Section 720.02 - Maintenance and Repair

Non-conforming structures may be maintained, repaired, and renovated without limitation, including:

1. Routine maintenance and upkeep
2. Interior renovations
3. Roof replacement
4. Foundation repairs
5. Exterior repairs or replacements in kind
6. Updates to mechanical, electrical, or plumbing systems

Section 720.03 - Alterations and Additions

- A. **Alterations Not Increasing Non-Conformity.** Alterations to non-conforming structures are permitted where they do not increase the degree of non-conformity (e.g., additions that comply with current setbacks).
- B. **Alterations Increasing Non-Conformity.** Alterations that would increase a non-conformity (e.g., expanding into a required setback) require approval from the Board of Zoning Appeals.

C. **Vertical Additions.** Vertical additions to non-conforming structures are permitted provided they:

1. Do not increase the building footprint
2. Comply with height limitations
3. Maintain or improve structural safety

Section 720.04 - Reconstruction After Damage

A. **Damage Less Than 55%.** If a non-conforming structure is damaged by fire, flood, wind, or other casualty to an extent less than 55% of its replacement cost, it may be reconstructed to its previous condition, provided:

1. Reconstruction begins within 12 months of the damage
2. Reconstruction is completed within 24 months of commencement
3. The reconstructed structure has the same or smaller footprint

B. **Damage 55% or Greater.** If damage exceeds 55% of replacement cost, reconstruction must comply with current zoning requirements, unless the Board of Zoning Appeals grants a variance based on exceptional hardship.

C. **Extension of Time.** The Zoning Inspector may grant one extension of up to 12 months for reconstruction timelines upon showing of good cause.

Section 730 - Non-Conforming Uses

Section 730.01 - Definition

A non-conforming use is a use of land or structure that was lawfully established prior to the effective date of this Resolution but is not permitted under current regulations.

Section 730.02 - Continuation

Non-conforming uses may continue indefinitely, subject to the limitations in this section. The Township recognizes that many non-conforming uses contribute to the community character and economic vitality.

Section 730.03 - Normal Operations

Non-conforming uses may continue normal operations, including:

1. Routine maintenance of facilities
2. Normal business operations and activities

3. Seasonal variations in activity
4. Temporary increases in activity due to market conditions
5. Normal employee turnover and management changes

Section 730.04 - Expansion and Intensification

- A. **On-Site Expansion.** A non-conforming use may be expanded on the same lot, provided:
1. The expansion does not increase the lot coverage by more than 25% of the existing coverage
 2. The expansion complies with all dimensional requirements (setbacks, height)
 3. A conditional use permit is obtained demonstrating compatibility with surrounding properties
 4. The expansion does not create additional impacts (traffic, noise, lighting) that substantially differ from the existing operation
- B. **Building Expansion.** Expansion or modification of structures housing non-conforming uses is permitted, subject to:
1. Compliance with building code requirements
 2. Approval by the Zoning Inspector if expansion is less than 500 square feet
 3. Conditional use permit if expansion exceeds 500 square feet

Section 730.05 - Change of Use

- A. **To Conforming Use.** A non-conforming use may be changed to any permitted use in the district without restriction.
- B. **To Another Non-Conforming Use.** A non-conforming use shall not be changed to another non-conforming use.

Section 730.06 - Abandonment and Discontinuance

A. Abandonment Period. A non-conforming use that is discontinued for a continuous period of 24 months shall lose its non-conforming status. Any future use of the property must comply with current zoning requirements.

B. Evidence of Intent. Abandonment shall be determined by considering:

1. Physical evidence of discontinued operations
2. Utilities disconnection
3. Property listing for sale or lease for non-conforming use

4. Property owner statements
5. Active efforts to maintain non-conforming status

C. Temporary Cessation. Temporary cessation due to economic conditions, seasonal operations, repair/renovation, or other circumstances beyond the owner's control shall not constitute abandonment, provided the owner demonstrates intent to resume operations.

Section 740 - Completion Of Approved Projects

Any development or use for which a valid building permit or zoning certificate has been issued prior to the effective date of this Resolution may be completed in accordance with the approved plans, provided:

1. Construction begins within 6 months of the effective date
2. Construction proceeds diligently to completion
3. The development complies with all applicable building and safety codes

Section 750 - Registry Of Non-Conformities

Section 750.01 - Township Registry

The Zoning Inspector shall maintain a registry of known non-conforming lots, structures, and uses to:

1. Document pre-existing conditions;
2. Track changes and modifications;
3. Provide information to property owners and prospective buyers; and
4. Assist in administration of these provisions.

Section 750.02 - Property Owner Rights

Property owners may submit documentation to the Zoning Inspector to have their non-conforming status officially recognized and recorded. Such documentation may include:

1. Survey information;
2. Building permits;
3. Deed records;
4. Historical photographs; or
5. Tax records.

Section 750.03 - Protection of Status

Official registry of non-conforming status provides:

1. Clear record of lawful non-conformity
2. Protection against future challenges
3. Basis for future modifications under this Article
4. Documentation for property transactions

Section 760 - Variances For Non-Conforming Properties

Property owners with non-conforming lots or structures may seek relief through the Board of Zoning Appeals under the variance procedures in [UPDATE CROSS REFERENCE]. The Board shall give particular consideration to:

1. The degree of existing non-conformity
2. Practical difficulties created by strict application
3. Whether the non-conformity was created by Township action
4. Opportunities to reduce non-conformities
5. Overall consistency with Township objectives

Section 770 - Amortization Prohibited

No provision of this Resolution shall require the removal, discontinuance, or abandonment of any lawful non-conforming use, structure, or lot within any specified time period. The Township recognizes property rights in existing lawful conditions and does not impose mandatory amortization periods.

Article 8 - Planned Unit Development

Section 800 - Objectives for Planned Unit Development

The Township of Saybrook establishes the following objectives for planned unit developments:

1. **Housing Diversity.** The Township shall promote maximum choice in living environments through varied housing types, increased density per acre, and reduced lot dimensions, yards, building setbacks, and area requirements.
2. **Open Space and Amenities.** The Township shall encourage efficient patterns of open space, recreation areas, and convenient locations for accessory commercial uses and services.
3. **Natural Resource Preservation.** The Township shall require development patterns that preserve natural topography, geologic features, scenic vistas, trees, vegetation, and natural drainage patterns.
4. **Infrastructure Efficiency.** The Township shall promote more efficient land use than conventional development, resulting in reduced costs for utilities and streets.
5. **Comprehensive Plan Harmony.** The Township shall ensure development patterns align with land use density, transportation facilities, and community facilities objectives of the comprehensive plan.
6. **Increased Density with Public Benefits.** The Township may accept greater population density in undeveloped areas than reflected in current zoning when the developer demonstrates that any increment of public cost attributable to increased densities will be offset by private amenities and public benefits.

Section 810 - Provisions Governing Planned Unit Development

1. When conflicts exist between this article and other articles of this resolution, the provisions of this article shall prevail.
2. Subjects not covered by this article shall be governed by respective provisions found elsewhere in this resolution.

Section 811 - Application and Procedure

1. A planned unit development district may be applied to any existing residential district upon approval by the Zoning Commission and the Board of Township Trustees.
2. Upon approval of a final development plan, the Official Zoning Map shall be annotated for the land area involved to include the notation "PUD" in the district name.
3. Planned Unit Development districts shall be approved according to the procedures in Sections 1350-1364 of this Article.

Section 812 - Uses Permitted

1. **Allowed Use Combinations.** Compatible residential, commercial, light industrial, public, and quasi-public uses may be combined in PUD districts, provided that commercial or light industrial uses will not adversely affect adjacent property or the public health, safety, and general welfare.
2. **Residential Standards.** Lot area and yard requirements of residential districts established in Article 8 shall apply except as modified in Sections 1325 and 1327.
3. **Commercial and Industrial Land Allocation.** The Zoning Commission shall determine and the Board of Township Trustees shall approve the amount of land devoted to commercial and industrial uses in mixed-use developments.
4. **Priority of Allowed Uses.** While light industrial is an approved use that can contribute to the flexible nature of PUD districts, uses shall remain primarily residential and commercial with an emphasis on achieving efficient patterns of open space and amenities.

Section 820 - Minimum Project Area

Project Area Requirements

Development Type	Minimum Gross Area	Maximum Commercial Use	Maximum Industrial Use
PUD Projects	20 acres*	8% of tract	12% of tract

*Smaller parcels may be considered if they satisfy the objectives stated in Section 900.

Section 821 - Project Ownership

The project land may be owned, leased, or controlled by a single person or corporation, or by a group of individuals or corporations, whether public or private.

Section 822 - Common Open Space

A minimum of twenty percent of the land in any planned unit development project shall be reserved for common open space and recreational facilities for residents or users of the development. Such open space shall be well distributed throughout the entire PUD District. The open space shall be disposed of as required in Section 923.

Section 823 - Disposition of Open Space

1. **Ownership Options.** The required common open space shall be either:
 - a. Held in corporate ownership by project area owners for the use of each property owner within the development; or
 - b. Dedicated to the Township and retained as common open space for parks, recreation, and related uses.
2. **Township Dedication Requirements.** All land dedicated to the Township must meet the Zoning Commission's requirements for size, shape, and location.
3. **Excluded Areas.** Public utility easements, decks and roofs, rights-of-way for water courses, and similar channels are not acceptable for common open space dedication unless such land is usable as a trail or similar purpose and approved by the Zoning Commission.
4. **Maintenance Responsibility.** The developer shall specify responsibility for maintenance of all open spaces before approval of the final development plan. Fees for preservation, improvement, and maintenance of the common open space shall be stated with adequate provision for collection.

Section 824 - Utility Requirements

1. The PUD district shall have an adequate source of potable water. All water lines constructed within the district shall be at the sole cost of the owner or developer and title thereto shall be assigned to the appropriate water utility upon completion thereof. All plans and specifications and construction of all water lines shall meet the approval of all regulatory agencies having jurisdiction.

2. No occupancy of buildings within any phase of a PUD District shall be permitted until an adequate sanitary sewer disposal system to service such phase is available or a good and sufficient bond approved by the Township and County, equal to the estimated cost of the sewage system, has been deposited with appropriate authorities.
3. In cases where extension of public sanitary sewer service is not feasible due to location or other constraints, the use of on-site septic systems or community-based package treatment plants may be permitted, subject to approval by the appropriate regulatory agencies. All such systems must comply with applicable state and county health regulations, and the developer shall provide ongoing maintenance plans to ensure continued safe operation.
4. Underground utilities, including telephone, gas lines, and electrical systems, are required within all planned unit developments.
5. Appurtenances that can be effectively screened may be exempted if the Zoning Commission finds that such exemption will not violate the intent or character of the proposed development.
6. All utility systems shall be located and designed in such a manner as to preserve the natural features of the land within the PUD District, such as streams, rock outcropping, topsoil, trees, and shrubs.
7. Easements shall be provided for utilities where necessary and shall be adequate width to facilitate the proposed usage.

Section 825 - Minimum Lot Sizes

Lot Size Modifications

Standard	Modification Allowed
Lot area per dwelling unit	Lot size diversification is encouraged
Density requirements	PUD need not conform to Article 8 requirements
Lot widths	May be varied to allow structural design variety
Setbacks	Variation is recommended

Section 826 - Design Guidelines

1. Every property developed under the planned unit development approach should abut common open space or similar areas.
2. Clustering of dwellings is encouraged.
3. Detached dwellings shall have a variety of building designs and architectural features.
4. In areas with town houses, no more than eight contiguous town house units shall be grouped together.
5. Single or 2-story attached dwelling structures shall maintain a unified architectural style.
6. All structures, attached or detached, shall be separated from any project boundary by a distance not less than twice the height of the structure or 50 feet, whichever is greater.
7. Outside lighting, where provided, shall be so arranged as to promote safe and efficient lighting for commercial and residential uses, while minimizing light trespass and pollution to preserve the rural character and nighttime environment of the Township. Lighting should conform to the requirements specified in section 630.03.

Section 827 - Height Requirements

Height Requirement Adjustments

Maximum building heights of all buildings within the PUD district shall maintain all height requirements specified in Article 5.

Section 928 - Parking

1. Off-street parking, loading, and service areas shall be provided according to Article 11.
2. Off-street parking and loading areas shall not be located within fifteen feet of any residential use.
3. The overnight parking of automobiles and other vehicles on private and public streets within a PUD is prohibited.
4. Parking lots should be designed to minimize the amount of clearing required and to provide adequate site distances.

5. A required 0.5 guest parking spaces per dwelling unit shall be provided and well distributed throughout the district.

Section 829 - Perimeter Yards

Every lot abutting the perimeter of the planned unit development district shall maintain all yard requirements specified in Article 9 for the applicable conventional zoning district.

Section 830 - Arrangement of Commercial Uses

1. **Grouping and Access.** Commercial buildings and establishments shall be planned as groups with common parking areas and common ingress and egress points to reduce potential accident locations at intersections with thoroughfares.
2. **Screening.** Screening fences or plantings shall be provided on the perimeter of commercial areas abutting residential areas.
3. **Design Integration.** The project plan shall provide for:
 - a. Integrated and harmonious building design;
 - b. Adequate and properly arranged internal traffic circulation facilities;
 - c. Landscaping; and
 - d. Features necessary to make the project attractive and efficient for adjoining and surrounding non-commercial areas.
4. **Future Expansion Areas.** All areas designated for future expansion or not intended for immediate improvement shall be landscaped or maintained in a neat and orderly manner as specified by the Zoning Commission.
5. **Signage.** All signs shall be part of the architectural concept. Size, color, location arrangement, and lettering shall be harmonious and compatible with the building design. All signs shall conform to sign regulations as set forth in Article 10.

Section 831 - Arrangement of Light Industrial Uses

1. **Demonstration Requirement.** Industrial uses may be included if the developer shows that the development results in more efficient and desirable land use.
2. **Buffering and Screening.** Industrial uses and parcels shall be developed with:
 - a. Parklike surroundings utilizing landscaping and existing woodlands as buffers;

- b. Screening for lighting, parking areas, loading areas, docks, and outdoor storage of raw materials or products.
- 3. **Building Harmony.** Planned industrial areas shall provide building harmony and compact grouping to economize utility service provision.
- 4. **Thoroughfare Minimization.** Thoroughfares shall be minimized throughout planned industrial areas to reduce through traffic.
- 5. **Yard Requirements Adjacent to Residential Uses.**

Industrial PUD Yard Requirements

Location	Required Yard
Project side yards (adjacent to residential)	40 feet
Project rear yard (adjacent to residential)	50 feet

- 6. **Landscaping Requirements.** All spaces between right-of-way lines and project building lines, and all spaces between buildings, drives, parking areas, and improved areas shall be landscaped with trees and plantings and properly maintained.

Section 840 - Procedure for Approval of PUD District

Planned Unit Development Districts shall be approved according to procedures in Sections 941-964.

Section 841 - Pre-Application Meeting

- 1. The developer shall meet with the Zoning Inspector and Commission before submitting the preliminary development plan.
- 2. **Meeting Purpose.** The meeting shall:
 - a. Discuss the purpose and effect of this resolution;
 - b. Review criteria and standards;
 - c. Familiarize the developer with the comprehensive development plan, major thoroughfare plan, parks and public open space plan, subdivision regulations, and drainage, sewer, and water systems.

Section 842 - Contents of Application for Approval of Preliminary Development Plan

An application for preliminary planned unit development shall be filed with the Zoning Commission Chairperson by at least one owner or lessee of the property. The application shall contain the following information in triplicate:

Required Application Information

Item	Description
1. Applicant contact	Name, address, phone number
2. Professional assistance	Name, address, phone number of registered surveyor, engineer, and/or urban planner
3. Legal description	Complete legal description of property
4. Current use	Description of existing use
5. Zoning district(s)	Current zoning designation(s)
6. Vicinity map	Scale approved by Commission showing property lines, streets, existing and proposed zoning, relationship to comprehensive plan, schools, and community facilities
7. Preliminary development plan	Scale approved by Commission showing topography (2-foot intervals), land uses, streets, rights-of-way, easements, parks, lots, setbacks, and preliminary utilities
8. Development schedule	Proposed timeline for site development
9. Land control evidence	Documentation of sufficient control to initiate development within 5 years

The application shall include a written statement from the developer explaining why the planned unit development would serve the public interest and would be consistent with the objectives in Section 900.

Section 843 - Public Hearing by Zoning Commission

The Zoning Commission shall hold a public hearing within thirty days after receipt of the preliminary development plan.

Section 844 - Notice of Public Hearing in Newspaper

1. Notice of the public hearing shall be published in one or more newspapers of general circulation in the Township at least twenty days before the hearing date.
2. The notice shall state the time and place of the public hearing and provide a general description of the planned unit development.

Section 845 - Notice to Property Owners

1. The Zoning Commission Chairperson shall send written notice by first class mail at least twenty days before the hearing to all owners of property contiguous to or directly across the street from the proposed PUD district area.
2. Failure to deliver notice as provided in this section shall not invalidate any approval.
3. The notice shall contain the same information required for newspaper notices under Section 944.

Section 846 - Approval in Principle by Zoning Commission

1. **Review Period and Criteria.** Within thirty days after the public hearing, the Zoning Commission shall review the preliminary development plan to determine whether:
 - a. It is consistent with the intent and purpose of this resolution;
 - b. The proposed development advances the general welfare of the community and neighborhood; and
 - c. The benefits, combination of land uses, and interrelationship with surrounding land uses justify deviations from standard district regulations.
2. **Required Approval.** The Commission's approval in principle is necessary before an applicant may submit a final development plan.
3. **Scope of Approval.** Approval in principle shall not endorse precise location of uses, configuration of parcels, or engineering feasibility.
4. **Technical Assistance.** The Zoning Commission may seek assistance from the County Planning Commission or other appropriate sources.

Section 847 - Final Development Plan

After receiving approval in principle of the preliminary development plan, the developer shall submit a final development plan to the Zoning Commission. The final development plan shall generally conform to the approved preliminary development plan.

Section 848 - Contents of Application for Approval of Final Development Plan

An application for approval of the final development plan shall be filed with the Zoning Commission Chairperson by at least one owner or lessee of the property. Each application shall:

1. Be signed by the owner or lessee, attesting to the truth and exactness of all information; and
2. Clearly state that approval expires and may be revoked if construction has not begun within five years from approval date.

Required Final Development Plan Information

Item	Description
1. Survey	Dimensions, bearings of property lines, area in acres, topography, existing features (wooded areas, structures, streets, easements, utilities, land uses)
2. Comprehensive site information	All preliminary plan information plus lot locations and sizes, dwelling unit density, non-residential building intensity, and suitable adjacent land uses
3. Development schedule and design	Unit construction progression, building and streetscape design principles, acreage tabulation by use, housing units by type, population estimates, timing, and standards for height, open space, density, parking, and public improvements
4. Engineering studies	Water, sewer, drainage, electricity, telephone, natural gas installations, waste disposal, street improvements, and site preparation earthwork
5. Site plan	Buildings, functional use areas, circulation, and relationships
6. Building plans	Preliminary floor plans and exterior elevations
7. Landscaping plans	Complete landscaping specifications

8. Legal documents Deed restrictions, protective covenants, and other legal instruments controlling use, development, and maintenance of land and improvements, including commonly owned areas

Section 849 - Public Hearing by Zoning Commission

The Zoning Commission may hold a public hearing within thirty days after receiving the final development plan. If held, notice shall be given as specified in Sections 944 and 945.

Section 850 - Recommendation by Zoning Commission

Within sixty days after receiving the final development plan, the Zoning Commission shall recommend to the Board of Township Trustees that the final development plan be approved as presented, approved with supplementary conditions, or disapproved. The Commission shall transmit all papers constituting the record and recommendations to the Board.

Section 851 - Criteria for Recommendation by Zoning Commission

Before making its recommendation under Section 950, the Zoning Commission shall find that the facts submitted establish that:

1. The proposed development can be initiated within five years of approval date.
2. Each individual unit and the total development can exist as an independent unit capable of creating sustained desirability and stability, or adequate assurance is provided that this objective will be attained. The proposed uses will not be detrimental to surrounding uses and will have beneficial effects unachievable under standard district regulations.
3. The proposed streets and thoroughfares are suitable and adequate to carry anticipated traffic. Increased densities will not generate traffic amounts that overload the street network outside the planned unit development.
4. Any proposed commercial development is justified at the proposed locations.
5. Any exception from standard district requirements is warranted by the design and amenities incorporated in the final development plan, in accordance with planned unit development policy adopted by the Zoning Commission and Board of Township Trustees.
6. The surrounding area can be planned and zoned in coordination and substantial compatibility with the proposed development.

7. The planned unit development generally conforms to the County comprehensive plan.
8. Existing and proposed utility services are adequate for the proposed population densities and non-residential uses.

The Zoning Commission may seek assistance from the County Planning Commission or other appropriate sources.

Section 852 - Action by Board of Township Trustees

Within sixty days after receiving the Zoning Commission's final recommendation, the Board of Township Trustees shall by resolution approve, approve with supplementary conditions, or disapprove the application. If approved or approved with conditions, the Board shall direct the Zoning Inspector to issue zoning permits only in accordance with the approved final development plan and attached supplementary conditions.

Section 853 - Supplementary Conditions and Safeguards

1. In approving any planned unit development district, the Board of Township Trustees may prescribe appropriate conditions and safeguards conforming to this resolution.
2. Violation of such conditions or safeguards, when made part of the approval terms, shall constitute a violation of this resolution and be punishable under Section 340.

Section 854 - Expiration and Extension of Approval Period

1. **Approval Duration.** Approval of a final development plan shall be for a period not exceeding five years to allow for subdivision plat preparation, recording, and project development.
2. **Expiration.** If no construction has begun within five years after approval, the approved final development plan shall be void and the land shall revert to the district regulations in which it is located.
3. **Extensions and Modifications.** An extension of the time limit or modification of the approved final development plan may be approved if the Zoning Commission finds that such action does not conflict with the public interest.
4. **Protection from Zoning Amendments.** No zoning amendment passed during the approval period shall affect the terms under which approval of the planned unit development was granted.

Article 9 - Off-Street Parking & Loading Facilities

Section 901 – Purpose

The provisions of this article are intended to ensure that adequate off-street parking is provided to meet the parking needs of the Township. Off-street parking, loading, and stacking spaces shall be provided in accordance with these standards in order to: relieve traffic congestion on streets; promote viable commercial and industrial areas; protect residential neighborhoods; and protect the public health, safety and general welfare.

Section 902 - General Requirements

Compliance Review. Compliance with the Article must be reviewed as part of an application for development plan review or a zoning certificate, whichever is reviewed first, unless otherwise stated in the resolution.

Compliance Required. Parking spaces, loading areas and access drives must be provided in accordance to this article before any building, structure, or land is occupied or used when any of the following occur:

- (1) A new building is constructed;
- (2) A new use is established in an existing building;
- (3) Any building that existed before the effective date of this Zoning Code must comply with all parking requirements if it is expanded by **50 percent or more** in floor area, number of employees, housing units, or seating capacity.

Existing Uses

- 1) These provisions do not apply to existing buildings except when the use changes. When a use changes without additions or enlargements, the new use must provide all required parking spaces.
- 2) Any parking area now serving such existing buildings or uses shall be continued and maintained in operation.
- 3) Any off-street parking or loading area that serves an existing use at the time this Zoning Code is adopted may only be used for parking and loading. These areas cannot be used for selling, servicing, or repairing vehicles, or for any other outdoor activities, unless specifically authorized by the zoning code.

Expansion/Alteration of Existing Facilities

- 4) Parking expansion. If an existing lot or loading area is expanded to cover more surface area, the entire area must be brought into compliance with current

paving, stormwater, and landscaping standards, to the extent reasonably feasible, as determined by the Planning Commission.

Alterations or repairs.

Alterations or repairs that do not increase the size or capacity of an existing parking lot or loading area may be made without requiring full compliance with this Article, provided the improvements comply with applicable standards for the work performed.

Section 903 – Development & Maintenance Requirements

General Maintenance.

1. Property owners are responsible for keeping parking and loading areas in good condition and as free as practicable from holes, hazards, and obstructions.
2. All signs, markers or other methods used to indicate traffic movement and location of off-street parking must be maintained in a neat and legible condition.
3. It is the responsibility of the property owner to maintain and repair parking lots as may be necessary, as deemed by the township, to ensure a dustless surface in good condition, properly drained, and free of obstructions and nuisances in accordance with this code.

Grading.

4. Parking areas, loading areas, and driveways must be properly graded and drained to prevent standing water and to keep runoff away from buildings, neighboring properties, sidewalks, and public rights-of-way.

Paving Surface.

1. Parking and loading for multi-family and nonresidential uses must be paved with a durable, all-weather hard surface and designed and maintained to prevent dust, erosions and surface deterioration.
2. Parking areas required for single-family, duplex and triplex residential lots may be surfaced with gravel.
3. Alternative paving materials, such as porous/permeable pavement, may be considered by the Planning Commission and County Engineer during development plan review.

Lighting. Parking areas used during non-daylight hours must be properly illuminated for safety. Lighting must be arranged to direct light away from adjoining properties and in compliance with Article 6 exterior lighting.

Prohibited Activities.

4. Automotive vehicles or trailers of any kind or type without current license plates shall not be parked or stored on any commercially or residentially zoned property's parking and loading area unless associated with auto repair or service businesses permitted in the Commercial district.
5. The display for sale of all types of vehicles shall be prohibited within any required off-street parking area, except for a private individual selling one personal vehicle from a residence at any one time or at an approved car sales business.
6. The display, sales, or storage of any goods, wares, or merchandise shall not be permitted within any areas designated for required off-street parking, circulation and loading.
7. Parking, loading, and drive areas must remain available for their intended use and may not be blocked or used for storing buildings, structures, or construction materials unless specifically approved as part of an accessory use, temporary use, or an approved development plan.

Section 904 – Off-Street Parking Standards

Minimum Parking Spaces. The purpose of required parking is to ensure adequate on-site parking for the typical traffic generated by uses that may occupy the site over time.

8. The number of required off-street parking spaces shall be at least the minimum specified in Schedule 1004 (a).
9. Reductions to these minimum requirements may be approved for good cause, as provided in section 1004 A-D.
10. For uses not specifically listed in Schedule 1004 (a), the Zoning Inspector may apply the parking standard for the listed use that most closely matches the proposed use and its intensity.

Schedule 1004(a) Minimum Parking Standards

Use Type	Parking Spaces Required
<i>Residential Uses</i>	
Single-family or two-family dwelling	2 per unit
Apartments or multi-family dwellings	2 per unit
Bed and Breakfast	1 space per guest room, plus two spaces for owner-occupant
Boarding/rooming houses, dormitories, fraternity houses	1 per sleeping room or 1 per permanent occupant
Residential Care/Nursing Home	1 space per 2 beds at maximum capacity for care facility
Residential Care Facility- portion dedicated to independent living	1 space per 1-bedroom unit 2 spaces per 2-bedroom unit
Short-Term Rental	1 space per 2 guest rooms, plus and additional 2 spaces per dwelling
<i>Commercial Uses</i>	
Auto service garages with repair	1 per 2 gas pumps + 2 per service bay
Hotels and motels	1 per sleeping room + 1 per 2 employees
Funeral parlors, mortuaries	1 per 100 sq ft of floor area in slumber rooms, parlors, or service rooms
<i>Recreational or Entertainment</i>	
Dining rooms, restaurants, taverns, nightclubs	1 per 200 sq ft of floor area
Bowling alleys	4 per lane + 1 per 100 sq ft of restaurant/lounge area
Dance floors and skating rinks	1 per 100 sq ft of activity floor area
Outdoor swimming pools (public/community/club)	1 per 5 persons capacity + 1 per 4 seats or 1 per 30 sq ft of seating area (whichever is greater)
Auditoriums, sport arenas, theaters	1 per 4 seats
Retail stores	1 per 250 sq ft of floor area
Banks, financial institutions	1 per 200 sq ft of floor area
Offices, professional/public administration, service buildings	1 per 400 sq ft of floor area
All other business or commercial uses	1 per 300 sq ft of floor area

Use Type**Parking Spaces Required*****Institutional***

Churches and religious assembly	1 per 5 seats
Hospitals	1 per bed
Sanitariums, nursing homes, children's homes, asylums	1 per 2 beds
Medical and dental clinics	1 per 200 sq ft of examination, treatment, office, and waiting room area
Libraries, museums, art galleries	1 per 400 sq ft of floor area

Schools (Public, Parochial, or Private)

Elementary and junior high	2 per classroom + 1 per 8 auditorium/assembly hall seats
High schools	1 per 10 students + 1 per teacher and employee
Business, technical, and trade schools	1 per 2 students
Colleges and universities	1 per 4 students
Kindergartens, childcare centers, nursery schools	2 per classroom (minimum 6 per building)

Industrial

Industrial, storage, and wholesale uses	1 per 2 employees (largest shift) + 1 per motor vehicle used in business
Cartage, express, parcel delivery, freight terminals	1 per 2 employees (largest shift) + 1 per motor vehicle maintained on premises

Off-Street Parking Reduction Factors-

- (a) **Shared lots.** For any shared lot or shared improvement, in a commercial or industrial district, the property owners shall enter into a recorded Shared Use Agreement, which must:
- (1) Identify the parties and parcels affected
 - (2) Prove that a shared parking arrangement will be sufficient parking for users.
 - (3) Describe the shared improvements (e.g. access drives, parking lots, stormwater facilities, etc.)
 - (4) Allocate responsibilities for construction, maintenance, snow removal, repair, and liability

- (5) Establish access rights and circulation patterns for all users
- (6) Remain in effect for the life of the shared arrangement unless modified with township approval.
- (7) Be recorded with the County Recorder before zoning approval.
- (b) Public Transit. Where adequate public transit exists or parking demand is unusually low, the Board may reduce parking requirements upon appeal from the Zoning Inspector's decision.
- (c) Approval of Alternative Parking Arrangements. The Planning Commission may approve a development plan for a reduction in the number of spaces required by Schedule 1004(a), when the proposed number of parking spaces provided on-site is supported by a parking assessment, described below, submitted with the application for development plan review.
- (d) Parking Assessment Required. The applicant shall provide a written parking assessment that includes the following information:
 - (1) The nature of the proposed uses, activities and events that will be accommodated.
 - (2) The maximum design capacity of the facility, in square feet.
 - (3) The anticipated pattern of use, including:
 - A. Hours of operation and anticipated peak hours;
 - B. Estimated number of patrons/customers at peak hours of operation; and
 - C. Maximum numbers of employees present on one shift;
 - (4) The estimated traffic generation and parking demand, including the estimated number of parking spaces required at peak capacity.
 - (5) The number of parking spaces required according to Schedule 1282.04(c), and the number of on-site spaces proposed.
 - (6) The current supply and utilization of parking spaces in the immediate area, noting property ownership and distance between the main entrance of the use served and the nearest corner of the parking lot containing the off-site spaces.
 - (7) The number of off-site parking spaces that are available to meet the needs of the proposed use.
 - (8) Suggested parking management solutions to address a deficiency between the number of parking spaces available and anticipated parking demand.
 - (9) Any additional information as requested by the Zoning Administrator or Planning Commission.

Section 905 – Off-Street Stacking

Off-Street Stacking Spaces. A drive-through establishment or other establishment which, creates lines of vehicles used by its customers waiting to be served must provide off-street stacking spaces on the same lot as the use. Stacking spaces shall be provided in addition to the required number of parking spaces in Schedule 1004(a).

(a) Schedule 1005 (a) Minimum Number of Stacking Spaces:

Schedule 1005 (a) Minimum Number of Stacking Spaces.	
Use	Minimum Requirement
(1) Establishments selling food/drinks:	Six (6) stacking spaces per drive-thru window as measured from the first window
(2) Car wash facilities, Automatic where a chain conveyor or other similar method is used to move the vehicle through the structure:	Ten (10) stacking spaces, not counting the washing bay
(3) car wash facilities, Self-serve:	Two (2) stacking spaces per stall, not counting the washing bay
(4) Banks, ticket booths, drive-up ATM machines and other similar facilities with service windows or service entrances:	Four (4) stacking spaces for the first drive-thru window or stall plus two (2) stacking spaces for each additional window or stall, which may be distributed as determined by the applicant
(5) Gasoline stations:	Two (2) stacking spaces per accessible side of a gasoline pump island
(6) All other uses	Three (3) stacking spaces for each window, stall, and entrance

- (b) Stacking Space Dimensions. The area of an off-street stacking space shall be at measuring 8 feet by 20 feet and must not interfere with parking or circulation.
- (c) Off-street stacking spaces, which includes the space for the vehicle being waited upon at the service window or fuel pump, shall be clearly delineated on the development plan.
- (d) Each stacking lane must provide the full number of required stacking spaces listed in Schedule 1005(a). If two or more separate stacking lanes come together and merge into a single lane (for example, two drive-through ordering lanes that merge into one lane after the menu boards), the stacking spaces are measured as described in Schedule 1005(a) Any stacking spaces located after the point where the lanes merge may be counted toward the stacking space requirement for both stacking lanes.

- (e) Vehicles are not permitted to wait within the public right-of-way for service at any drive-in or drive-through facility.
- (f) The Planning Commission may reduce the number of required stacking spaces when the applicant provides credible documentation, such as studies from similar sites, that fewer than the required number of stacking spaces does not impede vehicular traffic flow on the site and ingress/egress to the site.

Section 906 – Loading Zone Requirements

Adequate off-street loading areas must be provided before any new or modified commercial or industrial building can be occupied. These loading areas must continue to be maintained for as long as the building is in use, unless equivalent loading facilities are provided in compliance with this Chapter.

1006 (a) - Number of Required Loading Spaces:

Modified Gross Floor Area	Loading Spaces Required
Up to 5,000 sq ft	No spaces required
5,000-20,000 sq ft	1 space
Greater than 20,000 sq ft	2 spaces, plus one space for every additional 20,000 feet

Loading Space Requirements & Dimensions

1006 (b) - Minimum Loading Space Dimensions:

Dimension	Requirement
Width	12 feet minimum, exclusive of any driveway, aisle or other circulation
Length	Sufficient to accommodate the largest vehicle anticipated
Height Clearance	15 feet

(d) Access

1. All required off-street loading spaces must connect to a public street or alley in a way that allows vehicles to enter and leave the site by moving forward. Vehicles may not be required to back onto a public street or alley.

2. Driveway access to loading spaces must be located so that vehicles entering or leaving the site are clearly visible to pedestrians and drivers approaching the driveway from any public or private street.

(e) Authority of the Zoning Commission

The Zoning Commission may waive the requirement for an off-street loading area when, due to the type of use or the practical difficulty of providing such facilities in an existing building, the requirement is not reasonable.

Section 907 – Design Requirements

Parking lots. Off-street parking lots shall be designed and constructed in accordance with the minimum requirements is schedule 1007(a), based on the angle of the spaces

Parking Space Dimensions. All dimensions are exclusive of driveways, aisles, and circulation areas.

1007(a)

Parking Angle	Minimum Width	Minimum Length
90 degrees	9 feet	19 feet
60 degrees	10 feet	19 feet
45 degrees	12 feet	19 feet
Parallel	9 feet	

1007(b) - Location of Parking Spaces.

Use Type	Maximum Distance from Principal Use
Detached residential	On same lot
Commercial, industrial, or institutional	700 feet

Apartments, dormitories, or similar residential	300 feet
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Parking areas must be designed so vehicles enter and exit public or private streets in forward motion. Access driveways must be located for clear visibility to pedestrians and motorists approaching from streets.

1007(c)- Width of Access Driveway. Entrances and exits must be clearly marked. Interior vehicular circulation must meet these minimum widths:

Traffic Flow	Minimum Width	Notes
One-way	14 feet	17 feet for 45-degree parking
Two-way	24 feet	

- a. Parking areas with multiple aisles or driveways must have directional signs or markings in each aisle.

1007(d) - Width of Driveway Aisle.

Parking Angle	Minimum Driveway Width
90 degrees	25 feet
60 degrees	17.5 feet
45 degrees	13 feet
Parallel	12 feet

1007(e) - Minimum Distance & Setbacks.

Situation	Setback Requirement
Parking area for 10+ vehicles from dwelling, school, hospital, or care institution on adjoining lot	20 feet (unless screened)
Parking area on same lot as one-family residence	Not within required front yard
Any parking area from street or alley right-of-way	Minimum 4 feet

1. Striping. Parking areas with capacity over 12 vehicles must be striped with double lines (6 inches on both sides of center) between stalls.

Section 908 – Screen/Landscaping

Screening Required. When a parking area is located in or next to a residential district or any property used for residential purposes, it must be screened on all sides that face or touch that residential property.

Acceptable Screening. Screening may be provided by:

1. A wall
2. A fence, or
3. A planting screen

These Features must form an effective visual barrier.

Height Requirements. Any required fence, wall, or planting screen must be at least 4' and no more than 6' tall.

Landscaping Between the Screen and the Residence. The area between the screening (fence, wall, or plantings) and the adjacent residential lot line must be landscaped with:

- Grass,
- Hardy shrubs, or
- Evergreen groundcover.

Landscaping must be maintained in good condition.

Screening exemptions. If existing terrain, slopes, vegetation, or other natural features make screening ineffective or unnecessary, the Township may determine that no fence, wall, planting screen, or landscaping is required.

Article 10- Signs

Section 1000 - Purpose

This ordinance regulates outdoor signs to protect public health, safety, and welfare; maintain property values; enhance community appearance; preserve natural beauty; reduce traffic hazards; and promote responsible community development.

Section 1001- Definitions

These regulations apply to any device used as a sign to announce, direct, or advertise. This includes, but is not limited to, banners, lights, and other site or building features that display words, letters, figures, symbols, images, insignia, or similar representations. Signs are further classified by their physical design or structure, as well as by their function or purpose, as outlined below.

a. Physical Characteristics:

Banner Sign: Any sign of lightweight fabric, plastic, vinyl, or similar material that is mounted to a structure by a frame, rope, or similar means at one or more edges.

Electronic Message Center: A sign that utilizes computer-generated messages or some other electronic means of changing copy. Electronic message centers are a type of Changeable Copy Sign.

Freestanding Sign: A sign that is supported from the ground or from a structure other than a building.

Off-premise Sign: A sign that is not appurtenant to the lawful use of the property on which it is displayed; advertises a product, merchandise, service, business, entertainment, or any other activity not sold, offered or occurring on the property on which it is displayed; or which advertises the sale or lease of property other than the property on which it is displayed.

On-premise Sign: A sign that is appurtenant to the lawful use of the property on which it is displayed; advertises a product, merchandise, service, business or any other activity actually sold, offered or occurring on the property on which it is displayed, or which advertises the sale or lease of property on which it is displayed.

Permanent Sign: A sign attached to a building, structure, or the ground in a manner that enables the sign to resist environmental loads, such as wind, and precludes ready removal or movement of the sign, and which is constructed of durable

materials (wood, plastic, metal) which are able to withstand environmental exposure for long durations of time without degradation.

Portable Sign: A sign not permanently attached to the ground or other permanent structure, or a sign designed to be transported, including, but not limited to, signs designed to be transported by means of wheels; signs converted to A- or T-frames; menu and sandwich board signs; trippers; balloons used as signs; umbrellas used for advertising; and signs attached to or painted on a vehicle parked and visible from the public right-of-way.

Sign Area: The permitted area upon, against or through which signage may be placed.

Temporary Sign: A sign that is designed to be used only temporarily and is not permanently, or intended to be permanently, attached to a building, structure or on the ground.

Wall Sign: A sign erected parallel to or painted on the surface or on the outside wall of any building, and not extending more than 18 inches therefrom, which does not project above the roof line or beyond the corner of the building, and which displays only one sign surface.

Window Sign: A sign, whether permanent or temporary, that is placed upon or over a window, upon a windowpane, or in proximity to a window, for the purpose of being visible to and read from the exterior of the building.

Section 1002- Measuring Sign Size

The following shall be the standard for measuring the area and height of a sign.

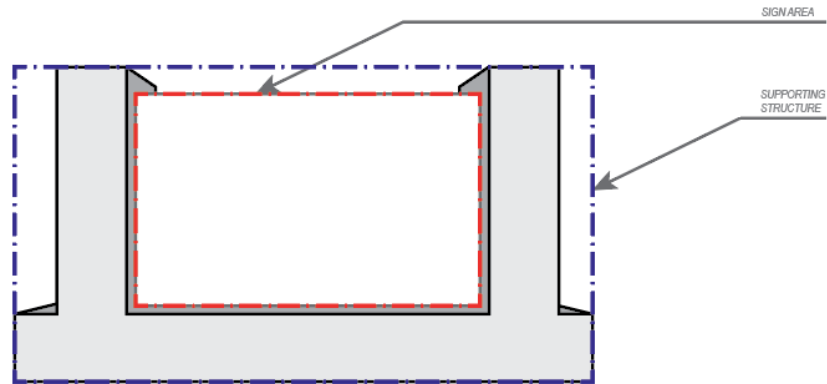
1. Determining Sign Area:

2. Height-

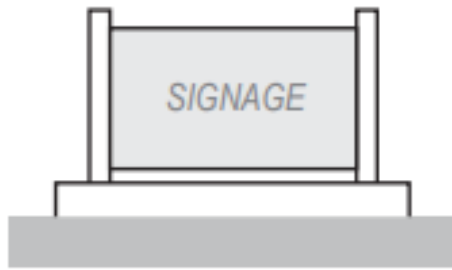
- a. The height of a sign is measured from the ground directly below it up to its highest point. For this measurement, “ground level” means whichever is lower: the original ground before any work was done, or the new ground level after construction—without counting any extra fill, berms, mounds, or digging.
- b. If the normal ground level cannot be reasonably determined, the height of the sign shall be measured using the lower of the following:
 - i. The elevation of the nearest point along the crown of the adjacent public street, or;

- ii. The ground elevation at the main entrance of the primary building on the lot.

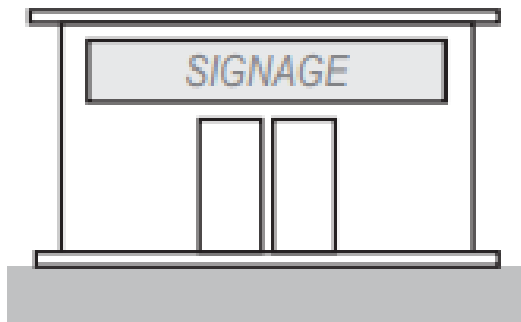
3. Square Footage. The sign area shall include the entire display surface contained within the smallest geometric shape that fully encloses the sign display. Frames and structural supports shall not be included in the total sign area.



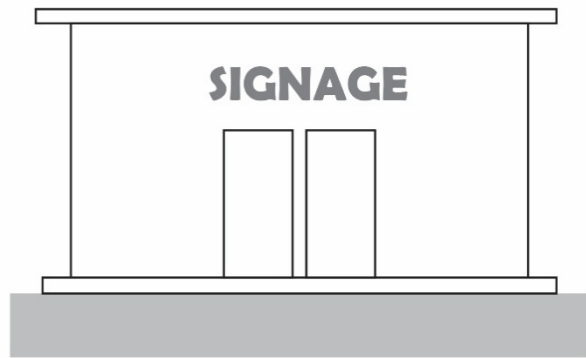
A. Ground Mounted Signs.



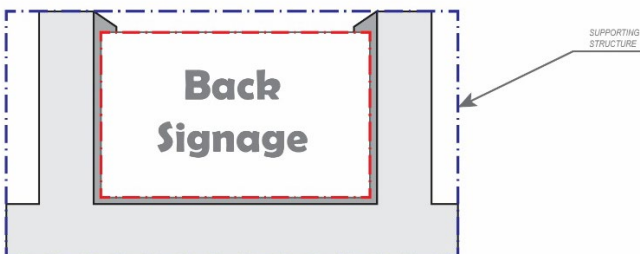
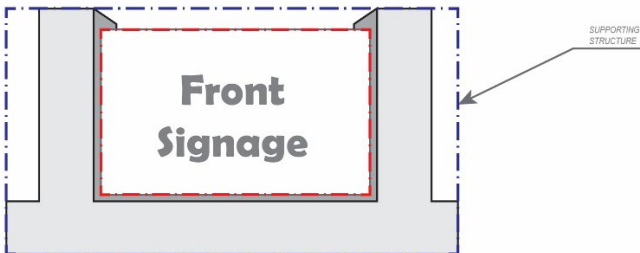
B. Wall Mounted Signs with Background Panel.



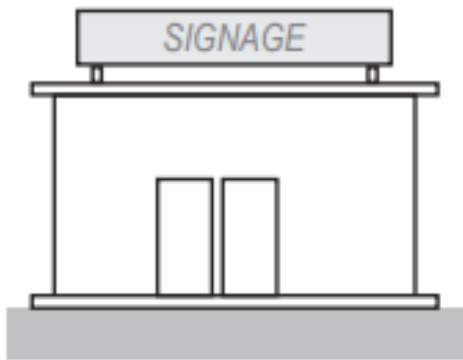
C. Wall Mounted Sign without Background Panel.



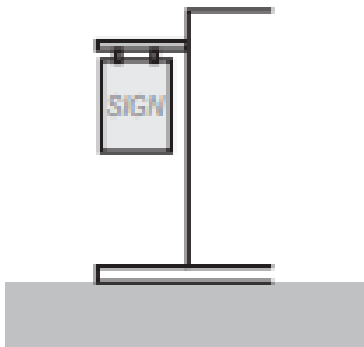
For signs with more than one display face, sign area is calculated as the sum of all face areas. Where two faces are joined back-to-back and display identical content, only one face is counted toward the permitted sign area.



Roof Sign



Projecting Sign



Section 1003 – Signs Exempt from Code Requirements

Exempt Signs.

- (1) Traffic control signs, signals or device erected by a government entity.
- (2) Public facility signs erected by governmental entities, but subject to area, dimensional, and other applicable regulations.
- (3) Notices required to be posted by law or order of court.
- (g) Signs held or affixed to a person and not affixed to the ground or a structure.
- (h) Street numbers or address signs.

No permit required.

- (1) No permit is required for repair, repainting, or other maintenance of conforming signs that do not alter a sign.

Section 1004 - Prohibited Sign Features (All Districts)

The following are prohibited on all permanent signs:

1. Flashing, intermittent, rotating, or moving lights.
2. Illumination directed onto streets, sidewalks, or adjacent properties causing glare or hazards.
3. Revolving, rotating, or spinning parts.
4. Banners, posters, pennants, ribbons, streamers, spinners, or moving devices when used as permanent sign elements.
5. Strings of lights used for advertising.
6. Placement on fire escapes or fire escape access doors/windows.
7. Placement in public rights-of-way (except government signs).
8. Placement on roof, except for those screening a supporting structure and appears to be a continuation of the face of the building.
9. Language imitating or resembling official government or traffic signals.

Exception: Time/temperature displays and similar public service signs may use motion.

Section 1005 - General Requirements (All Districts)

1. Location:

- a. No sign shall be located in or over the public right-of-way except publicly owned signs.
- b. No sign shall obstruct the view of the public right-of-way, traffic lights or signals.
- c. Unless otherwise specified in this article, all signs shall have a minimum setback of ten (10) feet from any adjacent street public right-of-way line.

2. Safety:

- a. Any sign or any structural support become in danger of falling must be repaired or removed immediately upon written notice from Zoning Inspector by the owner or persons responsible of the sign.
- b. No portion of any sign shall be attached to or obstruct any fire escape, window, or ventilation.

- c. All signs shall be constructed to support and carry the weight of the sign as well as prevent movement and withstand significant wind.
- 3. **Sign Marking.** No sign shall contain words, images, or graphic illustrations of obscene or indecent nature.
- 4. **Illumination:**
 - a. All wires and lights for any sign must comply with the local electrical code.
 - b. Any light cast from a sign or external light source must be emitted at a constant intensity.
 - c. Any casted light shall be shielded from adjoining properties and shall not be directed at a public thoroughfare, highway or sidewalk, as to bit cause a glare or reflection.
- 5. **Sign Size Standards.** All permanent signs shall meet the following requirements in Section 1006.7 unless in this article.

Section 1006 - Permanent Sign Standards

1006.01 - Purpose and Applicability

This section establishes dimensional, locational, and operational standards for all permanent signs within the Township. These standards apply to all permanent on-premises and off-premises signs. All signs regulated by this section are additionally subject to the general requirements of Section 1005 and the prohibited features of Section 1004. Temporary signs are regulated separately under Section 1007.

1006.02 - Permit Required

A zoning permit is required prior to erecting, structurally altering, relocating, or replacing any permanent sign, except as provided below.

- A. **Permit Exemption — Small Signs.** Any sign six (6) square feet or less in total area is exempt from permit requirements, provided it complies with all other applicable standards of this Article.
- B. **Permit Exemption — Maintenance.** Repair, repainting, or routine maintenance of a conforming sign that does not alter its size, height, location, or structural support does not require a permit.
- C. **Application Requirements.** A permit application shall include: the name and address of the property owner and sign contractor; a scaled site plan showing sign location, setbacks, and dimensions; and drawings showing sign area, height, materials, and method of illumination, if any.

1006.03 - On-Premises Signs — Residential Districts

A. Commercial and Institutional Signs

1. One (1) on-premises sign is permitted per lot for any lawfully operating commercial, institutional, or agricultural use located in a residential district.
2. Maximum sign area: twenty-four (24) square feet.
3. Maximum sign height: four (4) feet.
4. Minimum setback from any public right-of-way line: ten (10) feet.
5. The sign shall be limited to displaying the owner's name, trade name, products, and business activities associated with the lawfully operating use on the premises.
6. Internal illumination is prohibited. External illumination shall comply with Section 1005.4.

B. Residential Development Entrance Signs

1. Signs identifying the name of a residential subdivision, planned development, or multi-family complex are permitted at each vehicular entrance to the development.
2. Maximum sign area: twenty (20) square feet per sign.
3. Maximum sign height: four (4) feet.
4. Minimum setback from any public right-of-way line: ten (10) feet.
5. Sign type: either ground-mounted monument signs or wall signs affixed parallel to a decorative fence or wall are permitted. Both types shall not be used simultaneously at a single entrance.
6. Where wall signs are used, a maximum of two (2) wall signs displaying identical content are permitted at each entrance.
7. Internal illumination is prohibited.

1006.04 - On-Premises Signs — Commercial and Industrial Districts

The following permanent on-premises signs are permitted in commercial and industrial zoning districts.

A. Wall and Flat Signs

1. Wall signs shall be erected parallel to and mounted on the exterior wall of a building, shall not extend more than eighteen (18) inches from the wall surface, and shall not project above the roofline or beyond a corner of the building.
2. Maximum sign area: fifteen percent (15%) of the gross area of the building wall face to which the sign is attached, not to exceed one hundred fifty (150) square feet per wall face.
3. One wall sign is permitted per building face. There is no restriction on the number of building faces per structure that may carry a wall sign, provided each face independently complies with the area standard in subsection (2).
4. Each sign shall display only one (1) sign surface.

B. Window Signs

1. Permanent window signs shall not exceed twenty percent (20%) of the total area of the window to which they are applied or in which they are displayed.
2. The twenty percent (20%) coverage limit applies to the combined area of all permanent and temporary window signs on any single window.
3. No permit is required for window signs.

C. Ground-Mounted Monument Signs

1. One (1) ground-mounted monument sign is permitted per business or principal use per lot.
2. Maximum sign area: thirty-two (32) square feet.
3. Maximum sign height: four (4) feet, measured in accordance with Section 1002.
4. Minimum setback from any public right-of-way line: ten (10) feet.
5. The sign base and structural supports shall be constructed of durable materials compatible with the principal building and shall be landscaped at the base where site conditions permit.

D. Freestanding Pole Signs

1. One (1) freestanding pole sign is permitted per business or principal use per lot.
2. Maximum sign area: one hundred (100) square feet.
3. Maximum sign height: thirty (30) feet, measured in accordance with Section 1002.
4. Minimum setback from any public right-of-way line: ten (10) feet.
5. A business or lot may not have both a freestanding pole sign and a ground-mounted monument sign unless located on a corner lot with frontage on two (2) or more public streets, in which case one (1) of each type may be permitted, one per street frontage.

E. Projecting Signs

1. A projecting sign shall be attached to and supported by the exterior wall of a building and shall project perpendicularly from the wall face.
2. Maximum projection from the building face: two (2) feet.
3. No projecting sign shall extend above the roofline of the building to which it is attached.
4. Minimum clearance above grade directly below the sign: eight (8) feet.
5. No projecting sign shall encroach into the public right-of-way.

1006.05 - Off-Premises Signs

Off-premises outdoor advertising signs are a permitted use in commercial, industrial, and agricultural zoning districts, subject to the following standards.

A. Standard Off-Premises Signs

1. Maximum number of off-premises signs: two (2) per lot.
2. Maximum sign area per sign face: three hundred (300) square feet.
3. Maximum total off-premises sign area per lot (all signs combined): six hundred (600) square feet.
4. Maximum sign height: thirty-five (35) feet, measured in accordance with Section 1002.
5. Minimum spacing: two hundred (200) feet between any two off-premises signs visible to traffic approaching from the same direction.
6. Off-premises signs shall not be attached to any building or structure not constructed for the sole purpose of supporting the sign.
7. Wall sign supports for off-premises signs shall be concealed from public view.

B. Interstate and State Highway Off-Premises Signs

Signs located adjacent to an interstate highway or state route are subject to all standards of subsection (A) above and the following additional requirements.

1. Maximum sign area: one hundred fifty (150) square feet per sign face.
2. Maximum sign height: fifteen (15) feet above the roadway grade at the sign location, except that a greater height may be permitted where necessary for adequate visibility from an elevated highway, subject to the approval of the Zoning Inspector.
3. Maximum of one (1) off-premises sign per principal lot with highway frontage.
4. Maximum of two (2) sign faces per sign structure.
5. Minimum setback from any public right-of-way line: six hundred (600) feet.
6. Minimum spacing between interstate/highway signs: one thousand (1,000) feet, measured between the nearest edges of any two signs located on the same side of the highway.
7. All signs located on a federal or state route shall comply with applicable federal and state law, including Ohio Revised Code Section 5516.

1006.06 - Electronic Message Centers

Electronic message center (EMC) signs are permitted as an accessory element to a lawfully permitted on-premises ground sign in commercial and industrial districts, subject to the following standards.

1. Only one (1) electronic message center is permitted per lot and shall be incorporated into a permitted on-premises ground-mounted sign. Freestanding EMC signs not integrated with a ground sign are prohibited.
2. The electronic message center shall not exceed fifty percent (50%) of the total permitted area of the ground sign to which it is attached.
3. A contrasting border of not less than four (4) inches shall surround the electronic display portion of the sign.

4. Messages may change no more frequently than once every six (6) seconds. Animation, motion effects, video, and continuously scrolling messages are prohibited.
5. Minimum setback from any residential property line: fifty (50) feet. This setback is in addition to the setback requirements applicable to the ground sign under Section 1008.04(C).
6. The luminance of any electronic message center sign shall not exceed three-tenths (0.3) foot-candles above the ambient light level as measured at the sign face.
7. All wiring and electrical components shall comply with the applicable local and state electrical code.

1006.07 - Permanent Sign Standards Table

The following table summarizes the dimensional and procedural standards for permanent signs regulated under this section. In the event of a conflict between the table and the text of this section, the text shall control.

Sign Type	Residential Districts Size	Commercial / Industrial Size	Max Height	Min ROW Setback	Permit	Notes / Conditions
Wall / Flat Sign	Not Permitted	15% of wall face area; max 150 sq ft per face	N/A	N/A	Yes	No cap on number of faces per building; one sign per building face
Window Sign	Not Permitted	Max 20% of window area	N/A	N/A	No	Permanent or temporary; see also temporary sign standards
Ground Monument Sign	24 sq ft (commercial/institutional use only)	32 sq ft	4 ft	10 ft	Yes	No internal illumination in residential districts; one per business/lot
Freestanding / Pole Sign	Not Permitted	100 sq ft	30 ft	10 ft	Yes	One per business; commercial and industrial districts only
Projecting Sign	Not Permitted	Max projection: 2 ft from building face	N/A	N/A	Yes	Does not extend above roofline
Residential Development Entrance Sign	20 sq ft	N/A	4 ft	10 ft	Yes	Ground-mounted OR wall type; not both; identical signs permitted at each entrance
Commercial / Institutional Sign	24 sq ft	N/A	4 ft	10 ft	Yes	On-premises only; may show owner, trade name, and

Sign Type	Residential Districts Size	Commercial / Industrial Size	Max Height	Min ROW Setback	Permit	Notes / Conditions
(Residential District)						business activities
Off-Premises Sign	Not Permitted	300 sq ft per sign face; 600 sq ft total per lot	35 ft	See Sec. 1011	Yes	Max 2 signs per lot; 200 ft min. spacing; also permitted in agricultural districts
Interstate / Highway Sign	Not Permitted	150 sq ft	15 ft	600 ft	Yes	1 per principal lot; max 2 sign faces; 1,000 ft from another interstate sign; comply with ORC 5516
Electronic Message Center	Not Permitted	Per attached ground sign	Per ground sign	100 ft from residential property line	Yes	Attached to on-premises ground sign only; 6-sec min. message interval; no animation or scrolling
Any Sign ≤ 6 sq ft	Exempt from permit	Exempt from permit	Per applicable standard	Per applicable standard	No	Must comply with all other applicable standards of this Article (Sec. 1006)

Section 1007 - Temporary Signs

All temporary signs shall conform to the general requirements listed in section 1105 and the setback requirements in Sections 1309 through 1311 and shall meet the following standards:

A. Banners

- General.** Banners are permitted only for the promotion of special events, during a grand opening, or during the time between permanent sign permit approval and installation. No temporary sign permit is required for banners.
- Location.** All banners shall be located on the site where the activity occurs. They shall not be located in any public right-of-way or in such a way that they would interfere with the safe movement of vehicular and pedestrian traffic.
- Illumination.** Banners shall not be illuminated.
- Size and Height.** Banners shall be limited to 30 square feet in area. If located on a building, the top of the banner cannot exceed 15 feet in height.
- Placement.** All banners shall be safely secured to a building, structure, or stake, and shall have ventilated faces to reduce wind load.

- f. **Duration.** Banners may be erected for a maximum of 30 days.
- B. Special Events
 - a. **General.** On-site temporary signage before or during a special event do not require a permit.
 - b. **Number.** A special event organizer may erect a maximum of eight temporary off-premises signs.
 - c. **Size.** A maximum of two signs may be up to six square feet in area and three feet in height. A maximum of six signs may be up to two square feet in area and one foot in height.
 - d. **Duration.** Signs must be removed no later than 48 hours following conclusion of the event.
- C. Construction Signs
 - a. **General.** Signs announcing the construction of a building and containing content regarding the contractors, builders, or architects shall not require a permit.
 - b. **Size and Height.** Such signs shall not exceed 50 square feet in area.
 - c. **Duration.** Permitted for 60 days plus the duration of construction.
 - d. **Illumination.** May not be illuminated.
- D. Garage or Yard Sale Signs
 - a. **General.** Garage or yard sale signs do not require a sign permit.
 - b. **Number.** A maximum of three such signs may be posted.
 - c. **Size and Height.** Such signs shall be limited to six square feet in area and three feet in height.
 - d. **Placement.** Garage or yard sale signs shall not be placed in the public right-of-way.
 - e. **Duration.** May be erected within 48 hours before a garage or yard sale and must be removed no later than 24 hours after the sale has ended.
- E. Sale or Leasing Signs
 - a. **General.** A sign permit is not required for sale or leasing signs.
 - b. **Size and Height.** Such signs are limited to seven square feet in area and three feet in height in all residential areas.
 - c. **Placement.** Free-standing signs must be located so that they do not interfere with the safe movement of vehicular or pedestrian traffic. Off-premises signs must not be located so that they interfere with the safe movement of vehicular or pedestrian traffic and may not be located within street medians.
 - d. **Duration.** Such signs are permitted during any period when any premises or part thereof is actively offered for sale or lease, and must be removed no later than 30 days after the premises or part thereof is occupied by a new owner or tenant.
- F. Non-Profit Organization Portable Signs
 - a. **General.** Non-profit organizations are allowed one portable sign that does not require a permit.
 - b. **Standards.** Such signs shall conform to the general size, height, and placement standards for other temporary signs in this section.

Table 1007 A - Summary of Temporary Sign Regulations

Sign Type	Permit Required	Maximum Size	Maximum Height	Maximum Number	Maximum Duration	Illumination
Banners	No	30 sq ft	15 ft (if on building)	Not specified	30 days	No
Special Event Signs	No	6 sq ft	3 ft	8 per event	48 hours after event	No
Construction Signs	No	50 sq ft	Not specified	Not specified	60 days + construction period	No
Garage/Yard Sale Signs	No	6 sq ft	3 ft	3 per sale	48 hours before to 24 hours after sale	No
Sale or Leasing Signs	No	7 sq ft	3 ft	Not specified	Until sold/leased + 30 days	No
Non-Profit Portable Signs	No	6 sq ft*	3 ft*	1 per organization	Not specified	No

Article 11 - Enforcement

Section 1100 - Zoning Permits

Section 1100.01 - Zoning Permit Required

1. No building or other structure shall be erected, moved, added to, or structurally altered, nor shall any building, structure, or land be established or changed in use without a zoning permit issued by the Zoning Inspector.
2. Zoning permits shall be issued only in conformity with the provisions of this resolution unless the Zoning Inspector receives a written order from:
 - a. The Board of Zoning Appeals deciding an appeal, conditional use, or variance, or
 - b. The Board of Township Trustees approving a Planned Unit Development District, as provided by this Resolution.

Section 1100.02 - Contents of Application for Zoning Permit

1. The application for a zoning permit shall be signed by the owner or applicant attesting to the truth and exactness of all information supplied on the application.
2. Each application shall clearly state that the permit shall expire and may be revoked if:
 - a. Work has not begun within one (1) year, or
 - b. Work has not been substantially completed within two and one-half (2-1/2) years.
3. At a minimum, the application shall contain the following information:
 - a. Name, address, and phone number of applicant
 - b. Legal description of property
 - c. Existing use of the property
 - d. Proposed use of the property
 - e. Zoning district in which the property is located
 - f. Plans in triplicate drawn to scale, showing:
 - i. The actual dimensions and shape of the lot to be built upon
 - ii. The exact size and location of existing buildings on the lot (if any)
 - iii. The location and dimensions of the proposed buildings or alterations
 - g. Building heights
 - h. Number of off-street parking spaces or loading berths
 - i. Number of dwelling units

- j. Such other matters as may be necessary to determine conformance with and provide for the enforcement of this resolution

Section 1100.03 - Approval of Zoning Permit

1. Within thirty (30) days after the receipt of an application, the Zoning Inspector shall either approve or disapprove the application in conformance with the provisions of this resolution.
2. All zoning permits shall be conditional upon the commencement of work within one (1) year.
3. One copy of the plans shall be returned to the applicant by the Zoning Inspector.
4. The Zoning Inspector shall mark such copy either as approved or disapproved and attest to same by his signature on such copy.
5. One copy of the plans, similarly marked, shall be retained by the Zoning Inspector.
6. The Zoning Inspector shall issue a placard to be posted in a conspicuous place on the property in question.
7. Such placard shall attest to the fact that the use or alteration is in conformance with the provisions of this resolution.

Section 1100.04 - Submission to Director of Transportation

1. This section applies to any zoning permit affecting land within:
 - a. Three hundred (300) feet of the centerline of a proposed new highway or a highway for which changes are proposed as described in the certification to local officials by the Director of Transportation, or
 - b. A radius of five hundred (500) feet from the point of intersection of said centerline with any public road or highway.
2. Before issuing such permit, the Zoning Inspector shall give notice by registered mail to the Director of Transportation.
3. The Zoning Inspector shall not issue a zoning permit for one hundred twenty (120) days from the date the notice is received by the Director of Transportation.
4. If the Director of Transportation notifies the Zoning Inspector that he shall proceed to acquire the land needed, then the Zoning Inspector shall refuse to issue the zoning permit.
5. If the Director of Transportation notifies the Zoning Inspector that acquisition at this time is not in the public interest, the Zoning Inspector may proceed.
6. Upon the expiration of the one hundred twenty (120) day period or any extension thereof agreed upon by the Director of Transportation and the property owner, the Zoning Inspector may proceed.

7. If the application is in conformance with all provisions of this resolution, the Zoning Inspector shall issue the zoning permit.

Section 1100.05 - Expiration of Zoning Permit

1. If the work described in any zoning permit has not begun within one (1) year from the date of issuance thereof, said permit shall expire.
2. Such expired permit shall be revoked by the Zoning Inspector, and written notice thereof shall be given to the persons affected.
3. If the work described in any zoning permit has not been substantially completed within two and one-half (2-1/2) years of the date of issuance thereof, said permit shall expire and be revoked by the Zoning Inspector.
4. Written notice of such revocation shall be given to the persons affected.
5. Such notice shall include notification that further work as described in the cancelled permit shall not proceed unless and until a new zoning permit has been obtained or an extension has been granted.

Section 1100.06 - Failure to Obtain a Zoning Permit

1. Failure to obtain a zoning permit shall constitute a violation of this resolution.
2. Such violation shall be punishable under Section 340 of this resolution.

Section 1100.07 - Construction and Use to be as Provided in Application, Plans, Permits & Certificates

1. Zoning permits issued on the basis of plans and applications approved by the Zoning Inspector authorize only the use, arrangement, and construction set forth in such approved plans and applications or amendments thereto.
2. No other use, arrangement, or construction is authorized.
3. Any use, arrangement, or construction contrary to that authorized shall be deemed a violation of this resolution.
4. Such violation shall be punishable as provided in Section 340 of this resolution.

Section 1110 - Violations

Section 1110.01 - Complaints Regarding Violations

1. Whenever a violation of this resolution occurs, or is alleged to have occurred, any person may file a written complaint or complaints via phone call.

- a. Such complaints shall include property location and nature of the alleged violation.
2. Such complaint shall state fully the causes and basis thereof and shall be filed with the Zoning Inspector.
3. The Zoning Inspector shall properly record such complaints, immediately investigate, and take action thereon as provided by this resolution.

Section 1110.02 - Penalties for Violation

1. Violation of the provisions of this resolution or failure to comply with any of its requirements, including violations of conditions and safeguards established in various sections of this resolution
2. Any person who violates this resolution or fails to comply with any of its requirements shall, upon conviction thereof, be subject to the following penalties:
 - a. A fine of not more than five hundred (\$500) dollars;
 - b. A court order for injunction, abatement, or other appropriate relief; and
 - c. Payment of all costs and expenses involved in the case.
3. Each day such violation continues after receipt of a violation notice shall be considered a separate offense.
4. The fine shall be collected by filing a civil action in the Ashtabula County Court of Common Pleas.
5. The following persons may each be found guilty of a separate offense and be subject to the penalties herein:
 - a. The owner or tenant of any building, structure, premises, or part thereof; and
 - b. Any architect, builder, contractor, agent, or other person who commits, participates in, assists in, or maintains such violation.
6. Nothing herein contained shall prevent the Township from taking such other lawful action as is necessary to prevent or remedy any violation.

Section 1120 - Schedule of Fees, Charges & Expenses

1. The Board of Township Trustees shall by resolution establish a schedule of fees, charges, and expenses and a collection procedure.
2. Such schedule shall apply to zoning permits, amendments, appeals, variances, conditional use permits, plan approvals, and other matters pertaining to the administration and enforcement of this resolution.
3. Such matters include those requiring investigations, inspections, legal advertising, postage, and other expenses.
4. The schedule of fees shall be posted in the office of the Zoning Inspector.

5. The schedule may be altered or amended only by the Board of Township Trustees.
6. Until all applicable fees, charges, and expenses have been paid in full, no action shall be taken on any application or appeal.

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Article 12: Amendment

Section 1200 - Procedure for Amendment Submission

1200.01 - Procedure For Amendment or District Changes

This Resolution may be amended utilizing the procedures specified in Sections 1200-1220, inclusive, of this Resolution.

1200.02 - General

Whenever the public necessity, convenience, general welfare, or good zoning practices require, Township Trustees may by resolution, after receipt of recommendation thereon from the Zoning Commission, and subject to procedures provided by law, amend, supplement, change or repeal the regulations, restrictions, and boundaries or classification of property.

1200.03 - Initiation Of Zoning Amendments

Amendments to this Resolution may be initiated in one of the following ways:

- A. By the adoption of a motion by the Zoning Commission.
- B. By the adoption of a resolution by the Township Trustees;
- C. By the filing of an application by at least one (1) owner or lessee of property within the area proposed to be changed or affected by said amendment.

1200.04 - Contents of Application for Zoning Map Amendment

Applications for amendments to the Official Zoning Map adopted as part of this Resolution by Article 6 shall contain at least the following information:

1. The name, address, and telephone number of the applicant.
2. The proposed amending resolution approved as to form by the County Prosecutor.
3. A statement of the reason(s) for the proposed amendment.
4. Present use.
5. Present zoning district.
6. Proposed use.
7. Proposed zoning district.

8. A vicinity map at a scale approved by the Zoning Administrator showing property lines, thoroughfares, existing and proposed zoning, and such other items as the Zoning Administrator may require.
9. A list of all property owners and their mailing addresses who are within, contiguous to, or directly across the street from the parcel(s) proposed to be rezoned and others that may have a substantial interest in the case, except that addresses need not be included where more than ten (10) parcels are to be rezoned.
10. A statement on the ways in which the proposed amendment relates to the comprehensive plan.
11. A fee as established by Resolution of the Board of Township Trustees.
12. Legal description of property and proof of ownership.

1200.05 - Contents of Application for Zoning Text Amendment

Applications for amendments proposing to change, supplement, amend, or repeal any portion(s) of this Resolution, other than the Official Zoning Map, shall contain at least the following information:

1. The name, address, and telephone number of the applicant.
2. The proposed amending resolution approved as to form by the County Prosecutor.
3. A statement of the reason(s) for the proposed amendment.
4. A statement explaining the ways in which the proposed amendment relates to the comprehensive plan.
5. A fee as established by Resolution of the Board of Township Trustees.

1200.06 - Transmittal to Zoning Commission

Immediately after the adoption of a resolution by the Township Trustees or the filing of an application by at least one (1) owner or lessee of property, said resolution or application shall be transmitted to the Zoning Commission.

1200.07 - Submission to County Planning Commission

A. Timing and Transmittal Requirements

Within five (5) days after the adoption of a motion by the Planning Commission, transmittal of a resolution by the Board of Township Trustees, or the filing of an application by at least one (1) owner or lessee, the Zoning Commission shall transmit to the County Planning Commission:

1. A copy of such motion, resolution, or application; and

2. The text and map pertaining to the case in question.

B. County Planning Commission Recommendation

1. The County Planning Commission shall recommend:
 - a. Approval of the proposed amendment;
 - b. Denial of the proposed amendment; or
 - c. Approval of some modification thereof.
2. Such recommendation shall be submitted to the Zoning Commission.
3. Such recommendation shall be considered at the public hearing held by the Zoning Commission.

1200.08 - Submission to Director of Transportation

A. Applicability

This section applies to any zoning amendment affecting land located:

1. Within three hundred (300) feet of the center line of a proposed new highway or highway for which changes are proposed as described in the certification to local officials by the Director of Transportation; or
2. Within a radius of five hundred (500) feet from the point of intersection of said centerline with any public road or highway.

B. Notice Requirement

Before any such zoning amendment is approved, the Commission shall give notice by registered or certified mail to the Director of Transportation.

C. Moratorium Period

1. The Commission may proceed as required by law.
2. However, the Board of Township Trustees shall not approve the amendment for one hundred twenty (120) days from the date the notice is received by the Director of Transportation.

D. Director's Response - Intent to Acquire

If the Director of Transportation notifies the Board of Township Trustees that he shall proceed to acquire the land needed, then the Board of Township Trustees shall refuse to approve the rezoning.

E. Director's Response - No Acquisition or Expiration of Moratorium

The Board of Township Trustees shall proceed as required by law if:

1. The Director of Transportation notifies the Board of Township Trustees that acquisition at this time is not in the public interest; or
2. Upon the expiration of the one hundred twenty (120) day period or any extension thereof agreed upon by the Director of Transportation and the property owner.

Section 1210 - Procedure for Public Hearings and Public Notice

1210.01 - Public Hearing by Zoning Commission

A. Scheduling Requirement

The Zoning Commission shall schedule a public hearing after:

1. The adoption of their motion;
2. The transmittal of a resolution from the Board of Township Trustees; or
3. The filing of an application for zoning amendment.

B. Timing

Said hearing shall be not less than twenty (20) nor more than forty (40) days from the date of adoption of such motion, transmittal of such resolution, or the filing of such application.

1210.02 - Notice Of Public Hearing in Newspaper or Website

A. Publication Requirement

Before holding the public hearing required in Section 1208, the Zoning Commission shall give notice by at least one (1) publication in one (1) newspaper of general circulation in the Township or via the Township website in accordance with Ohio Revised Code Section 125.182.

B. Timing

Notice shall be published at least ten (10) days before the date of said hearing.

C. Content of Notice

The notice shall set forth:

1. The time and place of the public hearing;
2. The nature of the proposed amendment; and
3. A statement that after the conclusion of such public hearing the matter will be referred to the Board of Township Trustees for further determination.

1210.03 - Notice to Property Owners by Zoning Commission*A. Applicability*

This section shall apply when a proposed amendment intends to rezone or redistrict ten (10) or fewer parcels of land, as listed on the tax duplicate.

B. Mailing of Notice

1. The Zoning Commission shall mail written notice of the public hearing by first class mail.
2. Notice shall be mailed at least ten (10) days before the date of the public hearing.

C. Recipients of Notice

Notice shall be mailed to all owners of property within, contiguous to, and directly across the street from the area proposed to be rezoned or redistricted.

D. Addresses for Mailing

The addresses used for mailing notice shall be those appearing on:

1. The County Auditor's current tax list;
2. The Treasurer's mailing list; and
3. Such other list or lists as may be specified by the Board of Township Trustees.

E. Content of Notice

The notice shall contain the same information as required of notices published in newspapers as specified in Section 519.12 (C) of the Ohio Revised Code.

F. Effect of Failure to Deliver

The failure to deliver notification as provided in this section shall not invalidate any amendment.

1210.04 - Recommendation by Zoning Commission

A. Timing

Within thirty (30) days after the public hearing required by Section 1208, the Zoning Commission shall make its recommendation to the Board of Township Trustees.

B. Recommendation Options

The Zoning Commission shall recommend that:

1. The amendment be granted as requested;
2. A modification of the amendment requested be granted; or
3. The amendment not be granted.

C. Written Decision Requirements

The written decision of the Zoning Commission shall indicate:

1. The specific reason(s) upon which the recommendation is based; and
2. The basis for their determination that the proposed amendment is or is not consistent with the comprehensive plan.

1210.05 - Public Hearing by Board of Township Trustees

A. Timing

Within thirty (30) days from the receipt of the recommendation of the Zoning Commission, the Board of Township Trustees shall hold a public hearing.

B. Notice

Notice of such public hearing in a newspaper of general circulation or Township Website shall be given by the Board of Township Trustees as specified in Section 519.12 of the Ohio Revised Code.

1210.06 - Action By Board of Township Trustees

A. Timing

Within twenty (20) days after the public hearing required by Section 1012, the Board of Township Trustees shall take action on the proposed amendment.

B. Action Options

The Board of Township Trustees shall:

1. Adopt the recommendation of the Zoning Commission;
2. Deny the recommendation of the Zoning Commission; or
3. Adopt some modification of the recommendation.

C. Unanimous Vote Requirement

In the event the Board of Township Trustees denies or modifies the recommendation of the Zoning Commission, the unanimous vote of the Board of Township Trustees is required.

Section 1220 - Amendment Finalization

1220.01 - Effective Date and Referendum

A. Effective Date

An amendment adopted by the Board of Township Trustees shall become effective thirty (30) days after the date of such adoption, unless a referendum petition is filed as provided in subsection B.

B. Referendum Process

1. Petition Requirements

Pursuant the amended requirements of R.C. §519.12 (H) in Ohio House Bill 96, a referendum may be initiated if, within thirty (30) days after the adoption of the amendment, there is presented to the Board of Township Trustees a petition signed

by a number of qualified voters equal to not less than thirty-five (35) percent of the total vote cast for all candidates for Governor in such area at the last preceding general election at which a Governor was elected.

2. Petition Purpose

The petition shall request the Board of Township Trustees to submit the zoning amendment to the electors of such area for approval or rejection at the next primary or general election.

3. Signers

The petition must be signed by qualified voters residing in the unincorporated area of the Township or part thereof included in the zoning plan.

C. Effect of Referendum

1. No amendment for which such referendum vote has been requested shall be put into effect unless a majority of the vote cast on the issue is in favor of the amendment.
2. Upon certification by the Board of Elections that the amendment has been approved by the voters, it shall take immediate effect.

Section 1220.02 - File Zoning Amendments with County Recorder and County Planning Commission

A. Filing Requirement

The Board of Township Trustees shall file text amendments and map amendments with the County Recorder and County Planning Commission.

B. Timing

Such filing shall occur within five (5) working days after the effective date of the amendment.

Section 1230: Planned Unit Development Amendment Procedures

1230.01 Authority and Purpose

The Board of Township Trustees may establish or modify Planned Unit Developments (PUDs) in accordance with Ohio Revised Code Section 519.021. PUD regulations shall apply to property only at the election of the property owner and shall include standards for determining whether to approve or disapprove any proposed development within a PUD.

PUD regulations shall further the purpose of promoting the general public welfare, encouraging the efficient use of land and resources, promoting greater efficiency in providing public and utility services, and encouraging innovation in the planning and building of all types of development. Within a PUD, zoning regulations need not be uniform, but may vary to accommodate unified development and to promote public health, safety, morals, and general welfare.

1230.02 Establishment Procedures

The Board of Township Trustees may establish PUDs under any of the following three procedures:

(A) Generic PUD District with Property Owner Opt-In

Under this procedure:

1. The Board adopts PUD regulations that do not automatically apply to any property but establish standards that will apply to property that becomes part of a PUD.
2. Property owners who wish to have PUD regulations apply to their property may apply to have the zoning map amended pursuant to ORC Section 519.12 to rezone their property as a PUD.
3. Once rezoned, the property is no longer subject to any previously applicable zoning regulations and subsequent development shall comply with the PUD regulations as determined by the Board or the Township Zoning Commission.
4. After designation as a PUD on the zoning map, any approval or disapproval of subsequent use or development shall not be considered an amendment to the zoning resolution for purposes of ORC Section 519.12, but may be appealed pursuant to ORC Chapter 2506.

(B) Property-Specific PUD with Simultaneous Regulations

Under this procedure:

1. Upon application of property owners, the Board may establish a PUD for their specific property, designating it as a PUD on the zoning map in accordance with ORC Section 519.12.

2. The Board simultaneously adopts regulations as part of that same procedure that apply only to that specific PUD.
3. Within that development, property is subject only to the adopted PUD regulations and not to any other zoning regulations.
4. Compliance shall be determined by the Board or the Township Zoning Commission.
5. After designation and simultaneous adoption of regulations, any approval or disapproval of subsequent development shall not be considered an amendment to the zoning resolution for purposes of ORC Section 519.12, but may be appealed pursuant to ORC Chapter 2506.1230.03 Conditional Use

The Board may authorize PUDs as conditional uses pursuant to ORC Section 519.14 and Article 10 of this Resolution.

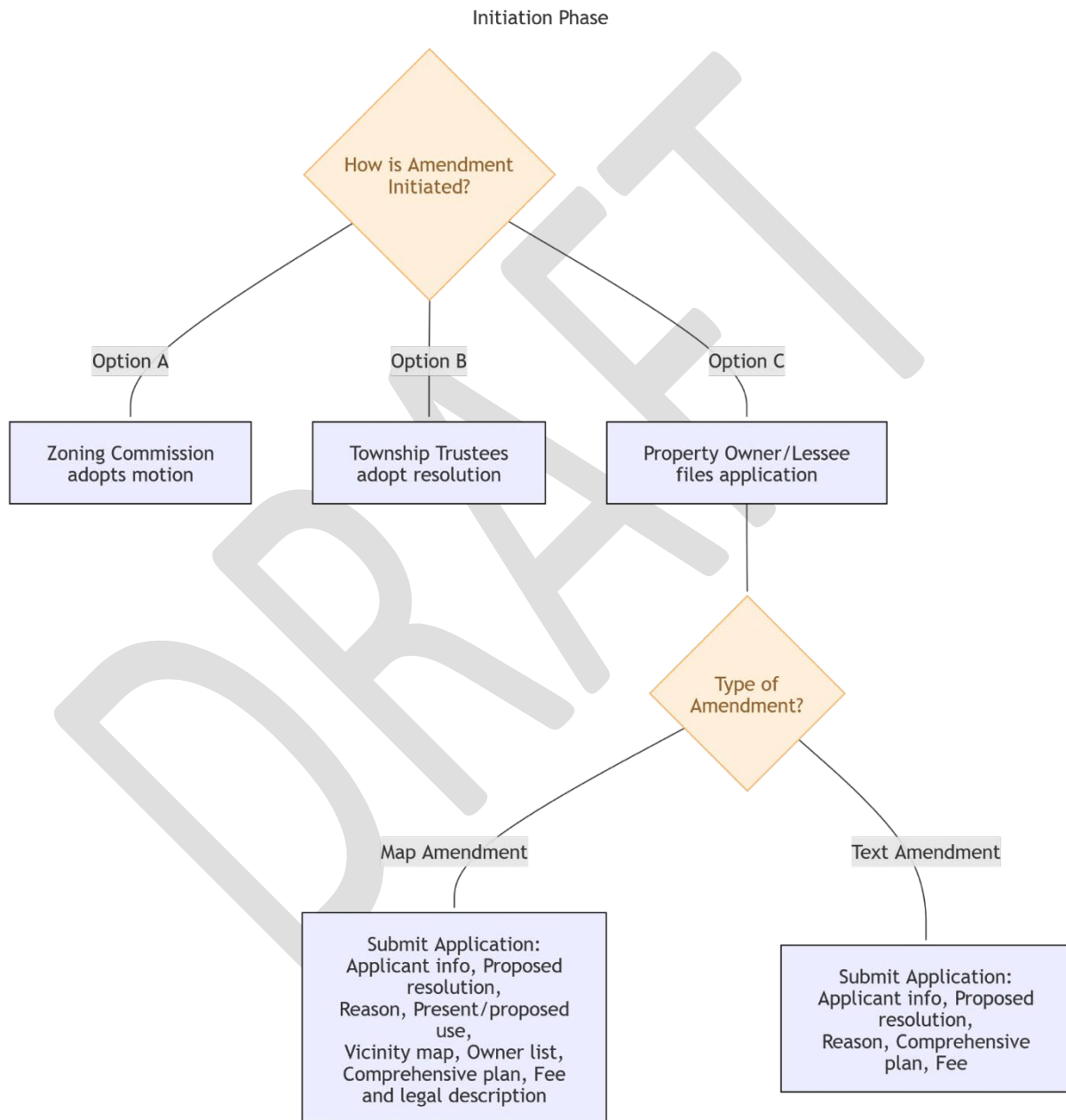
1230.04 Delegation to Zoning Commission

Where authorized by the Board of Township Trustees, the Township Zoning Commission may exercise the approval/disapproval authority described in this section.

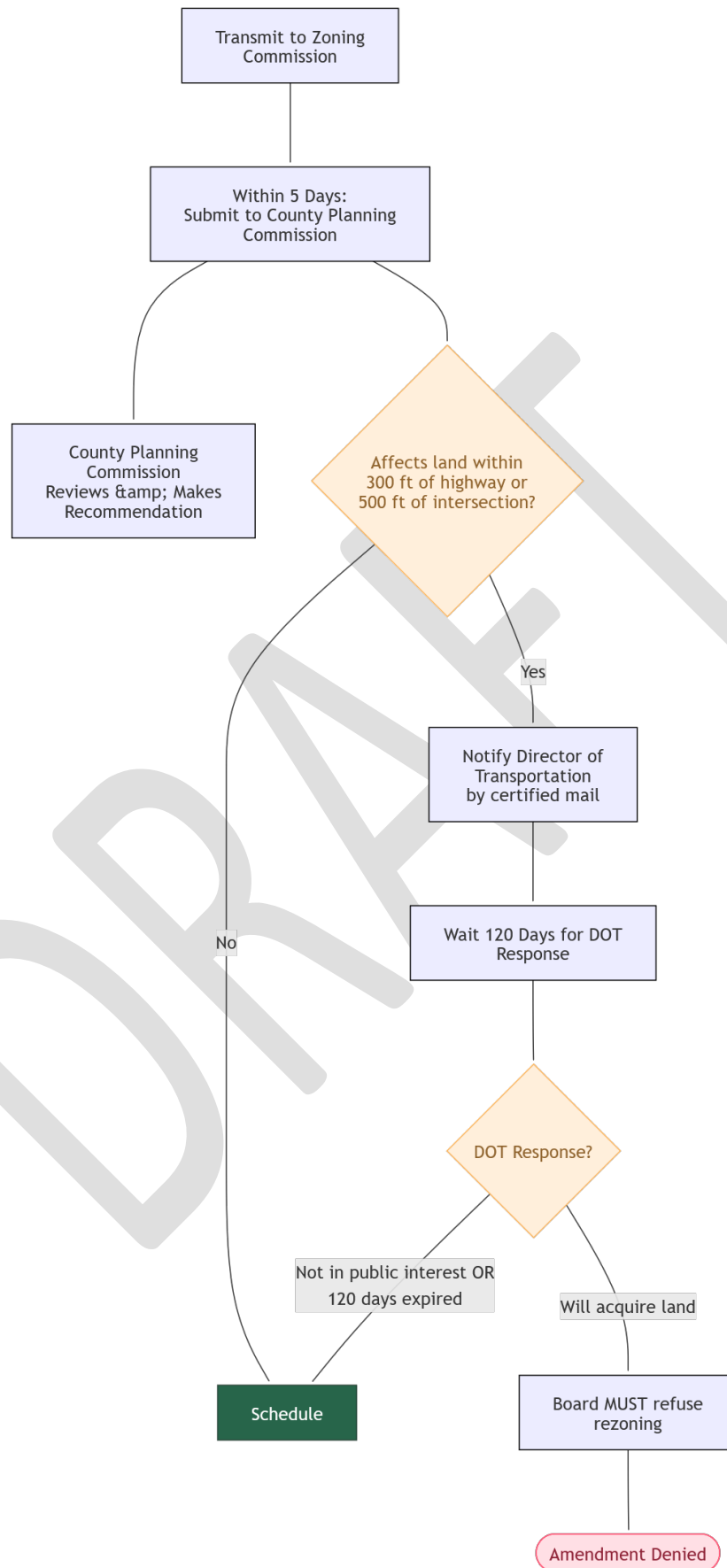
1230.05 Definition

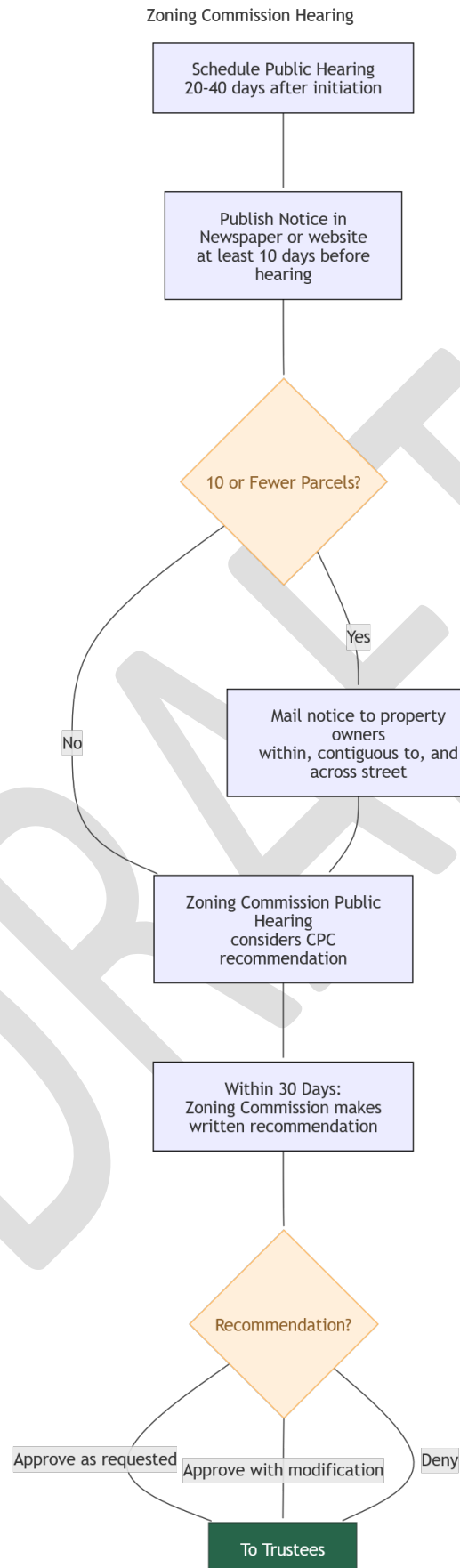
"Planned Unit Development" means a development planned to integrate residential, commercial, industrial, or any other uses.

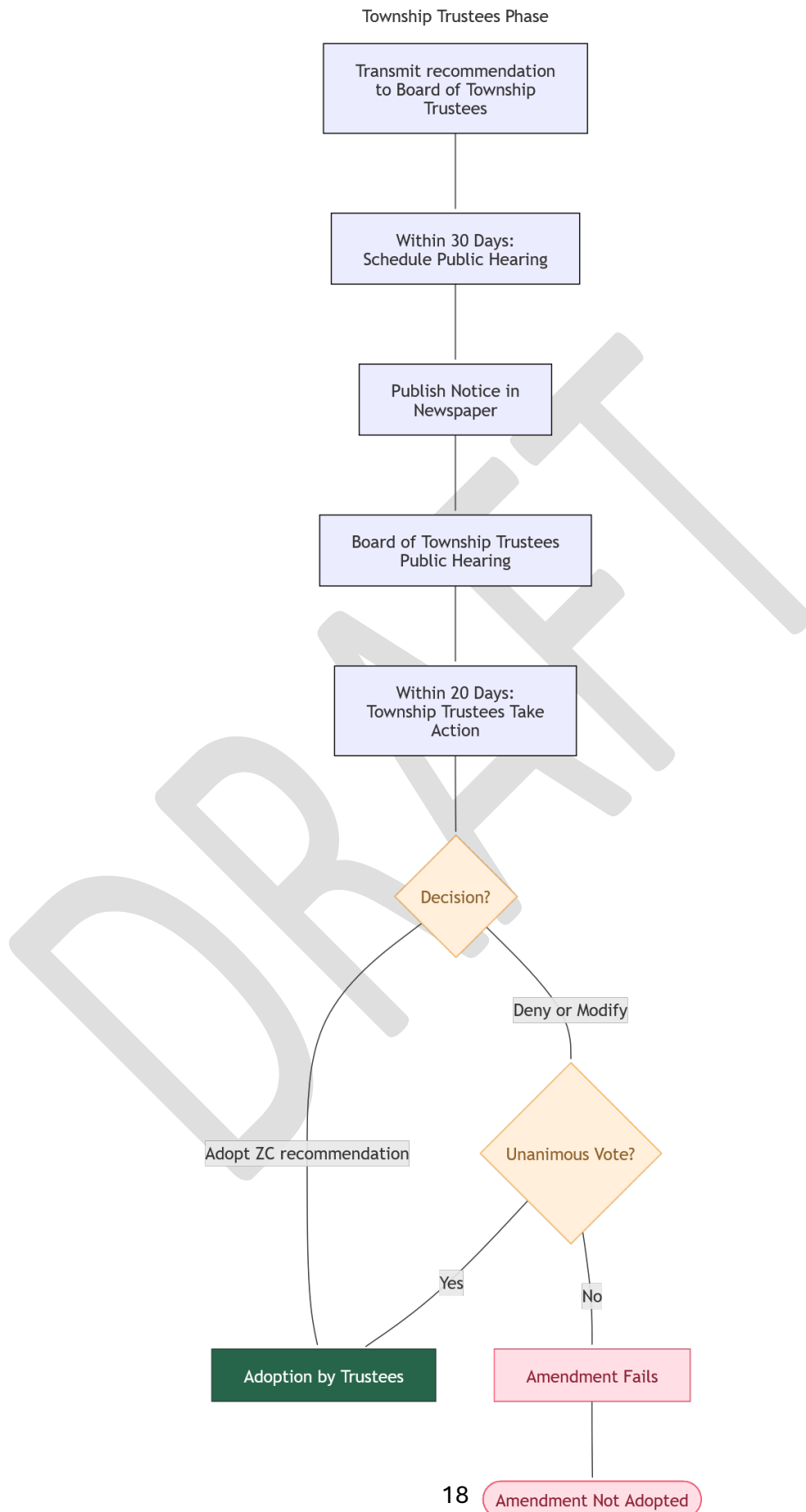
Appendix A - Zoning Amendment Flowchart



Transmit & Initial Review







Referendum & Referendum

